



International Student and Scholar Services Employment Manual

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INTRODUCTION

Purpose Of This Document

This document is to serve as a comprehensive guide specific to ISSS immigration practices and policy for employment authorizations.

F-1 STUDENT EMPLOYMENT

F.1 ON-CAMPUS EMPLOYMENT

F.1.1 ON-CAMPUS EMPLOYMENT - DEFINITION

8 CFR 214.2(f)(9)(i)

“On-campus employment must either be performed on the school's premises, (including on- location commercial firms which provide services for students on campus, such as the school bookstore or cafeteria), or at an off-campus location which is educationally affiliated with the school. Employment with on-site commercial firms, such as a construction company building a school building, which do not provide direct student services is not deemed on-campus employment for the purposes of this paragraph. In the case of off-campus locations, the educational affiliation must be associated with the school's established curriculum or related to contractually funded research projects at the post-graduate level.” “Employment authorized under this paragraph (f)(9)(i) must not exceed 20 hours a week while school is in session.... An F-1 student may, however, work on campus full-time when school is not in session or during the annual vacation.”

F.1.2 ON-CAMPUS EMPLOYMENT - HIGHLIGHTS

Student Eligibility:

- No waiting period; eligible right after obtaining F-1 status.
- F-1 status must be active in SEVIS.
- Must be maintaining good immigration and academic status.

Hours Per Week:

- Part-time (up to 20 hours a week) while school is in session.
- Full-time (more than 20 hours a week) during school breaks and annual vacation.
- Students requiring SEVIS registration in the summer can only work part-time while summer courses are in session.

Location:

- On-campus.
- Third-party service providers on-campus. Restrictions apply.
- At off-campus locations considered as on-campus.

Position:

- Work does not need to be related to a student's major field of study.
- Work in IAP office is limited to ISSS approved positions only.
- Work at approved third-party service providers on campus. Position must provide direct

services to students.

- F-1 and J-1 students are not eligible for Federal Work Study (FWS) positions.

Length (Start and End Dates):

- Students must report On Campus Employment in iEagle every term in which they work: Fall, Winter Break, Spring, and Summer Break.

F.1.3 ON-CAMPUS EMPLOYMENT - STUDENT ELIGIBILITY

Active F-1 students enrolled full-time (or with approved reduced course load) in a degree or non-degree program who are maintaining good immigration and academic status are eligible for on-campus employment without a waiting period.

Students must have:

1. Active F-1 status
 - a. have been registered in SEVIS for the current term.
 - b. have an unexpired I-20 from American University.
 2. Good immigration status
 - a. be enrolled full-time or have approval for Reduced Course Load (RCL).
 - b. hold an unexpired passport.
 - c. have previously not worked without prior authorization.
 3. Good academic standing
 - a. be making normal academic progress.
 - b. GPA 2.0 or above for undergraduate/JD/LLM students.
 - c. GPA 3.0 or above for graduate students.
- Satisfactory academic progress for SJD students.

Applications from students on probation, with a GPA below good standing, with pending or incomplete/in-progress grades, or enrolled in overloaded credits are reviewed carefully, case by case for additional advising.

ISSS practice is to contact academic advisors to understand if on-campus employment is recommended in these cases. This is an opportunity for ISSS to raise concern about these students with academic departments so more attention can be given by academic departments when planning their academic schedule.

ISSS practice is to also advise students on the immigration implications of a potential dismissal or not finishing the academic program by the I-20 end date by the time on-campus employment authorization is processed.

If a student requests On Campus Employment for a future semester but is at risk for dismissal, wait for confirmation from the Academic Department that the student will be permitted to continue in the program for the next semester before approving.

Initial Students

Initial students who are employed on-campus in their first semester must submit their immigration registration and be activated in SEVIS before on-campus employment authorization can be processed.

ISSS prioritizes SEVIS registration and on-campus employment authorizations for students who receive stipends, assistantships, fellowships, scholarships from AU. The list of students is received from HR/Payroll.

Current/Returning Students

On-campus employment authorization requests for current students are processed on an ongoing basis:

- Requests for the Current Term: authorization is processed for students who are enrolled full-time or with approved RCL and are registered in SEVIS for the current term.
- Requests for a Future Term: authorization is processed for students who are enrolled in at least one class for the future semester they are requesting on-campus employment authorization (except summer or winter break). SEVIS registration will be processed during the SEVIS registration period for that future semester.

F.1.4 ON-CAMPUS EMPLOYMENT - HOURS PER WEEK

F-1 students may work on-campus part-time (up to 20 hours a week) while school is in session and full-time (more than 20 hours a week) when school is not in session or during annual vacation.

Students authorized to work on-campus part-time in the Fall and Spring may work full-time when school is not in session without the need to request additional authorization. Example: During Spring break students may work full-time for the week.

During periods where full-time on-campus employment can be authorized, from an immigration standpoint, there is no limit on the number of hours students can work on campus.

Summer on-campus Employment

PSE, IAP, and ACDC Extender students are required to be registered in SEVIS in the summer and may not work more than 20 hours a week during the summer.

Other students in which summer enrollment is optional may work full-time, including students who decide, as an option, to complete their academic program in the summer.

On-campus Employment Combined with Other Employment

Students authorized to work on-campus can also be authorized for Pre-Completion Optional Practical Training (OPT), Internship with an International Organization (IO), Curricular Practical Training (CPT), or Severe Economic Hardship (EH). Each authorization falls subject to its own maximum number of hours separately from the other authorizations.

All requests for multiple employment authorizations at the same time are reviewed carefully as exceptions and must be approved by the PDSO. ISSS practice is to work with students and academic advisors to understand if the request can be supported academically without interfering in the student's normal academic progress.

F.1.5 ON-CAMPUS EMPLOYMENT - LOCATIONS & POSITIONS

Students can be authorized for on-campus jobs if:

1. The work is performed on the school premises, including work that is part of a scholarship, fellowship, or assistantship (example: ISSS student staff, teaching or research assistants, library, cafeteria, etc.).
2. The work is performed on the school premises, and the student is employed by approved on-campus third-party service providers to provide services to other students (example: campus bookstore, IAP).
3. The work is done at off-campus locations but treated as on-campus (example: psychology or biology students working on-campus as part of a scholarship, but faculty sends them to a lab off-campus. The lab has an agreement with AU).

The work does not have to be related to students' major field of study. F-1 students are not eligible for Federal Work Study (FWS) jobs.

Third-Party Service Providers

"On-campus" also includes employment with "...on-location commercial firms which provide services for students on campus, such as the school bookstore or cafeteria." The nature of the services being provided by an on-location commercial firm is important to consider, with the focus being whether the commercial firm provides direct student services.

F-1 students cannot receive On Campus Employment Authorization for a company that:

- Contracts with American University for something other than student services
- Does not contract with American University, even if the company is physically located on school property.

ISSS can authorize students to work on campus at third-party services provider positions that provide direct student services. ISSS practice is to notify students that they may receive On Campus Employment Authorization if the student:

- Has confirmed with their employer that the student is only legally authorized to work at the AU campus location; and
- Understands that unauthorized employment can have significant adverse consequences on their current and future immigration benefits; and
- Understands that they may face additional scrutiny when applying for positions with third-party vendors because of the limitations in their work authorization.

Confirmed Third-Party Service Providers (can authorize on-campus employment)

The following employers have confirmed with ISSS that student employment at the AU campus location meets requirements for on campus employment:

- Campus bookstore
- IAP office

IAP Office Approved Positions

Students employed by the IAP office are limited to the following ISSS approved positions:

- Orientation Leaders
 - The work performed is that of an orientation leader on the main campus.
- Supplemental Instructors/Tutors/Counselors/Peer Educator
 - The work performed is that of a tutor for a specific AU or IAP course or subject matter (i.e., writing).
- Peer Leaders for the IAP-specific AUx course.
 - The work performed is similar to that of the main campus AUx course (see job description here:
<https://www.american.edu/provost/undergrad/auexperience/upload/AUx1-Peer-Leader-Description.pdf>)

Not Confirmed Third-Party Service Providers

The following employers have not confirmed with ISSS that student employment at the AU campus location meets requirements for on campus employment:

- UPS, Starbucks, Subway, etc. may require their employees to be able to work at other store locations. For this reason, F-1 students may not be eligible for on-campus employment at these companies, even though they are located on-campus.

On-campus Employment for PhD students

PhD students must physically work on-campus to be eligible for teaching assistantship, research assistantship, fellowship with working component, and other on-campus positions.

Students hired through nextSource cannot be approved for on-campus employment.

ISSS checks for a valid U.S. address and in-person course enrollment. If the address is outside the DMV area, advisors should discuss the case with the PDSO before approving on-campus employment.

WCL Clinics

The in-house clinics offer AU WCL JD students only an opportunity to work on real cases for real clients under supervision from AUWCL faculty. There are two different categories of students who may work at the AU WCL Clinic:

- Clinic Students- Students are enrolled in 1- or 2-semester-long clinic courses over the fall or spring semesters and do not receive payment. Work takes place primarily on campus on the 2nd floor of the Yuma building.
 - Clinic Students do not require work authorization to participate in these courses.
- Fellows- Students are hired and paid by AUWCL to work at the Clinic. These students help with research, translation, and other work of the clinic. Unlike the clinic students, they do not receive course credit for their work. They fall under student employment and are paid by AUWCL.
 - Fellows require On Campus Employment Authorization to participate in these on campus positions.

ISSS Point of Contact for WCL Clinics is Lucy Newton, Associate Director of Clinical Program who can be reached at lnewton@wcl.american.edu. See [her email](#) for more details on the Clinical program.

Center for Community Engagement and Service on Campus/DC Reads

Off-campus employment authorization is needed for students who wish to tutor or mentor in DC public schools through DC Reads.

Internships on Campus

It is possible for F-1 students to intern on campus under on-campus employment authorization. However, if they plan to earn academic credit, they may discuss the use of CPT with ISSS before starting the internship.

If CPT is not an academic option for the student or the student chooses to participate under on-campus employment authorization, ISSS may approve the internship as on-campus employment.

Students who start their internship under on-campus employment authorization cannot switch to CPT later. CPT cannot be backdated and once a student begins a position under On Campus Employment Authorization, it could be a red flag if they change to Practical Training.

ISSS practice is to have the student confirm in writing that they choose to complete the internship position under on-campus employment and do not intend to change to CPT.

Athletic Sponsorship

F-1 and J-1 AU athletes are not allowed to accept sponsored gear or payment for advertisements, even if the sponsor is abroad.

Andrew Smith, Associate Athletic Director, is the point person in the athletics department for any questions students may have regarding this issue. Please refer students to him as he has worked with Senem extensively on this policy.

Courses Requiring On-Campus Employment Authorization

Some courses require students receive On-Campus Employment Authorization to participate in and complete course requirements. Students who register for these courses must request On-Campus Employment Authorization in iEagle and count the hours submitted for the course toward any on-campus employment hour limitations.

- COMM 420- Storytelling for Changemakers Experience
 - Students participating in COMM 420 are part of the [SOC3](#) experience and receive a stipend from AU for successfully completing the tasks required by the course. Students are required to submit timesheets and complete an I-9.

F.1.6 ON-CAMPUS EMPLOYMENT - LENGTH (START AND END DATES)

ISSS authorizes on-campus employment for the following terms: fall, winter break, spring, and summer break.

Initial/Transfer-In Students

ISSS policy is that initial and transfer-in students cannot be hired to start on-campus employment before the first day of classes. Their employment authorization will be valid from the first day of classes. No exceptions.

They can start employment on the first day of classes after submitting their immigration registration and on-campus employment authorization request.

Dates for On-Campus Employment Authorization

Students and campus partners may ask when a student can begin full-time employment. The tables below detail the semester periods that govern the hour limitations for on campus employment.

Main Campus

Term	Start Date	End Date
Fall	First day of classes	Commencement day
Winter break	Day after Fall commencement	Day before Spring first day of classes
Spring	First day of classes	Commencement last day
Summer break	Day after Spring commencement	Day before Fall first day of classes; <i>or</i> Last day of classes for graduating students

WCL

Term	Start Date	End Date
Fall	First day of classes	WCL Final day of exams or main campus commencement day
Winter break	Day after Fall main campus commencement or WCL final day of exams	Day before Spring first day of classes
Spring	First day of classes	Commencement day
Summer break	Day after Spring commencement	Day before Fall first day of classes; <i>or</i> Last day of classes for graduating students

Graduating Students

Graduating students in their final semester may not continue working on-campus beyond their commencement (Fall/Spring) or end of classes (Summer), or defense date (PhDs), or their I-20 end date, whichever comes first.

After graduation, students may only return to work on-campus using their Post-Completion Optional Practical Training (OPT) if the position is related to their major field of study.

Transfer- Out Students

Transfer-out students must stop working on-campus a day before their SEVIS release date.

Change of Level Students

Change of level students can continue working on-campus during the school break following the completion of their first academic program and before the start of the new academic level (example: BA student changes level to MA at end of Spring; works during the summer and starts the new academic level in the Fall).

F.1.7 ON-CAMPUS EMPLOYMENT - SOCIAL SECURITY NUMBER (SSN)

Electronic Signatures

Currently, the Social Security Administration accepts electronically signed I-20's for the SSN application. SEVP guidance on the use of electronically signed I-20's can be found here:

<https://www.ice.gov/doclib/sevis/pdf/I20-guidance.pdf>

Some students have previously reported having issues using their electronically signed I-20's at the Silver Spring SSA location. The location has been contacted twice and confirmed they can accept the I- 20's. They have sent a reminder twice to their staff about that.

Silver Spring SSA location point of contact:

Diana Varela

Public Affairs Specialist

10230 New Hampshire Avenue, Suite 304,

Silver Spring, MD 20903

(877) 512-3848 ext. 20861

Diana has requested our office to advise students to get the name of the person who is not accepting the electronically signed I-20 to report to her so they can take direct action. ISSS advisors having any issues with the Silver Spring location can contact Diana directly to discuss.

Wet signatures are required on employment offer letters.

Obtaining On-Campus Employment Letter for SSN Application

After receiving an employment offer, students must obtain an on-campus employment letter to use to apply for a Social Security Number.

AU Positions

1. After receiving an employment offer, students must schedule an appointment with the University's Payroll Office to finalize hiring and receive their on-campus employment letter.
2. The University's Payroll Office will provide detailed information about how to apply for a Social Security Card and give students a hard copy of their on-campus employment letter.
3. Students must bring their on-campus employment letter to the ISSS office to have it signed and stamped so it can be used to apply for a Social Security Number and card.

Third Party Service Providers

1. Students working on-campus at third party service providers, such as the Campus Bookstore or the IAP office, will contact the employer directly for the tax forms and the employment verification letter.
2. Students must bring their on-campus employment letter to the ISSS office to have it signed and stamped so it can be used to apply for a Social Security Card.

ISSS Signs On-Campus Employment Letter for SSN Application

ISSS must sign the employment letter, signifying that the student is immigration eligible for on

campus employment.

Old Employment Letters

ISSS practice is to follow the University's Payroll office (Simona or Tarek)'s advice on signing on-campus employment letters with past dates. According to their advice, they are not aware of any denials of old letters. Simona and Tarek's recommendation is summarized below and specific email found in [Appendix II](#).

For students who bring old on-campus employment letters to ISSS for signature, ISSS practice is to:

1. Speak with the student to better understand the reason for the delay in applying for the SSN and to remind them of the importance of meeting deadlines to stay compliant with everything related to their immigration status.
2. Alert them there may be a risk of using the old letter in their application.

F.1.8 ON-CAMPUS EMPLOYMENT - REPORTS AND PARTNERS' AGREEMENTS

Active Reports

Students Receiving Stipend – Assistantships, Fellowships, Scholarships

AU's Payroll submits this report to ISSS at the beginning of each semester. ISSS uses the information to prioritize SEVIS registration and on-campus employment authorization for these students.

Reports Currently Not in Use

Students with Approved On-Campus Employment Authorization for Current Semester

ISSS submits this report to AU's Payroll office twice in the semester:

Term	1st Report Due Date	2nd Report Due Date
Fall	Week after add/drop deadline	mid-October
Spring	Week after add/drop deadline	early March

The report is done in Sunapsis and emailed to Simona. *See guide on how to run this report.*

Students Hired to Work in the IAP Office

The IAP office submits this report to ISSS at the beginning of each semester or break. ISSS checks each student on the list to ensure:

- They are eligible to work on campus for the hired period.
- They have submitted the on-campus employment authorization e-form.

- They are hired for an approved IAP positions.

After reviewing the list, ISSS emails IAP indicating which students on the list are missing the e-form or cannot be authorized to work on campus.

Example: a master's student was hired by IAP to work as a tutor during summer. The student was graduating in May and could not be authorized to work on-campus after the graduation date.

Agreement Between ISSS & AU's Payroll Office

In a meeting on July 10, 2018, attended by Senem Bakar, Katie Pettet, Blake Baxter, Astrid Bonilla, and Simona Assenova, ISSS and Payroll agreed to the following:

ISSS will:

- Send new international students targeted emails regarding their responsibilities for requesting on-campus employment authorization
- *Currently Not in Use* Send Payroll an Excel report of on-campus employment authorizations for the current semester
- *Currently Not in Use* Send Payroll an Excel report of OPT-approved students per the following schedule:
 - July: for May graduates
 - October: for August graduates
 - February: for December graduates
- Continue to give priority employment authorization and SEVIS registration to new graduate students on assistantships/fellowships each semester
- *Currently Not in Use* Continue with individual email notification of on campus employment authorization, if so desired by Payroll
- Discontinue providing a handout on applying for SSN to students who need to apply for the card based on on-campus employment

Payroll will:

- Work with the Registrar to customize a BI graduation application report to meet Payroll's needs
- Run enrollment reports after the add/drop deadline to make sure students are still enrolled for a full course of study at AU. Payroll will check with ISSS for part-time enrolled F and J students' employment eligibility
- Send assistantship/fellowship reports for graduate students to ISSS at the beginning of each semester and modify the report to include AU ID number
- Create handout on applying for the SSN for F-1/J-1 students
- Discontinue sending ISSS e-action reports

Other important information covered in the meeting:

- F-1 and J-1 international students are responsible for requesting on-campus employment authorization from ISSS each semester or school break they continue to work
- All foreign nationals receive I-9 expiration alert emails from Payroll
- All foreign nationals are responsible for updating Payroll if there are changes in their employment authorization and/or need to update the I-9 based on status change

List of Terminated Students to HR/Payroll

ISSS sends a list of terminated students to HR/Payroll (Simona or Tarek) every semester at the end of SEVIS registration.

F.1.9 ON-CAMPUS EMPLOYMENT - AUTHORIZATION PROCESSES & PROCEDURES

ISSS practice is to advise students to request on-campus employment authorization only after receiving an employment offer to work on campus.

Student Applicant Steps

To work on campus, students should complete the following steps:

1. Receive an offer to work on campus and work with their supervisor to initiate the hiring process.
2. Request employment authorization from ISSS before their first day in the position every term.
3. *If required:* Work with the Payroll Office and ISSS to obtain documents to take to Social Security Administration to apply for SSN.

Requesting On-Campus Employment in iEagle

On-campus employment authorization is requested using the appropriate e-form in iEagle> Current Student> Request On-Campus Employment Authorization (F-1).

Students are asked to select the “term” and “year” they would like to receive authorization.

After the e-form is approved, students are notified by email.

ISSS Office Steps

Approving On Campus Employment eForm in Sunapsis

Once a student submits the request in iEagle, they will appear on the Request On-Campus Employment Authorization (F-1) Checklist. ISSS Student staff complete a cursory review before ISSS Advisors approve and notify the student.

ISSS Student Staff Steps

1. Open Checklist Management from Control Center
2. On the left top corner, select “General E-form Group”
3. Under “Filter Application/Group”, uncheck everything except for “Request On-campus Employment Authorization”

4. Double click on "Request Submitted" stage
5. A list of students who submitted the Request On-campus Employment Authorization e-form appears
6. Double click on the student who has the oldest submission date
7. Open the e-form under "Workflow Management"
8. Use the Institutional Documentation tab to ensure the student is eligible.
9. If everything is good, approve the Reviewed by Student Staff Task:
 - a. Go to the "Checklist Management" tab within the e-form
 - b. Right click on the square for the task "Reviewed by Student Staff"
 - c. Select "Approved"
10. If there are issues with the on-campus employment request and it cannot be approved:
 - a. If students' request for on-campus employment cannot be approved due to the following reasons:
 - i. Student does not have an unexpired passport
 - ii. Student is not enrolled within the semester of request (or for a future semester if the request is for a break time – summer or winter).
 - b. Deny the e-form and send an email template based on the denial reason:
 - i. Clicking the "Deny" button
 - ii. The email templates will be prompted
 - iii. Select the appropriate template
 - iv. Press "Apply Template" at the bottom
 - v. Once the template is applied, select the student's AU and personal email addresses and send. Do not edit any wording on the template.
 - c. If the reason the student is not eligible for on-campus employment does not fit into one of the denial templates (e.g., expired passport, not enrolled), notify the ISSS Advisor on duty who can send them a unique email about the issue

ISSS Advisor Steps

1. Find students under Checklist Management: Request On-Campus Employment Authorization: Reviewed by Student Staff
2. Check student's notes and alerts.
 - a. If student's GPA is below required or they are on probation, reach out to academic advisor. If student is on probation and has requested for a future semester, await confirmation from Academic Department that the student can continue enrollment next semester before approving the eForm.
3. When cleared to approve On Campus Employment eForm:
 - a. Under Workflow Management
 - b. Open the Request On-Campus Employment Authorization in Submitted Status
 - c. Click the green checkmark icon.
 - d. Highlight the appropriate template and click Apply Template
 - e. Click Send to send email.
4. Add note.

Signing Employment Letter for SSN

ISSS Student Staff Steps

1. Verify that the student has submitted the On Campus Employment eForm and been approved.
 - a. If the student has not submitted the eForm, direct the student to one of the student work stations in the lobby to submit the eForm.
2. Verify that the student has been registered in SEVIS.
3. Provide the employment letter to the Advisor on Duty.

ISSS Advisor Steps

1. Review the student's record for anything the ISSS Student Staff may have missed.
2. If the student submitted the eForm while in the office, Approve the On-Campus Employment eForm.
3. If the student was recently registered in SEVIS for the first time, advise the student they should wait 1-2 weeks before going to the Social Security Administration.
4. Sign the employment letter and include your name stamp and the ISSS address stamp.
5. Add a note in the student's Sunapsis record.

F.2 CURRICULAR PRACTICAL TRAINING (CPT)

F.2.1 CPT - DEFINITION

8 CFR 214.2(f)(10)

“Curricular practical training. An F-1 student may be authorized by the DSO to participate in a curricular practical training program that is an integral part of an established curriculum.

Curricular practical training is defined to be alternative work/study, internship, cooperative education, or any other type of required internship or practicum that is offered by sponsoring employers through cooperative agreements with the school. Students who have received one year or more of full time curricular practical training are ineligible for post-completion academic training. Exceptions to the one academic year requirement are provided for students enrolled in graduate studies that require immediate participation in curricular practical training. A request for authorization for curricular practical training must be made to the DSO. A student may begin curricular practical training only after receiving his or her Form I-20 with the DSO endorsement.”

F.2.2 CPT - HIGHLIGHTS

Student Eligibility:

- Must be in active F-1 status.
- Must be maintaining good immigration and academic status.
- Must have been enrolled in a degree seeking program for at least one full academic year (Fall and Spring). Exceptions apply to authorized programs (see exceptions section).
- Internship/job offer is required to apply.
- Must register for CPT credit.

Hours Per Week:

- Part-time (up to 20 hours a week) or full-time (more than 20 hours a week) during Fall, Spring, or Summer.

Location:

- Anywhere inside the U.S.
- Remote position anywhere outside the U.S. requires PDSO approval

Position:

- Paid or unpaid work related to major field of study.

Length (Start and End Dates):

- 12 months or more of full-time CPT authorization makes a student ineligible for OPT authorization.
- Students are authorized for one term at a time: Fall, Spring, or Summer.
- Start and End Dates align with the dates classes are in session in academic term

F.2.3 CPT - STUDENT ELIGIBILITY

Active F-1 students who are maintaining good immigration and academic status become eligible for CPT after being lawfully enrolled full-time in a degree seeking program for at least one full academic year (Fall and Spring) in a valid non-immigrant status. Summer does not count toward the academic year requirement for CPT eligibility purposes. IAP does not count toward the degree seeking requirement for CPT eligibility purposes. High school does not count toward the degree seeking requirement for CPT eligibility purposes.

Applications from students on probation, with pending or incomplete/in-progress grades, or enrolled in overloaded credits are reviewed carefully, case by case.

Special Academic Enrollment Situations

ISSS practice is to contact academic advisors to understand if CPT is recommended in these cases. If CPT is recommended, ISSS will not deny the CPT application. This is an opportunity for ISSS to raise concern about these students with academic departments so more attention can be given by academic advisors when approving the internship.

If a student is applying for CPT for a future semester and is currently at risk of being dismissed for that semester, ISSS practice is to wait to process the CPT request until the Academic Department confirms that the student is eligible to continue enrolling in the academic program.

ISSS practice is to also advise students by the time CPT is processed on the immigration implications of a potential academic dismissal or for not finishing the academic program by their I-20 end date. ISSS practice is to also advise students by the time CPT is processed on the immigration implications of a potential academic dismissal or for not finishing the academic program by their I-20 end date. It is also ISSS practice to notify students of any missing grades in their transcript and encourage them to work with their faculty or academic advisor to have them posted.

Credit overload – ISSS carefully reviews the student’s overall academic progress and discusses with the student their individual plans and circumstances for applying for employment on top of their full academic schedule.

One (1) Year Full-Time Enrollment Requirement

The one (1) year full-time enrollment requirement can be fulfilled at AU or at any other SEVP approved college, university, conservatory, or seminary in the US.

Transfer-In

Transfer in students who transfer to AU from another SEVP approved college, university,

conservatory, or seminary in the US., and have no break in F-1 status, are eligible for CPT right after enrolling full-time at AU and becoming active in SEVIS. This includes students who are transferring from OPT to a degree program at AU (i.e., bachelor to master).

Example: AU ID 3486601

ISSS practice is to discourage students from pursuing CPT in the first semester before some required courses are taken that would justify the need for curricular practical training in that new program. Additionally, many schools at AU do not approve CPT in the first semester for the same reason.

First semester CPT requests from transfer in students are reviewed carefully, case by case, as exceptions, and must be approved by the PDSO. Students are advised on the risks and red flags of pursuing CPT in the first semester before required courses are taken and/or if moving straight from OPT, on the risks of the CPT in the first semester being perceived as continuous employment.

Change of Level

Time spent in high school or at non-degree programs such as English training (ELTA), Pathway programs for English purpose (IAP), and American Collegiate (ACDC) do not count towards fulfilling the one (1) year enrollment requirement. Students who change academic level from ELTA, IAP, ACDC, or any other non-degree program must spend at least one year enrolled full-time in an undergraduate or graduate program to become eligible for CPT.

Degree seeking students who have met the one (1) year enrollment requirement are eligible to apply for CPT in the first semester of the new academic program. However, ISSS practice is to discourage students from pursuing CPT in the first semester before some required courses are taken that would justify the need for curricular practical training in that new program.

Additionally, many schools at AU do not approve CPT in the first semester for the same reason.

First semester CPT requests from change of level students are reviewed carefully, case by case, as exceptions, and need approval from the PDSO.

Combined BA/MA program

Students in a combined BA/MA program take shareable credits during the BA program. They are eligible for graduate level CPT in the first semester when they are fully enrolled in graduate level courses.

Students who finish all undergraduate level courses in spring and wish to do an internship over the summer before starting graduate level courses in the fall, have the option to apply for graduate level summer CPT or undergraduate level post-completion OPT ([OPT is discussed under the OPT chapter](#)).

Summer CPT for combined BA/MA program requires a COL I-20 be issued with a summer start date and therefore has additional documentation:

- ISSS needs confirmation from the academic department that the student has in fact completed all required courses for the undergraduate level in the spring;
- ISSS needs confirmation that the CPT credits to be used in the summer are for the graduate level and will count towards the minimum number of credits needed for graduation.
- ISSS needs confirmation there are enough summer credits available for the student to enroll full-time over the summer so ISSS can issue a COL I-20 with a summer start date before processing CPT authorization.
- ISSS needs to see a new admission record for the master's level for the summer before issuing the COL I-20.

If undergraduate level credits are still available to be taken over the summer, and the student's I-20 is not expiring until at least the end of summer, they may be authorized for summer CPT as part of their undergraduate level courses. ISSS will issue a COL for the graduate program in the fall.

Visa Status

Students may fulfill the one (1) year full-time enrollment requirement in any visa status that allows them to be in school full-time, such as A2 or H4 dependent visas. However, they must be in active F-1 status by the time they request CPT.

The change of status to F-1, either by traveling or changing status in the United States, must happen without any breaks. For example, a student attends fall full-time under the H4 visa, goes home during the holidays, and returns to the U.S. using her F-1 visa in the spring.

ISSS practice is to have confirmation in writing from students they were in the U.S. and maintained status while enrolled full-time before switching to F-1.

Returning from Temporary Leave

Students returning from temporary leave will receive a new initial I-20 from ISSS. Since there is a break in immigration status, they must enroll full-time (or with approved RCL) for at least one academic year after arriving in the U.S. to regain CPT eligibility.

Study Abroad and Field Research Abroad Students

Time spent abroad through AU study abroad programs counts toward fulfilling the one (1) year enrollment requirement if the student has spent at least one semester at AU in the U.S. before going abroad. Time spent abroad through AU study abroad programs counts toward fulfilling the one (1) year enrollment requirement if the student has spent at least one semester at AU in the U.S. before going abroad.

Time spent conducting field research abroad (PhD students only) counts toward fulfilling the

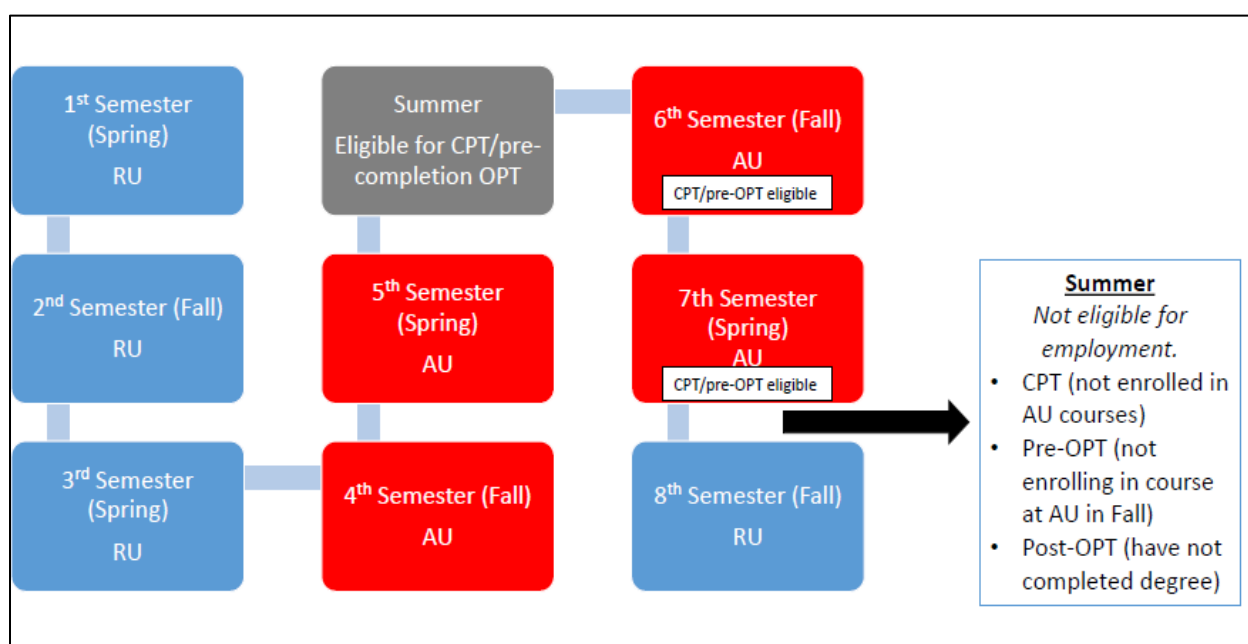
one (1) year enrollment requirement. Time spent conducting field research abroad (PhD students only) counts toward fulfilling the one (1) year enrollment requirement.

Ritsumeikan/AU Joint Degree Undergraduate Students

Time spent abroad at Ritsumeikan University (RU) does **not** count toward fulfilling the one (1) year enrollment requirement. These students become eligible for CPT after being enrolled for one academic year at AU in the U.S.

Upon completion of four semesters at AU in the U.S., they are required to return to RU to finish their degrees. After completing all their required credits at AU, CPT is **not** an option for them anymore.

Please see summary chart below:



Exceptions to the One (1) Year Full-Time Enrollment Requirement

Graduate Students and WCL

Graduate students who are required by their academic program to participate in an internship before completing one year of full-time enrollment, are eligible for early CPT. The program requirement must apply to all students in the program, independent if they are international and domestic students.

Currently, only students enrolled in the following two programs may be authorized for early CPT:

CAS - MA Special Education

Students are required to complete an in-training practicum course (EDU-792 In-Service Training

Project) during the first two semesters of their program. Students must apply for CPT and be authorized before beginning work at the practicum site (usually the Lab School of Washington).

For students beginning their academic program in the fall semester, ISSS must work with the department to authorize CPT for EDU-792 as soon as the student is active in F-1 status.

Example AU ID: 5548411

WCL - LLM

Students enrolled in the “practical track” must do an externship for credit (LAW-754 Intl Legal Studies Externship) after their first semester. For example, the student finishes their first term in the LLM/practical track in Spring and is authorized for summer CPT.

Example: AU ID 4507175

Internship or Job Offer

An internship or job offer letter is required to apply for CPT. CPT authorization is employer specific and students may work for the authorized employer, for the described duties, between the authorized dates only.

The internship or job must be directly related to students’ major field of study. Students must discuss their internship or job offer with their academic advisor and receive academic approval before registering for CPT credits and requesting CPT authorization from ISSS.

For dual degree or double major students, the position must be directly related to at least one of the majors or degrees listed on the I-20.

Credit Internship - Course Enrollment

Regulations describe CPT as an integral part of an established curriculum. According to SEVP guidance “integral part of an established curriculum means an opportunity must be required by the curriculum or, if not required, the student must receive credit for the training.”

ISSS practice is to authorize CPT for students who are enrolled in CPT approved courses that will apply to degree completion. Credits used for CPT must count towards the minimum number of credits needed for degree completion. For example, a bachelor student who needs 120 credits to graduate, can be authorized for CPT if the CPT credits will count within 120 credits needed.

For immigration purposes, CPT credits can be used either as core requirement or as elective credits for the academic program.

CPT In Final Semester

Students can enroll in CPT approved courses in their final semester. If CPT is the only course left, the CPT course cannot be online by the university’s catalog and the internship must last for most of the semester. For example, the internship cannot be a few weeks long only.

Students approved for final semester Reduced Course Load (RCL) must ensure that the CPT credits will count within their RCL credits.

CPT approved courses are divided into main categories:

- For credit internship classes ending in x91: 191, 391, 491, 691, 891.
- Graduate level zero credit internship classes: SIS-091 and SPA-091 only.
- For credit WCL externship classes
- For credit non-internship classes: independent study, practicum, teaching seminar, and dissertation research with a “work component.”
- Kogod Co-Op Program

Each category is discussed below.

Internship Classes Ending in x91: 191, 391, 491, 691, 891

Internship classes are offered in-person, except in SIS that offers them as online classes only.

Students have an academic limit on the number of CPT credits they can enroll as part of their academic program. They vary by school. Students must consult with their academic advisor.

Most internship courses range between 1-3 credits. Some schools offer internship courses with higher credits. These courses are reviewed as exceptions and must be discussed with the PDSO.

The number of credits used for an internship course is determined by academic advisors and in conversation with students. They are decided based on the number of hours students will be interning and the internship length.

KSB Undergraduate - Allowed Number of CPT Credits

KSB recently changed their academic requirements to allow up to 6 credits of internship as part of the undergraduate programs. Email from Derek Jansante, former Director of Undergraduate Programs, from 02/28/2023 is below:

“Previously, Kogod students could complete up to three credits of an internship course in total, whether that one internship course (3 credits) or multiple internships at between 1 or 2 credits. Just a few weeks ago, our faculty recently approved increasing that internship limit to six credits. Moving forward, a student can complete six internship courses worth 1-credit each, two internship courses worth 3-credits each, or somewhere in between.”

KSB 191 (0.25 credits) Field Experience

KSB 191 is available to Kogod undergraduate students who have not completed all pre-requisites for KSB-391. CPT requests for KSB 191 are reviewed as exceptions and may be authorized one time only, if:

- a. the student has not done KSB-391
- b. KSB can allow the 0.25 to count as part of the minimum number of credits needed for

degree completion.

ISSS practice is to discourage students from doing a 0.25 credit CPT as it does not carry the same weight as KSB- 391 and may easily be perceived by DHS as a workaround for employment. PDSO approval is required for 0.25 credit CPT.

Graduate Level Zero Credit Internship Classes: SIS-091 and SPA-091

Graduate level zero-credit internship classes are available in SIS and SPA for students who need to fulfill required professional experience; registration in SIS-091 or SPA-091 is necessary.

SIS-091 and SPA-091 can be authorized if no previous CPT has been authorized at the same academic level. For example, students with previous CPT authorization for 691 or any other CPT approved course **cannot** be authorized for zero credit CPT (091).

SIS-091 and SPA-091 can be taken once. For additional CPT requests, students must register for 691 or other approved CPT courses.

Example: AU ID 3944104

The one (1) year enrollment requirement applies for SIS-091 and SPA-091.

A zero-credit internship course cannot be the only class left to be taken in a final semester. Students should plan with their academic advisor to complete their required professional experience as soon as they become eligible. Requests for zero-credit CPT in the final semester are carefully reviewed. ISSS contacts the academic advisor to confirm academic eligibility.

For Credit WCL Externship Classes

LLM/Practical Track - LAW-754 Externship

Students who declare to be in the “practical track” can be authorized CPT right after finishing their first semester. For example, the student finishes their first term in the LLM/practical track in Spring and is authorized for summer CPT.

Example: AU ID 4507175

Students cannot use an independent study project with “work component” to fulfill practical track externship requirements. This policy was discussed and agreed by Melanija in WCL in a zoom meeting on 07/27/2021.

The WCL Externship Office is for JD students only. Do not direct LLM students to the WCL Externship Office. Points of contact for LLM externships depend upon their program, and are as follows:

- Melanija Radnovic, Director of WCL Abroad & International Programs, mradnovic@wcl.american.edu
- For LLM in International Human Rights and Humanitarian Law: Cristina Sunkel, LLM

Program Coordinator, sunkel@american.edu

JD Externship – LAW 769 Externship Seminar and LAW 899 Externship Field Work.

CPT authorization may or may not be required. Students may fulfil course requirements by doing assignments with or without a “work component”. Students must discuss with WCL’s Externship office, who will determine if employment authorization is needed.

Examples: AU ID 4986584, 5034817

Externship Office point of contact is externship@wcl.american.edu.

For-Credit Non-Internship Classes: Independent Study, Practicum, Teaching Seminar, and Dissertation Research with a “Work Component.”

Students enrolling in independent study, practicum, teaching seminar, and dissertation research with a “work component” must be authorized for CPT.

Independent Study

All Students

Students must discuss their independent study project with work component with their academic advisor and faculty supervisor and receive academic approval first before contacting ISSS to start the CPT process. Students will be required to upload a copy of their independent study project and employment offer letter when requesting CPT authorization.

JD Students

With approval of the dean’s office, JD students can be granted CPT by enrolling in an independent study, instead of enrolling in an externship class. Students must work with WCL to discuss their proposed independent study project and receive WCL’s approval before requesting employment authorization from ISSS.

Example: AU ID 4351194

Practicum

CPT authorization may or may not be required. Students may fulfil practicum requirements by doing assignments with or without a “work component”.

Most schools have students complete their practicum requirements by doing group projects under classroom supervision. For example, students may be asked to interact with employers to collect information as part of their classroom group project assignments. Students spend most of their time working on the group project inside or outside the classroom (and not with the employer). In this scenario, CPT is not needed.

Sometimes, students are given the option to fulfill practicum requirements by doing an internship. In this scenario, CPT is required.

Teaching Seminar

EDU-498 Practicum Field Experience with Seminar (3 credits) & EDU 499 Student Teaching Seminar in Professional Practice (12 credits)

Bachelors' students in the Elementary Education program in SOE are required to register for supervised this field experience in their final year. They are placed in an elementary school for practice. CPT authorization is required for EDU 499 only.

Example: AU ID 4553370

EDU 697 Practicum Field Experience with Seminar (1-3 credits) & EDU-699 Student Teaching Seminar in Professional Practice (2-6 credits)

Masters' students in the Education program in SOE are required to register for this supervised field experience in their last year. They are placed in an elementary school for practice. CPT authorization is required for EDU 699 only.

Example: AU ID 4994019

EDU-792 Special Education: Learning Disabilities Student Teaching Seminar in Professional Practice (1-9 credits)

Masters' students in the Special Education program in SOE may register for this student teaching seminar. CPT authorization is required.

Dissertation Research 899

PhD students who are ABD (all but dissertation), who have defended their proposal and are registered for 899 Doctoral Dissertation, may request CPT to be authorized under 899.

These requests are reviewed as exceptions, and they must provide departmental documentation showing they must be on the jobsite to access data to continue progressing with their dissertation. The department must explain why this off-campus experience is required for satisfactory academic progress. PDSO approval is required.

Example: AU ID 3577336

PhD/JD students who have not defended their proposal (i.e., in the first 3 years during coursework or while registered for 898 Doctoral Continuing Enrollment) must register for an internship class, 891, to be approved for CPT.

Example: AU ID 3577336

Internship Courses that Do Not Require CPT Authorization

ECON 397 - Internship in Teaching & ECON 492 - Senior Internship in Teaching

Students in the Economics major team up with professors to work directly with other students in the classroom to create learning materials. AU Core Integrative Requirement: Capstone.

Example: AU ID 4740014

SABD 691 - Study Abroad Internship

Students intern abroad as part of their AU Study Abroad program. They are not inside the US and therefore do not require CPT authorization.

Example: AU ID 5023072

WSEM 091 and WSEM 491 – Washington Semester Internships

Washington Semester Students participate in internships as part of their program at AU. Unless AU is maintaining their F-1 immigration record, these courses do not require CPT authorization from ISSS.

Kogod Co-Op Program

The Kogod Co-Op program requires course enrollment each semester a student participates in the program. CPT authorization for the Kogod Co-Op should be treated as For-Credit-Internship authorization.

The Co-Op program requires enrollment in either KSB 492 (undergraduate students) or KSB 692 (graduate students).

CPT – Special Issues

MFA in Studio Arts - ARTS-797 Master's Thesis Seminar

Work associated with the course “ARTS-797 Master's Thesis Seminar” and the resulting exhibit at Katzen does not require employment authorization. The work is done for a course, presented on campus, and the students are not selling their work at Katzen during the exhibit.

Students who wish to exhibit off campus, whether their work is being sold or not, must request either CPT or pre-completion OPT employment authorization.

Creating art in their free time does not require employment authorization if they do not attempt to sell their work.

Kogod Pro-Bono Projects

International students can participate in Kogod Pro-Bono Projects, but they are required to enroll in an internship course and to be authorized for CPT. Students interested in this program should also provide an email from their Academic Advisor stating that they can use the Pro-Bono program as an internship for the course for credit.

CPT Credit Enrollment not Fully Counting Towards the Minimum Number of Credits for Degree Completion

Under rare circumstances, CPT can be approved for credits that will partially count towards the minimum number of credits needed for degree completion. These cases are reviewed carefully as exceptions and must be approved by the PDSO.

Example: AU ID 4784438. The student had 10.75 credits left to graduate. She enrolled in 9 credits through traditional AU classes and had 1.75 credits left. She was authorized by the

academic advisor and ISSS to enroll in a 2-credit internship to complete her program.

PhD in Clinical Psychology

The PhD in Clinical Psychology takes 5 to 6 years to complete and in their final year, doctoral candidates are required to serve a one-year, full-time internship in an appropriate setting outside the university. Students are required to enroll in PSYC-091 Internship (0 credits) two to three times while simultaneously enrolling in PSYC-899 Doctoral Dissertation (9 credits). Students may complete their dissertation before completing their internship.

Example: AU ID 4699466

Students should apply for **dissertation CPT** for every semester of this internship, including summers, until they defend their dissertation. ISSS practice is to inform students that if they require 12 full months of CPT to complete their internship, then they will not be eligible to apply for Post-Completion OPT. CPT authorization dates in this situation can be arranged so that there is no gap between start and end dates for each semester.

If a student defends their dissertation prior to completing their internship, and they have not used 12 months of full-time CPT, they can use Post-Completion OPT to cover the remainder of their internship period. Consult with PDSO for final decision prior to authorizing any employment.

F.2.4 CPT - HOURS PER WEEK

Students may be authorized for CPT either part-time (up to 20 hours a week) or full-time (more than 20 hours a week) during Fall, Spring, or Summer.

Students approved for part-time CPT cannot work full-time on any occasion for the CPT employment (even during school breaks while school is not in session).

Students who complete 12 months of full-time CPT become ineligible for Optional Practical Training (OPT).

ISSS practice is to advise students on potential risks of doing full-time CPT or multiple CPT's (too many CPT's) and review their request carefully, case by case. This is based on reports from other institutions of students with full-time CPT facing issues when applying for OPT or change of status in the future.

Students authorized for part-time or full-time CPT can also be authorized for on-campus employment, Pre-Completion Optional Practical Training (OPT), International Organization (IO), or Severe Economic Hardship (EH). Requests for multiple employment authorizations at the same time are reviewed carefully to ensure students will continue making normal academic progress and can be recommended. Authorization from the PDSO is required.

F.2.5 CPT - LOCATION

CPT work can be done anywhere in the United States. Remote work performed in U.S. soil is possible.

Internships with a Foreign Company

Student Inside US

Remote work for companies based overseas is considered an exception and requires PDSO approval.

ISSS practice is to request information from the Academic Department to determine how they will monitor and evaluate the internship experience before authorizing CPT. Per [SEVP Field Rep](#), if PDSO approves the CPT request, DSO should enter the student's remote location (assumed home address) in the Employer Address Section in SEVIS and add the employer's foreign address in the remarks section.

Example: AU ID 5177772

Student Abroad

Abroad internships for students who are physically outside the U.S. throughout the entire internship duration do not require CPT authorization. CPT authorization is required for students who are physically in the U.S. independent of the internship location.

ISSS practice is to advise students on the immigration implications if they decide to enter the U.S. and continue with their internship without previous CPT authorization. They will be in violation of immigration status.

F.2.6 CPT - POSITION

The CPT authorization is employer specific. Students may work for the authorized employer to perform the duties described only. The position can be paid or unpaid and must be directly related to the student's major field of study as listed on the I-20. CPT cannot be approved for academic minors or additional certificates.

Special Positions

Creative Artwork

Students who wish to exhibit off campus, whether their work is being sold or not, must have employment authorization, either CPT or OPT.

Virtual Work

Students who wish to engage in social media or other online platforms with the intention of selling products or services, or earning income otherwise, must have employment authorization, either CPT or OPT.

Athletic Sponsorship

F-1 and J-1 AU athletes are not allowed to accept sponsored gear or payment for advertisements, even if the sponsor is abroad.

Andrew Smith, Associate Athletic Director, is the point person in the athletics department for any questions students may have regarding this issue. Please refer students to him as he has worked with Senem extensively on this policy.

WCL Clinics

After considerable conversation with WCL staff, ISSS determined that WCL Clinics are viewed as Academic experiences under the supervision of AU faculty. See the [email from Lucy Newton, Associate Director of the WCL Clinical Program](#), for an in depth break down of the two types of clinic positions. Neither the Clinical Students nor the Clinical Fellows require CPT authorization based on these descriptions.

Center for Community Engagement and Service on Campus/DC Reads

Off-campus employment authorization is needed for students who wish to tutor or mentor in DC public schools through DC Reads.

Special Position Circumstances

Multiple Employers in the Same Semester

Students may work for more than one employer in the same semester if there are well-documented academic reasons for that. These cases are reviewed as exceptions and must be approved by the PDSO.

This situation is very rare and can have serious risks. ISSS practice is to advise cautiously.

In this scenario, students, in consultation with academic advisors, will select to enroll in one or more CPT courses in the same semester:

Multiple Employers Under One CPT Course:

An email from the academic advisor must be added to the CPT application explaining why multiple employers are needed to fulfill academic requirements for the CPT course.

Multiple Employers Under Multiple CPT Courses:

An email from the academic advisor must be added to the CPT application explaining why multiple employers and multiple CPT courses are needed to fulfill program requirements.

Example: AU ID 5437804

Changing Employers after CPT Approval

Students may change employers after CPT is approved. In this scenario, the current CPT approval is shortened, and a new CPT requested must be submitted by the student for the new CPT authorization.

Depending on how far in the semester the change of employers occurs, an email from the

academic advisor must be included with the new CPT application. The email must explain how/if the student will be able to fulfill all academic requirements for the CPT course by the end of last day of classes with the new proposed internship.

Multiple CPT Requests for the Same Employer

Academic requirements prohibit students from taking the same course twice. The same way, students cannot do the same internship twice, unless:

- the second internship at the same employer is an opportunity for the student to engage in different projects or assigned tasks that clearly indicate growth in responsibilities and are academically relevant, and
- an email from the academic advisor is included in the application, showing:
 - a few bullet points of what was learned and what is to be learned,
 - a statement indicating both positions were reviewed and compared and show growth in responsibilities that are academically relevant for the student.Example: AU ID 3903152

Requests for a second CPT with the same employer are reviewed are very rare and seen as exceptions to be approved by the PDSO. Advise students cautiously.

F.2.7 CPT - LENGTH (START AND END DATES)

During Fall and Spring students can be authorized for CPT between the first and the last day of classes in the semester. Over the summer students can be authorized between the summer break dates.

If summer is the final term, students can be authorized for summer CPT until the last day of classes only, either summer session 1 or 2, depending on the last day of classes for which the student is enrolled.

CPT Authorization Dates Main Campus and WCL

Term	Start Date	End Date
Fall	First day of classes	Last day of classes
Spring	First day of classes	Last day of classes
Summer	Day after last day of Spring commencement	Day before Fall first day of classes; <i>or</i> Last day of classes (if summer is the final term)

Special Situations Affecting CPT Authorization Dates

Doctoral Students

All but dissertation (ABD) students enrolled in 899 Doctoral Dissertation may be authorized CPT for longer periods if:

- the work will help them to collect data for the dissertation and to continue making normal academic progress. Supporting documentation must be provided and approved by the PDSO.
- they will be enrolled again in 899 Doctoral Dissertation in the following semester.

Ending CPT Early or not Pursuing CPT

Students may end CPT early or decide not to pursue CPT for various reasons. Once it is past the CPT authorization start date, CPT cannot be cancelled in SEVIS and must be shortened. After confirmation from the student, the CPT approval is shortened, and an updated I-20 is given to the student.

If employment ends at the beginning of the semester, students should consult their academic advisor to determine if they must drop or withdraw from the CPT course. Canceling CPT authorization **does not** automatically withdraw a student from the CPT course.

If employment ends later in the semester, students may be eligible to maintain their CPT course and be graded for the work done. An email from the academic advisor confirming the student's eligibility for the above is required before ISSS can shorten the CPT.

Example: AU ID 4453178

Extending CPT

Requests to have CPT authorized beyond the first and the last day of classes, or beyond the semester dates are carefully reviewed as exceptions, case by case.

With academic approval, students may request to change their CPT authorization end date if the end date does not go beyond the last day of classes or last day of summer. A brief email from the academic advisor must be sent to ISSS describing the academic reasons for the request. ISSS will update the CPT end date in SEVIS and issue an updated I-20.

Extending CPT beyond the semester dates is only possible if for reasons beyond the student's control, the requirements for the internship course could not be fulfilled within the semester dates. For example, a government's shutdown delaying the start or interrupting the internship. In this case, the student could request CPT extension to finish the internship and earn academic credits for the course.

Example: AU ID 4467065

A brief email from the academic advisor must be sent to ISSS stating the reasons for the CPT extension request before ISSS can issue an updated I-20. Cases must be discussed with the PDSO for approval.

CAS - MA Special Education

Students who are enrolled in EDU 492 or EDU 792 may require CPT authorization that extends outside the start and end of classes at AU to align with the start and end of classes at the student's placement school.

Example AU ID 5548411

Late CPT Requests

By the academic calendar, students have until the last day to add and drop to enroll in internship courses. However, some schools allow students to add internship courses after the deadline. Late CPT requests are carefully reviewed by ISSS to ensure students will have enough time to fulfill all academic requirements for the internship course by the last day of classes or last day of summer.

ISSS practice is to contact academic advisors to better understand the circumstances for the late request and to confirm students will be able to fulfill all academic requirements for the internship course by the last day of classes or last day of summer.

F.2.8 CPT - REPORTS

CPT Audit

Must be done a week after the last day to add and drop every spring, summer, and fall.

Previous audits can be found in the [CPT Audits](#) folder in the Sharepoint.

Students enrolled in CPT courses without CPT authorization should be contacted immediately to understand if they have started their internship and to learn more about the position. If they have started the internship, they must stop immediately. Collect as much information as possible to discuss with PDSO if this would be a case for termination based on unauthorized employment.

Students with CPT authorization not enrolled in CPT courses should be contacted immediately to understand what happened and if they plan to re-enroll for the CPT course. Students may change their minds about pursuing CPT or for various reasons needed to end the internship. The CPT authorization in these cases must be shortened in SEVIS.

Procedure to Run CPT Audit

1. Log into Sunapsis
2. Open Report Services > Custom Report Builder
3. Select Campus > The American University
4. Filter only for Ashley reports
5. Open and run two reports:
 - a. CPT Audit – CPT Approved
 - i. Under the “Curricular Practical Training” box, update the start date to say >First Day of the Month of the start of the semester

1. Example: Summer 2024 will say >05/01/2024
- ii. Run the report and open in Excel.
- iii. Clean up for duplicates:
 1. Conditionally format SEVIS Number column to highlight duplicate values.
 2. Students who have had multiple degree levels will show up multiple times. Remove the non-active levels.
- iv. Name Tab “CPT Authorizations”
- v. Save document to [CPT Audits](#) as “CPT Audit [SEMESTER] [YEAR]”
- vi. Create the following new tabs:
 1. All Internship Course Enrollment
 2. Internship courses
 3. Externship courses
 4. 91 courses
 5. EDU 498 and EDU 499 (not offered every term)
 6. EDU 792 (not offered every term)
 7. EDU 697 and EDU 699 (not offered every term)
- b. CPT Audit – Internship Class Enrollment
 - i. Under the “Current Course Schedule” box, update the checked semester appropriately.
 - ii. Run the report and open in Excel
 - iii. Add data to the CPT Audit Spreadsheet by filtering the Internship Class Enrollment spreadsheet
 1. Filter the Course_Title column for “internship”. Copy all filtered data to the Internship Courses tab.
 2. Filter the Course_Title column for “extern”. Copy all filtered data to the Externship Courses tab.
 3. Filter the Course_Catalog_Number column for “91”. Copy all filtered data to the –91 Courses tab.
 4. Filter the Course_Catalog_Number column for “EDU” and select EDU 498 and EDU 499. Copy all filtered data to the EDU 498 and EDU 499 tab.
 5. Filter the Course_Catalog_Number column for “EDU” and select EDU 792. Copy all filtered data to the EDU 792 tab.
 6. Filter the Course_Catalog_Number column for “EDU” and select EDU 697 and EDU 699. Copy all filtered data to the EDU 697 and EDU 699 tab.
 - iv. Copy the data from all these spreadsheets onto the “All Internship Course Enrollment” tab:
 1. Move the University_ID column to be column A
 2. Conditionally format University_ID column to highlight duplicates and remove duplicate rows

- v. Once you have extracted all data from the CPT Audit – Internship Class Enrollment report, you may close it.
6. Compare the data between the CPT Authorizations and the All Internship Course Enrollment sheets.
 - a. Create a new tab called “Comparison”
 - b. Copy the following columns in this order from the CPT Authorizations tab to the Comparison Tab:
 - i. University ID Number
 - ii. Status (update to CPT Status)
 - iii. Start Date
 - iv. End Date
 - c. Copy the University_ID column from the All Internship Course Enrollment tab to the Comparison Tab, under the already copied ID’s.
 - d. Remove duplicate University ID’s using conditionally formatting, as done previously
 - e. Create New Columns using V lookup to pull data from the All Internship Course Enrollment Tab:
 - i. Course Number
 1. =VLOOKUP(A2,'All Internship Course Enrollment'!A:D,4,FALSE)
 - ii. Course Name
 1. =VLOOKUP(A2,'All Internship Course Enrollment'!A:D,3,FALSE)
 - f. Create a New Column called “Notes”
 - g. Style rows “Good” for all students that have both “Approved” in the “CPT Status” column and a course enrollment
 - h. Filter for any rows that are not “Good” style. Review student’s Synopsis notes and add notes to column. Style rows “Good” if issue is resolved
 - i. Example, if Synopsis notes say student is using On Campus Employment for internship course.
 - ii. Example, if student is doing internship while studying abroad.
 - iii. Example, if student is using CPT for independent study or dissertation
7. Contact any remaining students that have not been resolved immediately to determine the appropriate action

F.2.9 CPT - AUTHORIZATION PROCESS

By the regulations, students must have their CPT I-20 in hand before their first day at the internship. Students are responsible for requesting CPT in advance to allow time for processing.

Processing Timeline

The CPT start date cannot be back dated. ISSS practice is to advise students to account for the CPT processing time when selecting their start date, generally allowing 4 weeks for the entire process to be completed.

When required for internship courses, the Internship Registration Form requires ISSS to verify a

student's eligibility for CPT authorization. This form must be completed prior to the CPT eForm being submitted in iEagle. ISSS will approve these requests within 5 business days, but additional approvals are needed before the form is completed.

When required for LLM students, the WCL CPT Approval Form requires ISSS to verify a student's eligibility for CPT authorization. The form must be completed for WCL to register the student in the externship course. ISSS will sign and return these requests within 5 business days.

CPT requests for the current term are processed in the order they are received and within two (2) weeks of receiving a completed CPT eForm or Externship Contract. Last-minute requests are expedited if possible.

CPT requests for a future term: once priority registration opens, ISSS may start receiving internship registration forms for the next term. ISSS signs for immigration eligibility and advises on the process and timelines. Students may start submitting the CPT e-form in iEagle, however, CPT's are processed 2-3 weeks before the semester start date.

Internship Registration Form

The Internship Registration Form is required by the Registrar's Office for students to get enrolled in an internship course. It is sent to ISSS first to confirm immigration eligibility. Once ISSS approves a student's eligibility, the form is routed to the faculty supervisor, academic advisor, and Registrar's Office. Finally, the Registrar's Office will register the student in the internship course and sends the student a confirmation email.

ISSS Staff Procedure to Complete Online Internship Registration Form

Complete the Online Internship Registration Form:

1. Receive the email and navigate to the student's record in Sunapsis.
2. Check for Immigration Eligibility:
 - a. Active F-1 status
 - b. SEVIS registered for the semester of CPT authorization (Can complete this when authorizing CPT)
 - c. Maintaining good academic and immigration status
 - d. One-year full-time enrollment requirement in degree-seeking program
 - i. Change of Status Students: can fulfil the requirement while enrolled with a visa other than F-1 that allowed them full-time enrollment.
 - ii. Transfer-In Students: can fulfil the requirement with enrollment from a previous institution.
 - iii. Change of Level Students: can fulfill the requirement with enrollment from a previous academic level.
3. Review the Internship Information- If more detailed information is required, reject the form and email the student asking for additional information.
 - a. Has the student provided enough detail in the Learning Outcomes?
 - b. Are the duties clearly related to the major?
 - c. Do the dates fall within the approved dates of the semester?

4. Approve or reject the form based on student's immigration eligibility:
 - a. Open the "Internship Registration form pending approval email" received from oursupport@american.edu
 - b. At the bottom of the email click "Self-Service Portal Approval Form"
 - c. You may need to click "OPTIONS" to view all the information.
 - d. Download the Internship Site Information document **before** approving. Save to your computer.
 - e. Confirm immigration eligibility by clicking "APPROVE."
 - i. If the student is not eligible, click "REJECT" and provide a reason. This reason is included in an email notification automatically sent to the student when the form is rejected. Students will receive this information in an automatic email.
5. If the form is approved, upload the Internship Site Information Form saved to your computer to student's Document Management:
 - a. Save to CPT Documentation
 - i. Click the blue upload arrow.
 - ii. AU Employment
 - iii. Office Application
 - iv. CPT
 - v. CPT Documentation
 - b. Click the Select File Arrow and choose the document.
 - c. Add Meta Data: Internship Site Information
 - d. Select Delete on upload
 - e. Click Upload File
6. If the form is approved, add the student to the CPT Checklist in Workflow Management:
 - a. Checklist Management
 - b. Plus sign
 - c. CPT checklist under Current Student
 - d. Generate Checklist
 - e. Refresh the Checklist Management and check that the CPT checklist icon under Checklists on File appears green
7. Enter notes in Sunapsis:
 - a. If the form is approved, add that you signed the internship registration form and added the student to the CPT Checklist. As part of the note, copy the email received from OUR Help Desk
 - b. If the form is denied, add that you rejected the form and include the reason. As part of the note, copy the email received from OUR Help Desk

Form Issues

If internship registration forms or CPT e-forms are received with a CPT start date in the past, ISSS will advise students they cannot start the internship until their CPT authorization have been processed and they have received their CPT I-20 with the authorized dates.

If internship registration forms or CPT e-forms are received with a CPT end date that goes beyond the last day of classes or beyond the summer dates, ISSS will advise students their CPT can only be authorized until the last day of classes or last day of summer.

ISSS practice is to advise students to consult with their academic advisor to check if their internship number of hours or number of credits must be modified based on the dates CPT can be approved by ISSS.

WCL CPT Approval Form

The WCL CPT Approval form is required for LLM students who are enrolling in an externship course. ISSS must sign off on this form to verify that the student is eligible for CPT authorization. Students can obtain a PDF on the ISSS CPT webpage:

<https://www.american.edu/student-affairs/issc/curricular-practical-training.cfm>

ISSS Staff Procedure to Complete WCL CPT Approval Form

When the WCL CPT Approval form is received:

1. Check student's eligibility for CPT:
 - a. Active Status
 - b. Degree seeking
 - c. One year full-time enrollment requirement in degree-seeking program
 - i. If student is in second semester of program, they can be approved for CPT. Send the student an email asking them to confirm if they are enrolled in the "practical track" and will be enrolled in LAW-754 Intl Legal Studies Externship.
 - d. Check Program End Date
2. If student is eligible, sign the form.
 - a. Add a note in Sunapsis record saying you signed the WCL Approval Form.
 - b. Upload the signed WCL Approval Form to the Sunapsis Profile Document Management:
 - i. Document Management
 1. Click the blue Upload Arrow
 2. AU Employment
 3. Office Application
 4. CPT
 5. CPT Documentation
 - ii. Select File
 - iii. Add Meta Data: WCL CPT Approval Form
 - iv. Select Delete on Upload
 - v. Click Upload File
3. Email the student using the template found in K:\ISSS\01 - Templates\01 - Email Templates\Employment\CPT
 - a. Attach the signed form to the email.

4. *Optional*: Open a case as a reminder that the student is in the process of applying for CPT.

ISSS Staff Process to Authorize CPT in Sunapsis

After students have taken the appropriate steps to get registered in a CPT course, they submit their official request for CPT authorization.

A step-by-step application guide is available in the ISSS's webpage:

<https://www.american.edu/student-affairs/iss/curricular-practical-training.cfm>

After a student submits the CPT eForm, if required, it gets routed to their Academic Advisor for approval. ISSS cannot start processing the CPT request until the Academic Advisor signs the eForm. Students are encouraged to notify Academic Advisor this form is coming to avoid delay. Once the form has been completed by the Academic Advisor, the eForm is considered submitted in Sunapsis and the student should appear on the CPT Checklist: 2. CPT eform submitted.

Follow these steps to process the CPT eForm:

1. Go to Checklist Management and enter Checklist: 2. CPT eform submitted.
2. Look for students with a completed e-form with the  symbol.
3. Navigate to student's record by clicking the student's name.
4. From the Checklist, use the Institutional Documentation to Check the Following information and check off the tasks:
 - a. Check Sunapsis Profile
 - i. Any pending alerts that would prevent CPT authorization
 - ii. Any notes, going back one year, that might prevent CPT authorization
 - iii. Active SEVIS record
 - iv. Degree-seeking program
 - v. I-20 end date lasts for at least the semester for which CPT is requested
 - b. Check SEVIS record from Sunapsis SEVIS Management:
 - i. SEVIS Registration for semester for which CPT is requested.
 1. If not, register student in SEVIS prior to processing CPT.
 - ii. Check student is in the US
 - iii. Check student is SEVIS eligible (one academic year in F-1 degree program)
 - c. Check CPT History from Sunapsis Record Management > I-20 Detail Information > Curricular Practical Training:
 - i. Any previous CPT authorization
 - ii. If yes, is the employer the same?
 1. If the student has previously done CPT with the same employer, advise them that the position needs to be different than the previous position and that they will need to demonstrate this

difference, preferably with a new offer letter and a letter of support from their academic advisor.

- iii. If yes, have they completed 12 months of full time CPT?
 - d. Check Academic Record from Eagle Service > Advising > Unofficial Transcript:
 - i. GPA
 - ii. Full time enrollment throughout program
 - iii. Incomplete or missing grades
 - iv. Enrolled in internship course for semester CPT is requested
 - v. Previous internship courses without authorization
 - vi. Only online class if final term?
 - 1. Student cannot enroll in only online class in final term
 - vii. If SPA/SIS Graduate student, cannot be doing a second internship in an 091 course.
 - viii. If students have taken any other X91 internship course, they cannot be authorized for CPT for a 091 internship course
 - e. Check CPT eForm and Internship Information from Sunapsis Workflow Management > E-Form Management > Pending CPT Request:
 - i. Signed internship registration form, externship contract, or employment letter is attached to the request, correct, and complete
 - ii. Open request form and verify the number of credits for the course
 - 1. Beware of courses that are tied to a large number of credits.
 - iii. CPT eform information is correct and complete
 - iv. Hours in internship registration form, externship contract, or employment letter match hours on the CPT e-form
 - v. Requested CPT dates fall within the semester course dates
 - vi. Second Approver Section- Check Advisor has signed off appropriately, if applicable
 - f. If everything looks good, move on to processing the CPT. If anything needs clarification, email the student.
5. Process the CPT:
- a. NOTE: Student If the student is not registered, process the SEVIS registration prior to authorizing CPT.
 - b. Under Workflow Management, open the CPT eform
 - c. Click the blue forward button to apply the template. Click CPT Request. Answer Yes
 - d. View the information that populates to ensure that no updates need to be made. Click the save icon
 - e. Either Batch CPT or RTI CPT:
 - i. Batch:
 - 1. Click the Apply SEVIS Action button
 - 2. Click Batch F-1 Student | CPT Employment | Add
 - 3. Input correct information, ensuring Print I-20 is checked
 - 4. Click GENERATE AN APPROVED SEVIS BATCH

- ii. RTI:
 - 1. Open RTI Embedded Browser and navigate to the student's SEVIS record
 - 2. Click CPT Employment Authorization from the left menu
 - 3. Click New CPT Employment
 - 4. Click the Populate Fields button in the bottom right corner. The information from Sunapsis should appear
 - a. You may need to click the Edit Employer Address link to approve the employer address.
 - 5. Click Add Employment
 - 6. Click Print I-20 to make the SEVIS RTI document save to the student's Sunapsis Documents
- 6. Sign CPT I-20, including travel signature. Check for dependent I-20's.
 - a. In Document Management, expand AU – SEVIS Documents and open the SEVIS RTI or BATCH pdf by double clicking
 - b. After signing the PDF, click save (without updating the document name)
 - c. This should update the document directly in Sunapsis. (NOTE: this will not change the date shown in the document name in Sunapsis.)
- 7. Reindex CPT I-20 and add Meta Data
 - a. Click once on the document to highlight the document.
 - b. Click the paper with pencil icon to add Meta Data
 - c. In the pop up window, add Meta Data: [SEMESTER OF CPT]
 - d. Click OK
 - e. While the document is still highlighted, click the blank text box icon
 - f. In the pop up box, click AU – SEVIS Documents > CPT I-20
 - g. Click Save
- 8. Complete the CPT Request e-form
 - a. Under Workflow Management, open the CPT eform
 - b. Click the green check icon
 - c. The email template automatically opens. Send it from isssemployment@american.edu.
 - i. No edits need to be made to the email.
- 9. Add notes to Sunapsis profile that CPT was processed.

F.3 OPTIONAL PRACTICAL TRAINING (OPT)

F.3.1 OPT - DEFINITION

8 CFR 214.2(f)(10)(ii)

“Consistent with the application and approval process in paragraph (f)(11) of this section, a student may apply to USCIS for authorization for temporary employment for optional practical training directly related to the student's major area of study. The student may not begin optional practical training until the date indicated on his or her employment authorization document, Form I-766. A student may be granted authorization to engage in temporary employment for optional practical training:

- During the student's annual vacation and at other times when school is not in session, if the student is currently enrolled, and is eligible for registration and intends to register for the next term or session.*
- While school is in session, provided that practical training does not exceed 20 hours a week while school is in session; or*
- After completion of the course of study, or, for a student in a bachelor's, master's, or doctoral degree program, after completion of all course requirements for the degree (excluding thesis or equivalent). Continued enrollment, for the school's administrative purposes, after all requirements for the degree have been met, does not preclude eligibility for optional practical training. A student must complete all practical training within a 14-month period following the completion of study, except that a *17-month extension pursuant to paragraph (f)(10)(ii)(C) of this section does not need to be completed within such 14-month period.*

Termination of practical training: Authorization to engage in optional practical training employment is automatically terminated when the student transfers to another school or begins study at another educational level.”

**USCIS website that hosts the CFR still refers to 17-month extension even though it is now 24 months.*

F.3.2 OPT - HIGHLIGHTS

Student Eligibility:

- Must be in active F-1 status.
- Must be maintaining good immigration and academic status.
- Must have been enrolled in a degree seeking program for at least one (1) full academic year (Fall and Spring).
- Internship/job offer is not required to apply.
- Pre-completion OPT – must maintain full time enrollment (or RCL).

- Post-completion OPT -- must have completed all course requirements for the degree.

Hours Per Week:

- Part-time (up to 20 hours a week) while school is in session (Fall/Spring), and
- Full-time (more than 20 hours a week) during annual vacation (Summer).
- Post-completion OPT can be done full-time only (more than 20 hours a week)

Location:

- Anywhere in the US.

Position:

- Paid or unpaid work related to major field of study.

Length (Start and End Dates):

- Students are allowed up to twelve (12) months of OPT per higher degree level.
- Students may start OPT before graduation (pre-completion OPT) or after graduation (post-completion OPT).
- Students may request multiple pre-completion OPT authorizations not to exceed twelve (12) months full time.

F.3.3 OPT - STUDENT ELIGIBILITY

Active F-1 students who are maintaining good immigration and academic status become eligible for OPT after being lawfully enrolled full-time in a degree seeking program for at least one full academic year (Fall and Spring). Summer does not count as a term for OPT eligibility purposes.

Graduate Certificate

Graduate certificate students with an I-20 issued by American University are eligible for OPT. Usually, those are a one-year long program and students may select to apply for Post-completion OPT. Keep in mind that if students have done OPT at the masters level before, they will not be eligible again.

CPT Impact on OPT

Students who are approved for 12 months or more of full-time CPT are not eligible for OPT. ISSS practice is to carefully review CPT applications from students with multiple CPT's and advise on potential risks for OPT or a future change of status.

Since CPT is done for academic credit and academic programs have a limit on the number of credits students can use for CPT, most students at AU will not come close to the 12 months limit.

Probation, Missing Grades, Incomplete/In-Progress Grades, Credit Overload

Pre-completion OPT applications from students on probation, with pending or incomplete/in-progress grades, or enrolled in overloaded credits are reviewed carefully, case by case, and require PDSO approval.

Probation - ISSS practice is to contact academic advisors to understand if OPT can be recommended in these cases. If OPT can be recommended, ISSS will not deny the OPT application.

Missing grades, incomplete/in-progress grades from previous semesters – grades must be posted on the transcript before ISSS can recommend for either pre-completion or post-completion OPT. Exception: the final grade for some courses for the JD/SJD program are only posted at the end of the academic program as students progressively work towards completing the course by the end of their program.

Incomplete/in-progress grades at the current term - ISSS practice is to confirm with academic advisors that there is a plan in place for the student to finish the class by the end of the current term and graduate on time before ISSS can recommend for post-completion OPT.

Credit overload – ISSS carefully reviews the student's overall academic progress and discusses with the student their individual plans and circumstances for applying for pre-completion OPT employment on top of their full academic schedule.

MA/LLM International Human Rights and Humanitarian Law Dual Degree

Students in the MA/LLM International Human Rights and Humanitarian Law dual degree program (WCL and ITAM – Mexico) spend two summers enrolled at AU and therefore, are not eligible for OPT.

PhD Cases

Pre and Post Completion for All but Dissertation (ABD) PhD's

ABD students may apply for standard pre-completion OPT or post-completion OPT. They may also apply for post-completion OPT to be used while dissertation is in progress (before graduation).

Pre-completion OPT can be requested part-time (Fall/Spring) and full-time (Summer). Students must maintain enrollment in 899, except during the summer. ABD students who apply for pre-completion OPT are subject to the pre-completion OPT regulations.

Example of use of pre- completion OPT: AU ID 2414571

Post-completion OPT can only be requested full-time (more than 20 hours a week). ABD students who apply for post-completion OPT to be used after graduation are subject to the post-completion OPT regulations.

Post-completion OPT (pursued while dissertation is in progress) for ABD

Post-completion OPT pursued before graduation can only be requested full-time (more than 20 hours a week). Students must maintain full time enrollment in 899 and finish all US program requirements by the end of their OPT authorization. Immigration program extension beyond the OPT end date is not possible. Students can talk to their Academic Departments to determine if they can complete outstanding program requirements abroad.

To recommend ABD students for post-completion OPT before graduation, the I-20 is shortened to the end date of the semester when ISSS will recommend OPT. Each case is individually reviewed.

Post-completion OPT pursued while dissertation is in progress example: AU ID 5006881, 4805102

ISSS Advisors must carefully review this option with eligible students to ensure they can finish all program requirements by the end of their OPT authorization.

Academic Level - Eligibility Issues

Splitting OPT

As of November 2017, NAFSA was alerted that USCIS may not grant OPT to students wishing to “split” their 12 months of OPT between two programs at the same academic level. Previously, SEVP policy stated that students could save OPT time for more than one program at the same level (i.e., use 6 months of OPT for MA in Finance, then use the remaining 6 months for MA in Accounting). Students who ask about splitting their OPT time should be advised that this may no longer be possible and could such requests could result in the loss of OPT time.

Master's and Graduate Certificate

Master's and graduate certificate are considered the same academic level for OPT purposes. Graduate certificate students who have already done a master's level OPT are ineligible for OPT for the graduate certificate program and vice versa.

Master's and MBA

Master's and MBA are considered the same academic level for OPT purposes. MBA students who have already done a master's level OPT are ineligible for OPT at the MBA program and vice versa.

JD and LLM

JD and LLM can be considered different academic levels for OPT purposes. ISSS will recommend OPT for LLM students even if they have used OPT or not at the JD program. ISSS practice is to advise students that a final decision will be made by USCIS.

One (1) Year Full-Time Enrollment Requirement

The one (1) year full-time enrollment requirement can be fulfilled at AU or at any other SEVP approved college, university, conservatory, or seminary in the US.

Transfer-In

Transfer-in students who transfer to AU from another SEVP approved college, university, conservatory, or seminary in the US., have no break in F-1 status, and have accrued the one-year full-time enrollment requirement at the other school are eligible for OPT right after enrolling full-time at AU and becoming active in SEVIS. This includes students who are transferring from OPT to a degree program at AU (i.e., bachelor to master). If a student has not accrued one full year of enrollment at their previous school, they must complete the remaining time at AU before becoming eligible for OPT authorization. For example, a student who completed one semester at another SEVP approved university must complete one full semester at AU before becoming eligible for OPT authorization.

Example: AU ID 3486601

ISSS practice is to discourage students from pursuing pre-completion OPT in the first semester before some required courses are taken that would justify the need for practical training in their new major field of study.

First semester OPT requests from transfer in students are reviewed carefully, case by case, and must be approved by the PDSO. Students are advised on the risks and red flags of pursuing pre-completion OPT in the first semester, especially if moving straight from post-completion OPT. They are advised on the risks of their pre-completion OPT being perceived as continuous employment.

Change of Level

Time spent in high school or at non-degree programs such as English training (ELTA), Pathway programs for English purpose (IAP), and American Collegiate (ACDC) does not count toward fulfilling the one (1) year enrollment requirement. Students who change academic level from ELTA, IAP, ACDC, or any other non-degree program must spend at least one year enrolled full-time in an undergraduate or graduate program before they can apply for OPT.

Students who move from one degree program to another (for example, BA to MA) with no break in F-1 status are eligible for OPT in their first semester at the new academic level, provided they have met the one-year full-time enrollment requirement in their previous degree program. This includes students who are changing level from post-completion OPT. If a student has not accrued one full year of enrollment in their previous degree level, they must complete the remaining time in their new degree level before becoming eligible for OPT authorization.

ISSS practice is to discourage students from pursuing pre-completion OPT in the first semester before some required courses are taken that would justify the need for practical training in their new academic level.

First semester OPT requests from change of level students are reviewed carefully, case by case, and must be approved by the PDSO. Students are advised on the risks and red flags of pursuing pre-completion OPT in the first semester, especially if moving straight from post-completion

OPT. They are advised on the risks of their pre-completion OPT being perceived as continuous employment.

Graduate Students who Change Academic Program

Graduate students who, with departmental approval, change programs, receive a new initial change of level I-20. If they have met the enrollment eligibility, ISSS will recommend them for OPT for their second program.

Combined BA/MA program

Students in a combined BA/MA program are eligible for graduate level post-completion OPT at the end of the combined program.

Students who finish all undergraduate level courses in spring and wish to do an internship over the summer, before starting graduate level courses in the fall, have the option to apply for summer CPT or OPT. (CPT is discussed under the [CPT chapter](#)).

Summer Only OPT

If the duration of the internship is for the summer only, students may apply for undergraduate level post-completion OPT. ISSS will require confirmation from the academic department that the student has in fact completed all required courses for the undergraduate level in the spring. Academic advisors can use the “Completion of Academic Program” e-form for this confirmation. ISSS will issue a COL I-20 for the graduate program in the fall. ISSS practice is to advise students on the procedures and timelines for OPT approval.

Full Year OPT

For students who wish to pursue full-length undergraduate level post-completion OPT after finishing undergraduate level courses in spring:

- ISSS needs confirmation from the academic department that the student has in fact completed all required courses for the undergraduate level in the spring. ISSS will shorten the I-20 to request post-completion OPT in SEVIS.
- ISSS will advise the student to consult with the academic department for academic permission to take a break between the two academic levels and ensure all credits taken will continue to apply towards completion of the combined BA/MA program once they return from OPT (from previous ISSS experience, students have not been allowed by BA/MA combined programs to take a break between levels).
- ISSS will need to see a new admission record for the master’s level for the semester following the end of OPT before can issue the COL I-20.

Visa Status

Students may fulfill the one (1) year full-time enrollment requirement in any visa status that allows them to be in school full-time, such as A2 or H4 dependent visas. However, they must be in active F-1 status by the time they request OPT.

The change of status to F-1, either by traveling or changing status in the United States, must happen without any breaks in enrollment. For example, a student attends fall full-time under the H4 visa, goes home during the holidays, and returns to the U.S using her F-1 visa in the spring.

ISSS practice is to receive confirmation in writing from students they were in the U.S. and maintained immigration status while enrolled full-time before changing to F-1. Students who have not accrued the one year requirement in F-1 status will need to provide transcripts showing their full-time enrollment with their OPT application to USCIS.

Returning from Temporary Leave

Students returning from temporary leave receive a new initial I-20 from ISSS. Since there is a break in immigration status, they must enroll full-time (or with approved RCL) for at least one academic year after returning to the U.S. to regain OPT eligibility.

Study Abroad and Field Research Abroad Students

Time spent abroad through AU study abroad programs counts toward fulfilling the one (1) year enrollment requirement if the student has spent at least one semester at AU in the U.S. before going abroad.

Time spent conducting field research abroad (PhD students only) counts toward fulfilling the one (1) year enrollment requirement.

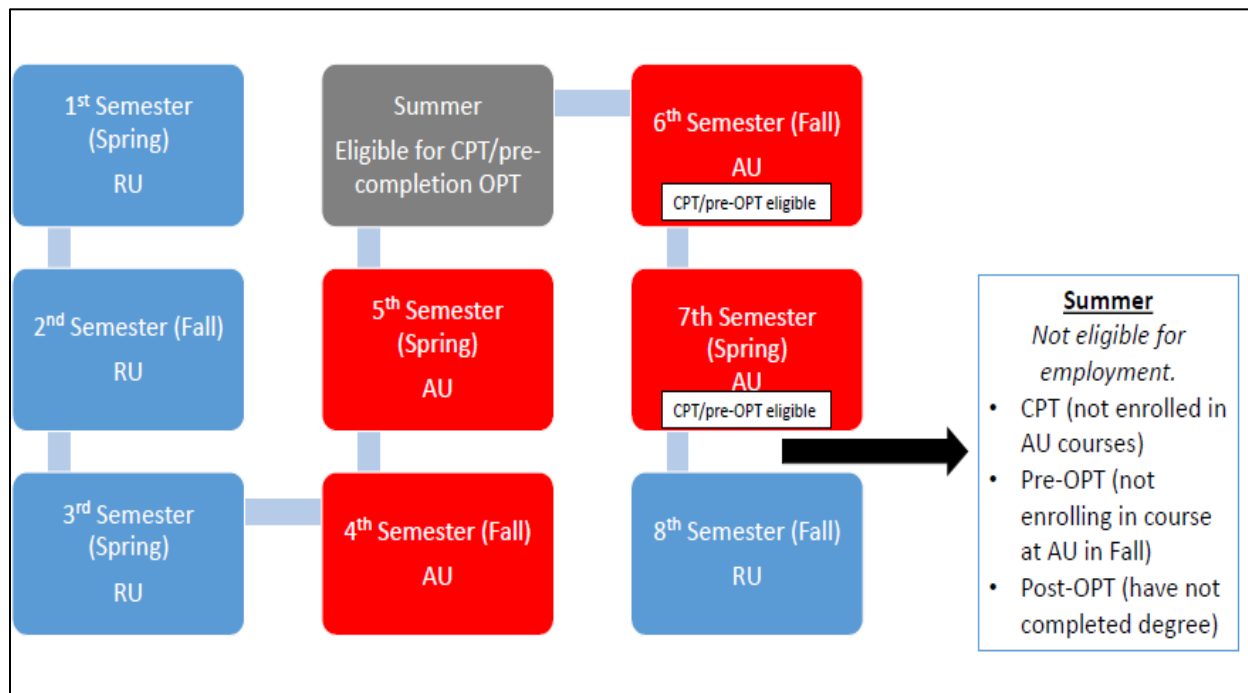
Joint/Dual Degree Programs

Ritsumeikan University (RU)/AU Joint Degree - Undergraduate Students

Time spent abroad at RU does not count towards fulfilling the one (1) year enrollment requirement. These students become eligible for OPT after being enrolled for one academic year at AU in the U.S.

Upon completion of four semesters at AU in the U.S., they are required to return to RU to finish their degrees. After completing their final semester at AU, Post-Completion OPT is not an option for them because they have not yet completed all their program requirements.

Please see summary chart:



Ritsumeikan University (RU) and Sookmyung University (SU) Dual Degree Program - Graduate Students

For immigration purposes, RU and SU graduate students are eligible for post-completion OPT if they have finished all of their dual degree program requirements while at AU. In some cases, they must return to their home institutions to complete further academic requirements (right after finishing their AU program) and cannot stay for post-completion OPT.

ISSS practice is to contact SIS, Christine Gettings, to receive written confirmation the student is allowed to stay in the U.S. for post-completion OPT.

University of Warwick/AU Joint Degree

SIS and the University of Warwick operate a joint-degree program, with the last portion of their program being completed at AU, by submitting their SRP to SIS.

Students should work with their academic advisor to determine a program completion date for their post-completion OPT application.

Kogod BS/MS Joint Program

Students in the joint BS/MS who graduate in December from their BS program must wait until the following fall to continue with the MS program. They are enrolled as “maintaining matriculation” between the two academic levels.

1. Students may apply for and be on OPT between their BS and MS. During “maintaining matriculation” they cannot enroll for classes, so it does not violate any OPT requirements.
2. The OPT will automatically end when our office issues a new COL I-20 for the MS program. Students must stop employment a day before the new I-20 is issued.

F.3.4 OPT - HOURS PER WEEK

Pre-completion

Pre-completion OPT can be requested either part-time (up to 20 hours a week) while school is in session (Fall/Spring), or full-time (more than 20 hours a week) during annual vacation (Summer).

Students must submit separate applications for part-time and full-time OPT. Students with approved part-time pre-completion OPT cannot work full-time during school breaks or annual vacation.

Students who plan to pursue the equivalent of up to 12 months of full-time pre-completion OPT have two options:

- apply for part-time pre-completion OPT for the desired length. They cannot work full-time during school breaks or annual vacation.
- Apply for part-time pre-completion OPT for fall and spring and submit a separate application for full-time pre-completion OPT for the summer. The winter break is short, so most students may not show interest in applying for full-time OPT for the short period.

Students authorized to work on-campus can also request pre-completion OPT. Each type of employment authorization carries its own hour limitation separate from others. Requests for multiple employment authorizations at the same time are carefully reviewed to ensure students will continue to make normal academic progress before they can be recommended.

Summer as Final Term

Degree seeking students, in which summer enrollment is optional, who decide to complete their academic program in the summer, may apply for part-time or full-time pre-completion OPT in the summer.

Post-completion

Post-completion OPT can only be requested full-time. Students must work at least 20 hours a week to maintain OPT status.

F.3.5 OPT - LOCATION

OPT authorizes work anywhere in the United States. Remote work performed in U.S. soil is possible. When adding employment for remote positions, follow instructions [provided by the SEVP Field Representative](#) to input the employment address as the address where the student will be completing the work and add in the remarks the employer’s address.

Students maintaining OPT status may leave the U.S. for short vacation periods and seek readmission into the U.S. to resume employment.

F.3.6 OPT - POSITION

A job offer is not required to apply. Students may work in paid or unpaid/volunteer positions that are directly related to their major field of study.

Self-employment is possible pre- and post-completion. Students may have one or multiple employers at the same time. There is no limit.

Students may be hired by third parties (staffing agencies) to provide services related to their major field of study.

Pre-completion

Even though a job offer is not required for OPT application, ISSS practice is to recommend students applying for pre-completion OPT secure a position beforehand to better determine their OPT start date and avoid the risk of losing unused OPT time.

Under pre-completion OPT, students are not limited to 90 days of unemployment. Instead, they lose any unused time.

Post-completion

Even though a job offer is not required for OPT application, ISSS practice is to recommend students applying for post-completion OPT assess how much time they will need for their job search before deciding on their OPT start date.

Under post-completion OPT, students are limited to 90 days of unemployment from their OPT start date.

Students may work at AU using post-completion OPT if their employment is related to their major field of study.

Special Cases

MFA in Studio Arts

Work associated with the course “ARTS-797 master's Thesis Seminar” and the resulting exhibit at Katzen does not require employment authorization. The work is done for a course, is presented on campus, and the students are not selling their work at Katzen during the exhibit.

Other Creative Work

Students who wish to exhibit off campus, whether their work is being sold or not, must have employment authorization, either CPT or OPT.

Virtual Work

Students who wish to engage in social media or other online platforms with the intention of selling products or services, or earning income otherwise, must have employment

authorization, either CPT or OPT.

Athletic Sponsorship

F-1 and J-1 AU athletes are not allowed to accept sponsored gear or payment for advertisements, even if the sponsor is abroad.

Andrew Smith, Associate Athletic Director, is the point person in the athletics department for any questions students may have regarding this issue. Please refer students to him as he has worked with Senem extensively on this policy.

WCL Clinics

After considerable conversation with WCL staff, ISSS determined that WCL Clinics are viewed as Academic experiences under the supervision of AU faculty. See the [email from Lucy Newton, Associate Director of the WCL Clinical Program](#), for an in depth break down of the two types of clinic positions. Neither the Clinical Students nor the Clinical Fellows require OPT authorization based on these descriptions.

Center for Community Engagement and Service on Campus/DC Reads

Off-campus employment authorization is needed for students who wish to tutor or mentor in DC public schools through DC Reads.

F.3.7 OPT - LENGTH (START AND END DATES)

Students may request up to 12 months of OPT per degree level if eligible. The 12 months can be used before graduation (pre-completion OPT) or after graduation (post-completion OPT).

Students may split the 12 months before and after graduation:

- The OPT months used full-time pre-completion are fully deducted from post-completion. For example, a student who does 4 months of full-time pre-completion OPT will have 8 months left for post-completion OPT.
- The OPT months used part-time pre-completion are partially deducted from post-completion. For example, a student who does 4 months of part-time pre-completion OPT will have 10 months left for post-completion OPT (4 months part-time is deducted as 2 months full-time).

Work can begin only after the EAD card is received and on or after the start date indicated on the card.

Multiple OPT's

Students may request pre-completion OPT more than once. Each request requires a new application (including fee) from USCIS. Students should keep track of how much time of their OPT they are using pre-completion to determine if/what to request for post-completion OPT.

Examples: AU ID 4547163, 5055218

Ending OPT Early

Students who depart the U.S. without the intention to return to resume OPT have their F-1

status completed in SEVIS. They must notify ISSS of their departure date through the “Ending OPT” e-form in iEagle.

Students who plan to transfer to another school in the U.S. have their SEVIS record transferred out (if eligible) and should not submit this e-form. OPT authorization ends on the transfer release date.

Students who change level at AU receive a new I-20 and should not submit this e-form. OPT authorization ends on the date the COL is processed.

Students with an approved change of status have their SEVIS record terminated and should not submit this e-form. OPT authorization ends on the date the record is terminated.

Pre-completion

Eligible students may select to start and end pre-completion OPT at any time during their full course of study. ISSS recommends students apply up to 90 days before the intended employment start date.

Students may use their full twelve (12) months of OPT pre-completion. If they wish to work full-time during school breaks or annual vacation, they must submit a separate OPT application to request full-time OPT during these times.

Pre-completion OPT cannot be requested beyond the commencement date. Students who apply for pre-completion OPT in their final semester and wish to continue OPT after graduation, must submit a new OPT application for post-completion.

Post-completion

Start Date

Students must select a start date that is within their 60-day grace period. Students are responsible for choosing their OPT start date based on their individual circumstances.

ISSS advises students to consider their current job search when selecting their OPT start date. However, ISSS cannot select their OPT start date for them.

ISSS practice is to advise students a final decision on their OPT start date must be made before they submit their OPT application to ISSS for OPT recommendation. If a student submits a request and then changes their mind about their requested start date, they must email ISSS to cancel their request and then submit a new request in iEagle.

Once a student submits their application to USCIS, they cannot change their requested start date. USCIS may change the student’s requested date if the student’s application is not adjudicated prior to the requested start date. In these situations, USCIS usually moves the OPT

start date to the date upon which the application is adjudicated.

End Date

Students who have not used any of the 12 months of OPT for Pre-Completion OPT can be recommended for a full 12 months of Post-Completion OPT. Their requested end date should be one year minus one day from their requested OPT Start Date.

Students cannot receive OPT authorization that lasts beyond 14 months of their program completion date. ISSS practice is to advise students that they should apply for OPT early to avoid losing any of their OPT time.

F.3.8 OPT - REPORTS

OPT Extract

OPT Extract is done weekly by OPT advisor to ensure accurate record keeping.

To run the OPT Extract, take the following steps:

- Log in to Sunapsis RTI Embedded Browser
- Open the Student Lists Tab and select the “Students With Requested, Pending, or Approved Optional Practical Training (OPT)”
- At the bottom of the page, note the total number of entries
- In the Sunapsis menu at the top, select the gear arrow button 
- In the Extract RTI Data pop up window, select “Optional Practical Training Update” and click Apply
- In the Data Extraction Process pop up window, input the following information:
 - Start Record Number: 1
 - End Record Number: The Total Number of Entries (from above) + 1
 - Every other extract, check the box
 - Click Run Extraction
- The bottom of the screen will show a processing timeline. It must reach 100% to confirm the extraction went through. You will not be able to process in SEVIS RTI while the extract is running.

International Student Employers for University Career Center

A list of OPT employers is sent to the Career Center biannually in early January for the previous May graduates and early June for the previous December graduates. Point of Contact for this list is Julie Jones, juliej@american.edu.

The list should include information on any employment reported in the time post-graduation and up to the date of running the report. Include the following fields:

- Last Name- as reflected on immigration documents
- First Name- as reflected on immigration documents

- University ID Number
- Education Level- as reflected on I-20 for this period of employment authorization
- Primary Major- CIP code on I-20
- Start Date- of reported employment
- End Date- of reported employment
- Full/Part Time- of reported employment
- Employer Name- as reported by student
- Job Title- as reported by student
- Employment City- as reported by student
- Employment State- as reported by student

F.3.9 OPT - APPLICATION PROCESS

The earliest students can apply for OPT is 90 days before their desired employment start date (pre-completion OPT) or 90 days before their program completion date (post-completion OPT). Students applying for post-completion OPT can also apply during their 60-day grace period. ISSS practice is to encourage students to apply as early as possible.

All the steps to apply for OPT are described in ISSS's webpages:

- Post-Completion OPT: <https://www.american.edu/student-affairs/iss/post-completion-opt.cfm>
- Pre-Completion OPT: <https://www.american.edu/student-affairs/iss/pre-completion-opt.cfm>

1. Student Applicant Requests OPT I-20 in iEagle

Student completes OPT Information e-Form

This e-form provides an overview on the OPT application process and the regulations governing OPT. Students must complete the quiz before OPT can be recommended.

Student completes the Completion of Academic Program (CAP) e-Form

Students select their desired OPT start and end date in this e-Form. ISSS practice is to advise students a final decision on their OPT start date must be made before they submit their OPT application to ISSS for OPT recommendation.

Once student completes the form, it is routed to their selected Academic Advisor. The Academic Advisor confirms the student's anticipated completion date. Students must be certified by academic advisors that they will complete/have completed all program requirements by a certain date. This information is needed for both pre-completion and post-completion OPT applications.

Completion of Academic Program Dates for Post-Completion OPT

Students must discuss with their academic advisor what is their expected program completion date based on their individual academic circumstances. Currently, students have the following

options to select as their program completion date:

1. Graduation (Commencement) date (Fall/Spring)
2. Last day of classes. (Summer only)
3. Date the student will be notified of the results of comprehensive exams (Graduate level)
4. Date the student will complete an SRP or THESIS (Graduate level)
5. Date the student will defend or be notified that a DISSERTATION will be complete (PhD only)
6. Coursework completion date as confirmed by the WCL Registrar for WCL JD Compressed courses (WCL JD Summer graduates only)- **Example: AU ID 5410364**

Undergraduate and graduate students completing their program in the summer must select their last day of finals as their program completion date or defense date (PhDs) for OPT purposes.

PhD Students Completing their Program in the Summer

All summer Ph.D. graduates can use the dissertation defense date or the summer session's last finals date as program completion for OPT application, whichever is later. Scenarios:

- student is enrolled in first summer session and defends on June 10. They can use the defense date or the first session end date in late June for program completion.
- student is enrolled for 2 summer sessions, defends on July 31st, they can use either July 31st or August 14, which is the summer session's last final exams date.

If the defense date is later than the last finals, i.e., August 14 this year, then we would need a memo to keep in the student's file to discuss the reasons for the delay.

If the defense date is after the next semester start date, August 30th for Fall 2021 in this case, student must enroll in 899 for fall semester to stay in good immigration status.

Student completes the OPT Application e-Form

In this e-Form, students submit documents required for USCIS I-765 Post-Completion OPT application, including:

- I-94
- Passport (valid for at least 6 months into the future)
- Previous EAD card(s) if applicable
- Previously Authorized CPT I-20's signed by the student (if applicable)
- Previously Authorized OPT I-20's signed by the student (if applicable)

OPT Application Documents and Potential Issues

I-94

Students must submit their most current I-94 admission record. Students who cannot access it online are required to go to a deferred inspection site either at Dulles or BWI airport to request

a copy.

Passport

In general, students are advised to hold a passport that is valid for at least 6 months in the future. For post-completion OPT applicants, the recommendation is to have a valid passport that won't expire until at least the end of their OPT, but it is not required.

For students renewing their passport by the time they apply for OPT, they must include proof of pending passport renewal with their application to ISSS, together with a copy of their current expiring passport. In this scenario, ISSS will recommend OPT for the full length.

Visa

Students are not required to submit a copy of their most recent F-1 visa with their OPT application to ISSS. However, ISSS practice is to alert students if their visa is expiring or expired.

Students who renewed their visa must report it to ISSS through the "F-1 Passport and Visa Update" e-form in iEagle.

Students who have not renewed their visa are advised to report it to ISSS as soon as they have one. ISSS will not deny their OPT application, since a valid F-1 visa is not required for OPT.

I-20

Students are required to include copies of all previously authorized CPT or OPT I-20s, including those from previous schools attended, in their OPT application with USCIS. Dependent I-20s are not included in their OPT application. ISSS can provide copies of missing AU I-20s to students upon request. Students may contact their previous institutions for copies of any missing I-20'S.

DSO signature missing - if the DSO who issued the old I-20 is no longer with ISSS, and the I- 20 copy on file is not signed, the DSO signature field is left blank.

Student signature missing - students are asked to sign their I-20 copy without entering a date and to make a new copy to use with their OPT application.

In both cases, ISSS will place a "copy" watermark in the center of all I-20 pages.

EAD

Students are required to include copies of the front and back of all previously issued EAD cards.

I-765

Students are advised to use the online application for (c)(3)(A) for Pre-Completion OPT or (c)(3)(B) for Post-Completion OPT.

Photos

One new passport photo is required in the online application. ISSS advises students to use a photo that is brand new and never used before (taken within the last 30 days). ISSS discusses

with students the importance of having a good quality photo that meets all measurements and style requirements from USCIS to avoid the risk of OPT rejection or denial.

Filing Fee

Students pay the OPT filing fee online with a debit or credit card. More information can be found here: <https://www.uscis.gov/i-765>

When to Include a Memo with the OPT Application

ISSS recommends including a brief memo to prevent delays and a potential RFE under the following circumstances:

- Missing previously authorized CPT or OPT I-20s and do not have access to a copy
- Missing copies of previously issued EAD's
- I-94 mismatch
- Cannot fit their full name in the online application
- Multiple previous EAD cards that cannot all be uploaded to the online application
- Incorrect information on previous EAD card (**Example: AU ID 4167243** – student's previous EAD card had wrong photo)

2. ISSS Reviews OPT I-20 Request and Issues OPT-Recommended I-20

Follow these steps to process the OPT-Recommended I-20:

1. Review student's request for OPT I-20:
 - a. From the Control Center, Open Checklist Management
 - b. Open the Post Completion OPT Request & Reporting Stage 2: OPT I-20 Creation Pending checklist
 - c. Navigate to the student's Sunapsis profile by double clicking their name
 - d. Expand Workflow Management and open the Post-Completion OPT Request & Reporting in Started Status
 - e. Complete the tasks on the Checklist and mark them complete by right-clicking and selecting the status:
 - i. Task: Check Academic Eligibility- in EagleService. In a web browser, open EagleService, log in, navigate to Advising, search for student's AU ID, click View Details
 1. Verify full-time enrollment for 1 academic year
 - a. View the Unofficial Transcript tab, and download the Unofficial Transcript
 2. Courtesy check that student has submitted Graduation Application
 - a. Scroll to the right from the Unofficial Transcript tab using your keyboard arrow keys to the Graduation Application Tab and see if the student has a green check Application submitted.

- ii. Task: Check Sunapsis
 - 1. Check Alerts for anything that would prevent issuing the OPT I-20
 - 2. Check Notes for anything that would prevent issuing the OPT I-20
 - 3. Check Double Major/Dual Degree because students with a double major need to submit two CAP e-Forms
 - iii. Task: Check SEVIS eligibility- in SEVIS RTI browser. From the student's Sunapsis profile, expand Profile Management, and click the Go to SEVIS RTI button (person with binoculars).
 - 1. Verify active F-1 Status
 - 2. Verify degree seeking
 - 3. Verify SEVIS registered for current semester
 - 4. Check for previous Post-Completion OPT at same or higher degree level- Previous OPT at same or higher degree level makes them ineligible for OPT
 - 5. Check for previous Pre-Completion OPT at same degree level and calculate remaining OPT days
 - 6. Check for full time CPT for 12 months at same degree level- 12 months of full time CPT makes them ineligible for OPT
 - iv. Task: Check Supporting Documents- in the e-Form. Return to the Post-Completion OPT Request & Reporting tab and click the Generate an e-Form Dossier button (note page with gear) to generate a PDF of the OPT e-Forms and attached documents
 - 1. I-94 must be issued for F-1 and D/S
 - 2. Passport must be valid for at least 6 months into the future
 - 3. Previous CPT I-20's must have a student's hand signature
 - 4. Previous EAD Card should include front and back
 - 5. Previous OPT I-20's must have a student's hand signature
- f. Review the student's submitted CAP e-Form in the e-Form Dossier.
 - i. Review the student's requested OPT Start and End dates and ensure they fall within the applicable time frame.
 - ii. Check the Academic Advisor confirms the student's completion date.
- 2. If required, shorten the student's program and mark Task: Program Shorten as "approve" on the checklist
 - a. Determine the appropriate Program End Date and then shorten the SEVIS record in the RTI Embedded Browser.
- 3. Recommend the student for OPT either in RTI or via batch:
 - a. Create the OPT record in Sunapsis:
 - i. From the Post-Completion OPT Request & Reporting in Started Status, view the Completion of Academic Program eForm.
 - ii. Click the Apply Template button (note pad with a blue arrow)
 - iii. Click "Post-Comp OPT Recommendation"
 - iv. Click Yes in the pop up window
 - v. The Optional Practical Training Authorizations tab will automatically open

- and populate the information from the CAP eForm.
- vi. Review the information to be sure everything is correct. If information needs to be corrected, make the updates.
- vii. Under the Student Remarks section, add text to say “Post-completion OPT is recommended in the student's field of study, which is [Degree level] [Degree major].”
- viii. Click the Save icon.
- b. Recommend OPT in SEVIS through RTI or Batch:
 - i. RTI:
 1. From the student’s Sunapsis profile, expand Profile Management, and click the Go to SEVIS RTI button (person with binoculars).
 2. Add the OPT Request and click the Populate Fields button to pull the information from the Sunapsis record into SEVIS.
 3. Print I-20.
 - ii. Batch:
 1. From the student’s Sunapsis profile, expand SEVIS Management, and click the Generate New SEVIS Batch tab.
 2. Expand F-1 Student > Employment/Training > OPT Employment | Add
 3. Select the OPT Sunapsis record that you created and click Apply
 4. Review the information pulled in correctly making any updates if required.
 5. Check the Print I-20 option
 6. Click the Generate an Approved SEVIS Batch button (globe with a check mark)
 7. Retrieve the I-20 the next day
- 4. Sign OPT I-20 including travel signature and check for dependent I-20’s.
 - a. In Document Management, expand AU – SEVIS Documents and open the SEVIS RTI or BATCH pdf by double clicking
 - b. After signing the PDF, click save (without updating the document name)
 - c. This should update the document directly in Sunapsis. (NOTE: this will not change the date shown in the document name in Sunapsis.)
- 5. Reindex OPT I-20 and add Meta Data
 - a. Click once on the document to highlight the document.
 - b. Click the paper with pencil icon to add Meta Data
 - c. In the pop up window, add Meta Data: [Pre or Post Comp]
 - d. Click OK
 - e. While the document is still highlighted, click the blank text box icon
 - f. In the pop up box, click AU – SEVIS Documents > OPT I-20
 - g. Click Save
- 6. Mark Approved in appropriate places
 - a. On the checklist, mark the Task: Program Shorten and Task: Uploaded I-20 as Approve

- b. From the Post-Completion OPT Request & Reporting in Started Status, Approve the eForms and send the appropriate email notification
 - i. Updates are required to the Pre-Completion Emails only to note the number of days of approved Pre-Completion OPT.
- c. Add notes to Advisor Center

3. Student Applicant Submits OPT Application to USCIS

ISSS practice is to remind students that USCIS must receive their application within 30 days of the OPT I-20 issue date, otherwise their application will be denied.

ISSS practice is to advise students to apply online. Students are responsible for following all steps in the online application to submit their application. ISSS provides materials and resources to be used as guidance but does not review online applications with students.

Once a student has submitted their application to USCIS, they receive a Receipt Notice which they use to complete Receipt Notice Upload e-Form.

More information on the USCIS application and most frequently asked questions are found in

ISSS's webpage: <https://www.american.edu/ocl/iss/optional-practical-training.cfm>

Expediting the I-765

If the application qualifies, the CIS Ombudsperson can help with expediting I-765 requests (see expedite criteria at <https://www.uscis.gov/forms/expedite-criteria>).

Premium Processing

More likely, students will be advised to add Premium Processing to their application at an additional fee. Premium Processing guarantees that the I-765 application will be adjudicated within 30 calendar days. The guarantee does not extend to EAD processing.

ISSS practice is to inform students that Premium Processing is available, what the additional fee is, but not recommend or discourage the additional Premium Processing application. Students can add Premium Processing at the initial point of application to USCIS or add it at a later date if they feel their OPT request is taking too long to process.

4. USCIS adjudicates I-765 OPT Application

Processing Times

Approval times can vary for OPT authorization. ISSS practice is to refer students to USCIS directly if they have questions or concerns about the processing period.

ISSS Practice is to monitor the [official USCIS published processing times](#) and compare what the office sees in actuality to provide better advising for upcoming applicants.

EAD Card Production

Once the I-765 is approved, the EAD card production facility holds on producing the card for 48

hours in case USCIS needs to make final changes. According to USCIS, after Form I-765 is approved, the EAD card should be produced within 2 weeks. The EAD card is mailed the next business day using USPS priority mail and delivery confirmation. The card is delivered within 2-3 days. A person does not need to be present at the address when the card is delivered.

5. Student Applicant Receives EAD, Begins Employment, and Reports to ISSS

Student completes Upload EAD e-Form

Once the student receives their approved EAD card, they complete the Upload EAD Card e-Form and upload a copy of both the front and back of the EAD.

Student completes Report OPT Employer e-Form & updates SEVP Portal

After securing employment, students must update the SEVP Portal within 10 days. Students should also submit the Report OPT Employer e-Form in iEagle.

ISSS practice is to require the student to submit employment in both locations. At times, if a student fails to report employment in a timely manner, ISSS will update SEVIS with the employment information the student has provided ISSS.

Students must also update the SEVP Portal and ISSS within 10 days of any change in address or contact information.

6. ISSS *Makes* SEVIS Updates as *Needed*

When students report employment to ISSS, ISSS practice is to review the employment to ensure that the information they have provided is valid and a tie to their degree can be seen.

When reviewing the Report OPT Employer e-Form, ISSS checks:

- Start and end dates fall within authorized OPT period
 - If the start date is more than 10 days in the past, check if the student reported in the SEVP Portal
- Address is in the correct format
- Description of how the position is related to the degree is complete and comprehensive
- If the description indicates the number of hours/week that it matches the "full/part-time" student reported
- Phone number and email address of the supervisor have the right number of digits and are complete
- Supervisor name is not the student's name unless they reported they are self-employed
- Multiple employers

F.3.10 OPT - OTHER OPT ISSUES

OPT Application Issues

Filling Online Application before Receiving OPT I-20

Filing an online application prior to receiving an OPT-recommended I-20 can be very serious. Filing without an OPT-recommended I-20 will result in an application denial. The online I-765

includes warning text stating:

*Do **NOT** submit this form until you receive a Form I-20 recommendation from your DSO. We will deny your application if you do not include your Form I-20 recommendation when you submit Form I-765. If you need to provide Form I-765 to your DSO, print or download this draft before you submit.*

In a previous Pre-Completion OPT application, the SEVIS Help Desk advised what a student could do, if they submit the I-765 application without the OPT-recommended I-20:

- a. The OPT I-20 should be processed by the DSO and uploaded into the online OPT application (myUSCIS account) by the student as soon as possible.
- b. The student should continue keeping track of their OPT application status using their myUSCIS account.
- c. The SEVIS Help Desk could not guarantee that this would be acceptable but stated the student could try this option. If the application is denied/rejected, the student can re-apply [information confirmed with the SEVIS Help Desk by AS on 02/24/2022].

Example: AU ID 4547163, Pre-Completion OPT

Other practitioners in the field report that this method is not generally successful for Post-Completion OPT and that the student should contact USCIS to cancel their OPT application and submit a new application once the I-20 has been processed. In this case, the student would lose their original I-765 application fee payment.

Changing Address after Submitting OPT Application

ISSS practice is to recommend students not to change address after filing their OPT.

USPS will not forward government mail. If a student changes their address while an OPT application is pending, they can try the following:

- a. Follow [USCIS's instructions](#) to change their address as soon as possible.
- b. File a service request to request re-delivery if the card was not delivered.
- c. Ultimately, they may need to file a new I-765 and pay a new fee.

U.S. Address Reported in my USCIS Account

The U.S. address students enter when creating their myUSCIS account is the address USCIS will use to mail their receipt notice, approval notice, and EAD card.

Students must ensure this information is updated and accurate before filing their online application. This may become a problem especially for students with previous OPT applications. The field reports that the MyUSCIS account will not automatically update based on the U.S. address students enter on Form I-765.

EAD Card Issues

Lost or Stolen EAD Card

If a student reports the EAD card has been lost or stolen, ISSS advises the student to file a police report immediately. The student must reapply online for a replacement card and will need to submit the following documents:

- New passport photo
- Application fee, correct amount found on USCIS website
- New I-765 online with “Replacement (of lost employment authorization document)” box checked
- Copy of lost EAD card, if available
- Copy of valid passport
- Copy of most recent F-1 visa
- Copy of previously authorized CPT or OPT I-20s
- Copy of most recent I-94
- Memo about why the replacement card is needed
- New I-20 to show OPT has been approved

Example: AU ID 4517360

EAD Card Other Issues

- Example of EAD card start date issued earlier than requested: **AU ID 5035057**
- Example of EAD card mailing issues: **AU ID 5031829**
- Example of significant processing delays: **AU ID 5170478**
- Example of incorrect information on previous EAD card: **AU ID 4167243**

Failure to Complete Academic Program

OPT Application not submitted

Students who had their I-20 shortened for their OPT recommendation and then fail a course and cannot graduate can request ISSS to cancel their OPT recommendation in SEVIS if they have not yet submitted their OPT application to USCIS. After cancelling OPT, ISSS can extend the I-20 back to its original date.

Example: AU ID 5272923

Students who did not have their I-20 shortened for their OT recommendation because they were regularly scheduled to graduate at the end of the semester do not qualify for a program extension. ISSS policy is to recommend they submit their OPT application and complete their remaining course requirement while their OPT is pending, or work part time once their OPT is approved.

Students who have completed all academic requirements for their degree and cannot graduate for other reasons, for example, “a specialization title” is pending approval, are considered to have completed their program for immigration purposes.

OPT Application submitted

Students who fail a course or fail to complete their academic program for other reasons, and have submitted their OPT application to USCIS, are advised to complete what is left during their 60-day grace period or to enroll in a course in the immediate next term/semester whichever comes first. For example, a student who fails to graduate in the spring would be recommended to enroll in a course (if needed) in summer session one.

Example: AU ID 4251203

Students who cannot complete their academic program prior to the start of their OPT authorization period are advised they can work under OPT part-time until completion of their academic program.

Example: AU ID 4516810

Changing Mind and Cancelling OPT

OPT Application not submitted

Students can request ISSS to cancel their OPT in SEVIS. After receiving confirmation in writing from the student of their intention, ISSS cancels the OPT in SEVIS and issues an updated I-20 to show that OPT is no longer recommended.

OPT Application submitted

Once a student has submitted their OPT application to USCIS, ISSS cannot cancel the recommendation in SEVIS. ISSS should instruct the student to contact USCIS directly by phone to cancel or withdraw their OPT application. USCIS usually requests a formal letter signed by the student be sent to the service center that has their case. The DSO should make a note in the student's file that the student has contacted USCIS to cancel or withdraw their OPT application. Students cannot get the application fee back.

Example: AU ID 4158818

They may or may not lose their OPT time. Once OPT has been approved, it is extremely rare that USCIS would cancel the OPT and give the time back to the student. Once OPT time is granted, it is hard to prove that the time was never used. Even though the OPT may appear as "CANCELLED" in SEVIS, students may still be denied future requests at the same degree level.

Example: AU ID 5345896

Request for Further Evidence (RFE)

ISSS advises students to contact our office if they receive an RFE. ISSS will guide them on how to respond to USCIS.

RFEs can now be responded to through the student's online USCIS account. Possible scenarios for RFE include:

1. Submitting previously used passport photos (**Example: AU ID 3363707**)
2. Missing the copy of the I-20 that recommends OPT
3. Incorrect or missing information on the I-765
4. Not original signature (**Example: AU ID 4093102**)

Issues while on approved Post-Completion OPT

Course Enrollment While on OPT

Recreational and avocational classes are permissible. AU alumni may enroll as non-degree students in AU courses.

Example: AU ID 4818193- The student was advised she could enroll at the London Intersession Classes before her OPT start date.

Traveling while on OPT

Traveling before receiving the OPT approval and EAD card is considered risky and should be avoided if possible.

Students are permitted to travel and re-enter the U.S. while on approved Post-Completion OPT and will require the following:

- OPT I-20 signed for travel within the last 6 months
- Valid, unexpired passport (valid for at least 6 months into the future at the point of travel)
- Valid, unexpired F-1 visa
- Valid OPT EAD
- (recommended) Proof of employment

Trying to re-enter the U.S. without all these documents results in a greater risk of being denied entry.

ISSS practice is to advise students on Post-Completion OPT do not remain outside the U.S. for more than a few weeks during their OPT period.

Students who have a Change of Status pending should consult their immigration attorney about the risks of traveling during this period.

F.4 STEM OPT EXTENSION (STEM OPT)

F.4.1 STEM OPT - DEFINITION

8 CFR 214.2(f)(10)(ii)(C)

“(C) 24-month extension of post-completion OPT for a science, technology, engineering, or mathematics (STEM) degree. Consistent with paragraph (f)(11)(i)(C) of this section, a qualified student may apply for an extension of OPT while in a valid period of post-completion OPT authorized under 8 CFR 274a.12(c)(3)(i)(B). An extension will be for 24 months for the first qualifying degree for which the student has completed all course requirements (excluding thesis or equivalent), including any qualifying degree as part of a dual degree program, subject to the requirement in paragraph (f)(10)(ii)(C)(3) of this section that previously obtained degrees must have been conferred. If a student completes all such course requirements for another qualifying degree at a higher degree level than the first, the student may apply for a second 24-month extension of OPT while in a valid period of post-completion OPT authorized under 8 CFR 274a.12(c)(3)(i)(B). In no event may a student be authorized for more than two lifetime STEM OPT extensions. A student who was granted a 17-month OPT extension under the rule issued at 73 FR 18944, whether or not such student requests an additional 7-month period of STEM OPT under 8 CFR 214.16, is considered to have been authorized for one STEM OPT extension, and may be eligible for only one more STEM OPT extension. Any subsequent application for an additional 24-month OPT extension under this paragraph (f)(10)(ii)(C) must be based on a degree at a higher degree level than the degree that was the basis for the student's first OPT extension. In order to qualify for an extension of post-completion OPT based upon a STEM degree, all of the following requirements must be met.”

F.4.2 STEM OPT - HIGHLIGHTS

Student Eligibility:

- Must be currently on approved post-completion OPT.
- Must have received a bachelor's, master's, or doctoral degree in a STEM (science, technology, engineering, mathematics) field that appears on the DHS STEM-Designated Degree Program List.
- Must be employed by an E-Verify employer.
- The employer that signs the Form I-983 must be the same entity that provides the practical training experience. The employer cannot be a staffing/temporary agency or consulting firm unless they will be the entity that provides the practical training experience.
- Must be a paid position for at least 20 hours per week.

Hours Per Week:

- Each STEM OPT position must be at least 20 hours per week.
- If a position is not at least 20 hours per week, then ISSS cannot recommend STEM OPT

or add an additional STEM OPT employer.

Location:

- Anywhere in the U.S.

Position:

- Paid work for at least 20 hours per week.
- In student's field of study.
- Employment allowed only as indicated on student's Form I-983.
- Cannot be unpaid work including volunteering, self-employment, or gig work.
- Employer must be e-verified.

Length (Start and End Dates):

- Students are allowed up to twenty-four (24) months of STEM OPT per application.
- STEM OPT starts the day after a student's Post-completion OPT ends and extends up to two years after that date.

180-day extension

- Students may continue working with their STEM OPT employer (the organization listed on the student's Form I-983) for up to 180 days after their Post-completion OPT authorization has ended if they appropriately filed a STEM OPT application with USCIS.

F.4.3 STEM OPT - STUDENT ELIGIBILITY

Active F-1 students who completed a STEM eligible bachelor's, master's, or doctoral degree and are in a period of approved Post-completion OPT are eligible for STEM OPT. However, their desired STEM OPT employer and position must meet additional eligibility requirements as outlined above.

STEM OPT based on Prior Degree

Most students apply for STEM OPT based on the degree received from American University which served as the basis for their Post-completion OPT authorization period. However, some students may apply for STEM OPT based on a previously earned degree. This degree did not need to be earned while the student was in F-1 status as long as they were in a legal immigration status allowing study.

The previous degree must meet the following requirements:

1. Obtained from a U.S. educational institution accredited by the U.S. Department of Education (or affiliated offices).
2. U.S. educational institution must be SEVP-certified at the time the STEM OPT recommendation is inputted into SEVIS by AU DSO.
3. Degree conferred (i.e., graduated) no more than 10 years before the DSO recommends the STEM OPT Extension.
4. Conferral of degree was previous to the student's American University degree.

5. CIP Code for previous degree included on the **current** DHS STEM-Eligible List.
6. The practical training experience must be directly related to the previous STEM degree.

Two Lifetime STEM OPTs

An F-1 student cannot be authorized for more than two ***lifetime*** STEM OPT extensions. A second STEM OPT extension may only be authorized if the degree it is based on is higher than the degree that was the basis for the first STEM OPT extension.

F.4.5 STEM OPT - LOCATION

STEM OPT authorizes work for specific U.S. employer(s) as listed on the student's Form I-983. Remote work performed on U.S. soil is possible, but students must list their physical location of work (i.e., telework address) on their Form I-983 in page 3.

Students maintaining STEM OPT status may leave the U.S. for short vacation periods and seek readmission into the U.S. to resume employment.

F.4.6 STEM OPT - POSITION

STEM OPT extension is employer specific. Therefore, having active or future employment is required to apply.

Students may not work in any unpaid/volunteer positions or be self-employed, even if they are directly related to their major field of study. Only paid employment with an E-Verify employer in their field of study for at least 20 hours a week is allowed.

Students may have one or multiple employers at the same time, provided each employer meets the STEM OPT requirements. Each STEM OPT employer must complete and sign a unique Form I-983 in coordination with the student.

Students may be hired by third parties (staffing agencies) to provide services as long as the employer signing the Form I-983 is the entity responsible for the training experience and they have a bona fide employer-employee relationship with the student.

Unemployment

The STEM OPT Extension grants a student an additional 60 days of employment following the 90 days provided under Post-completion OPT. Therefore, students are limited to 150 days of unemployment.

Bona fide employer-employee relationship

STEM OPT eligibility requirements list that the employer that signs the I-983 Training Plan must be the same entity that employs the student and provides the practical training experience. This requirement can make work with staffing, temp, or consulting agencies difficult to record. Staff, temp, and consulting agencies may employ STEM OPT students but only if they have a bona fide employer-employee relationship.

For example, a bona fide employer must have regular contact with the employee, directly

supervise their work and train them in their STEM OPT field, pay the employee and provide benefits, etc. The employer signing the Form I-983 cannot “delegate” training to a third party.

Example: AU ID 5285187

Adding Second STEM OPT Employer

Having multiple employers at the same time during a STEM OPT extension period is possible. It is not common given the 20 hour per week work requirement for each employer under STEM OPT regulations. ISSS practice is to check with the student on the status of their current STEM OPT employment work hours and how those hours will be accommodated while having both employments.

If the student is planning on having two employers during STEM OPT, both employments must meet the STEM eligibility criteria as listed below:

- The work is directly related to the major field of study.
- This employer is E-Verify
- The employer that signs the Form I-983 must be the same entity that provides the practical training experience. The employer cannot be a staffing/temporary agency or consulting firm unless they will be the entity that provides the practical training experience.
- The position is paid and for at least 20 hours per week.

If the second employment meets the above criteria, then ISSS can move forward and add this STEM OPT employer to the student’s authorization period. A complete Form I-983 signed by the student and their employer is required within 10 days of the employment start date.

F.4.7 STEM OPT - LENGTH (START AND END DATES)

Students can request up to 2 lifetime 24-month STEM OPT Extensions, if eligible. The 24 months can only be used after an authorized period of Post-completion OPT. Students may not split their STEM OPT authorization period.

Start & End Dates

Students do not select a STEM OPT start date. STEM OPT starts the day after Post-completion OPT ends as dictated by the Form I-983.

A STEM OPT approval is not required for students to continue working following the end of their Post-completion OPT. Students on STEM OPT can work with their STEM OPT employer for up to 180 days after their Post-completion OPT end date as long as their STEM OPT application was appropriated filed with USCIS.

Students will, therefore, also not need to select an end date for the STEM OPT Extension. The automatic end date will be 2 years minus one day after the start of the STEM OPT Extension.

Ending STEM OPT Early

There are several situations in which students may choose to end their STEM OPT Extension early. In each of the following situations, students should be sure to submit an I-983 Final Evaluation with their employer's signature.

Departing the U.S.

Students who depart the U.S. without the intention to return to resume STEM OPT have their F-1 status completed in SEVIS. They must notify ISSS of their departure date through the iEagle STEM OPT Extension menu.

SEVIS Transfer

Students who plan to transfer to another school in the U.S. have their SEVIS record transferred out (if eligible) and should submit the appropriate transfer paperwork. STEM OPT authorization will end automatically on the student's chosen SEVIS Transfer Release date.

Change of Level

Students who change level at AU receive a new I-20 and should submit the appropriate change of level paperwork. STEM OPT authorization will end automatically on the date the change of level is processed in SEVIS.

Change of Status

Students with an approved change of status have their SEVIS record terminated and should submit the appropriate paperwork demonstrating their new status.

F.4.8 STEM OPT - REPORTS

OPT Extract

OPT Extract is done weekly by OPT advisor which provides information for STEM OPT students as well.

Students Requiring STEM OPT Form I-983 Upload

This alert in SEVIS allows ISSS to ensure accurate record keeping for I-983 documents. Use this alert to ensure that Form I-983 has been uploaded for all required events.

F.4.9 STEM OPT - APPLICATION PROCESS

The earliest students can apply for STEM OPT is 90 days before the end of their Post-completion OPT. Students **cannot** apply at any time after the end of their Post-completion OPT. ISSS' practice is to encourage students to apply as early as possible.

All the steps to apply for STEM OPT are described in ISSS's webpage:

<https://www.american.edu/student-affairs/iss/stem-opt-extension.cfm>.

1. Student Applicant Requests STEM OPT I-20 in iEagle

Student completes Understanding STEM OPT Extension e-Forms

This series of e-forms provides an overview of the STEM OPT Extension application process and

the regulations governing STEM OPT Students must complete the quizzes on each form with a perfect score before STEM OPT can be recommended.

Student completes Confirmation of STEM OPT Eligibility e-Form

Students must confirm their eligibility and certify their employment qualifies for the STEM OPT Extension.

Student completes STEM OPT Application e-Form

In this e-Form, students submit documents and information required for issuing the STEM OPT recommended I-20 and the USCIS I-765 STEM OPT Extension application, including:

- Current Employer information
- Form I-983
- I-94
- Passport (valid for at least 6 months into the future)
- F-1 Visa
- Previous EAD card(s)
- Previously Authorized OPT I-20's signed by the student
- Copy of Diploma

STEM OPT Application Documents and Potential Issues

Form I-983

Students must submit a complete Form I-983 signed by themselves and their STEM OPT employers. ISSS Advisors should use the current I-983 Guide to review the form for completeness. Students should always obtain Form I-983 through the official ICE link to ensure usage of the most up to date form.

ISSS has created an [I-983 Guide for Students](#) to help students complete the form accurately.

Passport

In general, students are advised to hold a passport that is valid for at least 6 months in the future. For STEM OPT applicants, the recommendation is to have a valid passport that won't expire until at least the end of their STEM OPT, but it is not required.

For students renewing their passport by the time they apply for STEM OPT, they must include proof of pending passport renewal with their application to ISSS, together with a copy of their current expiring passport.

Visa

Students are not required to submit a copy of their most recent F-1 visa with their STEM OPT application to USCIS. However, ISSS practice is to alert students if their visa is expiring or expired.

Students who renewed their visa must report it to ISSS through the "Update Passport and Visa"

e-form in iEagle.

Students who have not renewed their visa are advised to report it to ISSS as soon as they have one. ISSS will not deny their STEM OPT application, since a valid F-1 visa is not required for STEM OPT.

EAD Card(s)

Students are required to include copies of the front and back of all previously issued EAD cards.

I-20's

Students are not required to include copies of all previously authorized OPT I-20's, including those from previous schools attended, in the online I-765 STEM OPT application. ISSS practice is to gather these documents in case a student receives an RFE or any issues arise at a later time.

Proof of STEM Degree

Students are required to include photocopies of the Diploma for the STEM degree that makes them eligible for STEM OPT extension.

ISSS also recommends students retrieve an official transcript as additional evidence of their completed STEM degree.

I-765

Students are advised to use the online application to file for (c)(3)(C).

Photos

One new passport photo is required in the online application. ISSS advises students to use a photo that is brand new and never used before (taken within the last 30 days). ISSS discusses with students the importance of having a good quality photo that meets all measurements and style requirements from USCIS to avoid the risk of OPT rejection or denial.

Filing Fee

Students pay the OPT filing fee online with a debit or credit card. More information can be found here: <https://www.uscis.gov/i-765>

Institution Accreditation (if the STEM OPT is based on a prior degree only)

Students are required to upload evidence that the institution that granted their STEM degree is currently accredited by the U.S. Department of Education and certified by SEVP. Students can contact their previous school to obtain such documentation.

Example: AU ID 3874675

When to Include a Memo with the STEM OPT Application

ISSS recommends including a brief memo to prevent delays and a potential RFE under the following circumstances:

- Missing copies of previously issued EAD's
- I-94 mismatch
- Cannot fit their full name in the online application.
- Multiple previous EAD cards that cannot all be uploaded to the online application
- Incorrect information on previous EAD card

2. ISSS Reviews STEM OPT Extension I-20 Request and Issues STEM OPT-Recommended I-20

1. Review student's request for STEM OPT I-20:
 - a. From the Control Center, Open Checklist Management
 - b. Open the STEM OPT Request and Reporting Stage 0: STEM OPT Process Initiated checklist
 - c. Navigate to the student's Sunapsis profile by double clicking their name
 - d. Expand Workflow Management and open the STEM OPT Request & Reporting in Started Status
 - e. Complete the tasks on the Checklist and mark them complete by right-clicking and selecting the status:
 - i. Task: Check Sunapsis
 1. Check Alerts for anything that would prevent issuing the STEM OPT I-20
 2. Check Notes for anything that would prevent issuing the STEM OPT I-20
 3. Check STEM Eligible Degree
 - ii. Task: Check SEVIS eligibility- in SEVIS RTI browser. From the student's Sunapsis profile, expand Profile Management, and click the Go to SEVIS RTI button (person with binoculars).
 1. Verify on active Post-Completion OPT and it is ending within 90 days
 2. Verify they are in US
 3. Verify the STEM OPT Employment information reflects current OPT Employment information
 4. Verify the student's address matches e-Form and SEVIS
 - iii. Task: Check I-983 – in Document Management > AU – Employment > Government Applications > STEM OPT
 1. Use the [I-983 Guide for Staff](#) to review the student's Form I-983
 - iv. Task: Check Supporting Documents- in Document Management > AU – Employment > Government Applications > STEM OPT
 1. I-94 must be issued for F-1 and D/S
 2. Passport must be valid for at least 6 months into the future
 3. Previous EAD Card should include front and back
 4. Diploma is for a STEM-eligible degree
 - f. Review the student's submitted Confirmation of STEM OPT Eligibility e-Form.
 - i. Confirm the student stated they and the position are STEM Eligible.

- g. Review the student's submitted STEM OPT Application e-Form.
 - i. Check the employment information matches the I-983 and is in the correct format.
- 2. Create the STEM OPT record and STEM OPT Employer record in Sunapsis:
 - a. View the STEM OPT Request & Reporting in Started Status.
 - b. Click the Apply Template button (note pad with a blue arrow)
 - c. Click "STEM OPT Recommendation"
 - d. Click Yes in the pop-up window
 - e. In the Select Records to Display pop-up window, highlight both "Optional Practical Training Employers' and "Optional Practical Training Authorizations" and click Apply.
 - f. The Optional Practical Training Authorizations and Optional Practical Training Employer tabs will automatically open and populate the information from the STEM OPT Application eForm.
 - g. Review the information to be sure everything is correct on the Optional Practical Training Authorizations tab.
 - i. If information needs to be corrected, make the updates.
 - ii. Click the Save icon.
 - h. Review the information to be sure everything is correct on the Optional Practical Training Employers tab.
 - i. In the Relevance box, under the pre-populated text, add the student's description of how the work is related to their major area of study from the STEM OPT Application e-Form.
 - ii. Click the Save icon
- 3. Recommend OPT in SEVIS through RTI or Batch:
 - a. RTI:
 - i. From the student's Sunapsis profile, expand Profile Management, and click the Go to SEVIS RTI button (person with binoculars).
 - ii. Under the Employment/Training section of the menu on the left, click the OPT Request link.
 - iii. On the OPT Employment page, click the blue Extend button.
 - iv. Click the Populate Fields button to pull the information from the Sunapsis record into SEVIS.
 - v. Click Print I-20.
 - b. Batch:
 - i. From the student's Sunapsis profile, expand SEVIS Management, and click the Generate New SEVIS Batch tab.
 - ii. Expand F-1 Student > Employment/Training > OPT Employer | STEM 24 Month Extension
 - iii. Select the STEM OPT Sunapsis record that you created and click Apply
 - iv. Note: You may need to confirm the STEM dates and click Apply.
 - v. Review the information pulled in correctly making any updates if required.

- vi. Check the Print I-20 option
- vii. Click the Generate an Approved SEVIS Batch button (globe with a check mark)
- viii. Retrieve the I-20 the next day
- 4. Sign STEM OPT I-20 including travel signature and check for dependent I-20's.
 - a. In Document Management, expand AU – SEVIS Documents and open the SEVIS RTI or BATCH pdf by double clicking
 - b. After signing the PDF, click save (without updating the document name)
 - c. This should update the document directly in Sunapsis. (NOTE: this will not change the date shown in the document name in Sunapsis.)
- 5. Reindex STEM OPT I-20 and add Meta Data
 - a. Click once on the document to highlight the document.
 - b. Click the paper with pencil icon to add Meta Data
 - c. In the pop up window, add Meta Data: [STEM]
 - d. Click OK
 - e. While the document is still highlighted, click the blank text box icon
 - f. In the pop up box, click AU – SEVIS Documents > STEM OPT I-20
 - g. Click Save
- 6. Mark Approved in appropriate places
 - a. On the checklist, mark the Task: Uploaded I-20 as Approve
 - b. From the STEM OPT Request & Reporting in Started Status, Approve the eForms and send the appropriate email notification
- 7. Add notes to Advisor Center

3. Student Applicant Submits STEM OPT Application to USCIS

ISSS practice is to remind students that USCIS must receive their application within 60 days of the STEM OPT Extension I-20 issue date and before the end of their authorized Post-Completion OPT period, otherwise their application will be denied.

ISSS practice is to advise students to apply online. Students are responsible for following all steps in the online application to submit their application. ISSS provides materials and resources to be used as guidance but does not review online applications with students.

Once a student has submitted their application to USCIS, they receive a Receipt Notice which they use to track the status of their application.

More information on the USCIS application and most frequently asked questions are found in

ISSS's webpage: <https://www.american.edu/student-affairs/iss/stem-opt-extension.cfm>

Expediting the I-765

If the application qualifies, CIS Ombudsperson can help with expediting I-765 requests (see expedite criteria at <https://www.uscis.gov/forms/expedite-criteria>).

Premium Processing

More likely, students will be advised to add Premium Processing to their application at an additional fee. Premium Processing guarantees that the I-765 application will be adjudicated within 30 calendar days. The guarantee does not extend to EAD processing.

ISSS practice is to inform students that Premium Processing is available, what the additional fee is, but not recommend or discourage the additional Premium Processing application. Students can add Premium Processing at the initial point of application to USCIS or add it at a later date if they feel their OPT request is taking too long to process.

4. USCIS adjudicates I-765 STEM OPT Extension Application

Processing Times

Approval times can vary for OPT authorization. ISSS practice is to refer students to USCIS directly if they have questions or concerns about the processing period.

ISSS Practice is to monitor the [official USCIS published processing times](#) and compare what the office sees in actuality to provide better advising for upcoming applicants.

EAD Card Production

Once the I-765 is approved, the EAD card production facility holds on producing the card for 48 hours in case USCIS needs to make final changes. According to USCIS, after Form I-765 is approved, the EAD card should be produced within 2 weeks. The EAD card is mailed the next business day using USPS priority mail and delivery confirmation. The card is delivered within 2-3 days. A person does not need to be present at the address when the card is delivered.

180-Day Automatic Extension

Students may continue to work for 180 days after the end of their Post-Completion OPT EAD expires provided that they filed for STEM OPT before the end of the Post-Completion EAD. In this situation, their STEM OPT authorization period is seen as starting the day after the expiration of their Post-Completion OPT, even if their STEM OPT Extension application is still pending with USCIS.

ISSS practice for students who reach out with questions from their employer regarding updating their I-9 in this situation is to advise that the employer can visit the [USCIS Form M-274 Handbook for Employers](#) or [USCIS I-9 Q&A](#) for more information.

5. Student Applicant Receives EAD, Continues Employment, and Completes Mandatory Reporting to ISSS

Student completes Upload STEM OPT EAD Card e-Form

Once the student receives their approved STEM OPT EAD card, they complete the Upload STEM OPT EAD Card e-Form and upload a copy of both the front and back of the EAD.

Student completes mandatory STEM OPT reporting

F-1 students on STEM OPT Extension have legal reporting requirements to maintain

immigration status in the form of validation reports and self-evaluations that are covered in more detail in the next section. Updates to STEM OPT Employment may require that students submit an updated Form I-983.

ISSS practice is to advise students to submit all employment and contact information updates through iEagle. Students will maintain access to the SEVP portal, but will not be able to complete all reporting themselves due to the requirement of Form I-983.

6. ISSS Makes SEVIS Updates as Needed

When students report employment to ISSS, ISSS reviews the employment to ensure valid information and the position is related to the degree and reviews the I-983 for accuracy and completeness and maintains the I-983 in the students' SEVIS and Sunapsis records.

When reviewing the New STEM OPT Position e-Form, ISSS checks:

- Start and end dates fall within authorized OPT period
 - If the start date is more than 10 days in the past, check if the student reported in the SEVP Portal
- Address is in the correct format
- Description of how the position is related to the degree is complete and comprehensive
- If the description indicates the number of hours/week that it matches the "full/part-time" student reported
- Phone number and email address of the supervisor have the right number of digits and are complete
- Supervisor name is not the student's name unless they reported they are self-employed
- Multiple employers

When reviewing the Form I-983, use the [I-983 Guide for Staff](#). If approved, be sure to upload the I-983 to the student's SEVIS record as well as Sunapsis.

F.4.10 STEM OPT - REPORTING REQUIREMENTS

F-1 students on STEM OPT Extension have legal reporting requirements to maintain immigration status, including validation reports and self-evaluations.

Validation and Self-Evaluation Reports

Validation Reports

When: 6, 12, 18, and 24 months after the start of STEM OPT

Students must complete a validation report confirming that their personal and employment information has not changed every six months while on STEM OPT Extension. The requirement for validation reporting starts on the date the 24-month OPT extension begins. It ends when the student's F-1 status expires or the 24-month OPT extension concludes, whichever is first. The validation report is due to the student's DSO within 10 business days of each reporting date. All validation reports should be submitted in iEagle.

Self-Evaluations

When: 12 and 24 months after the start of STEM OPT, ending employment with a STEM OPT employer, changing status, ending STEM OPT early

F-1 students on STEM OPT Extension must complete a self-evaluation 12 months after their STEM OPT start date and a final self-evaluation 24 months after their STEM OPT start date. The 12-month self-evaluation is labeled "Evaluation on Student Progress" in the first half of page 5 of Form I-983. The 24-month self-evaluation is labeled "Final Evaluation on Student Progress" in the bottom half of page 5 of Form I-983.

DSO Processing

When a Validation Report e-Form is received, take the following steps to report STEM OPT participation in SEVIS RTI:

1. Navigate to the student's Sunapsis Profile
2. Expand Workflow Management and open the STEM OPT Request and Reporting in Started Status
3. View the appropriate Validation or Validation and Self-Evaluation e-Form
 - Verify the information provided
 - If required, review the I-983
4. Navigate to the student's SEVIS RTI profile from Profile Management and clicking the person with binoculars button
5. Report OPT Participation:
 - In the left menu on the student's SEVIS record, click the Report OPT Participation link
 - Verify the employment information matches or make any necessary edits
 - Check the required box(es)
 - Click Report OPT Participation
6. If required, upload the I-983 to the student's SEVIS record:
 - In the left menu on the student's SEVIS record, click the OPT Request link
 - From the list of Employers, find the appropriate employer that completed the I-983 and click the Upload link
 - On the new page, click the Upload Evidence link
 - Choose the appropriate file and Upload Reason from the drop-down menu
 - Click submit
7. Approve the e-Form in Sunapsis and send the student a confirmation email.
8. Add a Sunapsis note.

Material Changes to Form I-983

Students must submit an updated I-983 when any material change occurs to the I-983 that is signed by both the student and employer. A material change includes, but is not limited to:

- change of Employer Identification Number resulting from a corporate restructuring

- change in compensation from the amount previously submitted on the Form I-983
- change in hours per week
- any change or deviation that renders an employer attestation inaccurate, or renders inaccurate the information in the Form I-983 on the nature, purpose, oversight, or assessment of the student's practical training opportunity. ([8 CFR 214.2\(f\)\(10\)\(ii\)\(C\)\(9\)\(ii\)](#))

Any updates to the current training plan (Form I-983) must be reported as soon as it occurs and within 10 days of the change at the latest. This reporting requires a new Form I-983 (pages 1 – 4) with updated signatures and a submission of the “Update to Form I-983 Training Plan” in iEagle.

Change of Employer

Any change of employment under STEM OPT has two Form I-983 requirements:

- a complete Form I-983 that includes a final self-evaluation on page 5 for the previous employer; and
- a new Form I-983 for the new employer.

All new employment must meet the STEM OPT eligibility requirements as listed on our website.

Employment changes during STEM OPT must be reported to ISSS as soon as possible and within 10 days of the change at the latest. Students should submit two iEagle e-Forms:

- STEM OPT Position Completion
- New STEM OPT Position

Additional Reporting Requirements

Students must report a change of personal information, contact information, or US address within 10 days using the Update Address and Contact Information e-Form.

Students who wish to end their STEM OPT authorization early must complete the Ending STEM OPT Early e-Form in iEagle and attach a completed Form I-983 with Final Evaluation on Student Progress.

Students may choose to end their STEM OPT early for various reasons, including but not limited to:

- Returning to their home country
- Change of Education Level
- Change of Immigration Status
- Transfer to a new school

F.4.11 STEM OPT - OTHER STEM OPT ISSUES

STEM OPT Extension Application Issues

Filing Online Application before Receiving STEM OPT I-20

Filing an online application prior to receiving a STEM OPT-recommended I-20 can be very serious. Filing without a STEM OPT-recommended I-20 will result in an application denial. The online I-765 includes warning text stating:

*Do **NOT** submit this form until you receive a Form I-20 recommendation from your DSO. We will deny your application if you do not include your Form I-20 recommendation when you submit Form I-765. If you need to provide Form I-765 to your DSO, print or download this draft before you submit.*

In a previous Pre-Completion OPT application, the SEVIS Help Desk advised what a student could do, if they submit the I-765 application without the OPT-recommended I-20:

1. The OPT I-20 should be processed by the DSO and uploaded into the online OPT application (myUSCIS account) by the student as soon as possible.
2. The student should continue keeping track of their OPT application status using their myUSCIS account.
3. The SEVIS Help Desk could not guarantee that this would be acceptable but stated the student could try this option. If the application is denied/rejected, the student can re-apply [information confirmed with the SEVIS Help Desk by AS on 02/24/2022].

Example: AU ID 4547163, Pre-Completion OPT

Other practitioners in the field report that this method is not generally successful for STEM OPT Extension and that the student should contact USCIS to cancel their STEM OPT application and submit a new application once the I-20 has been processed. In this case, the student would lose their original I-765 application fee payment.

Applying for STEM OPT with a new employer and a future employment start date

Employment with an eligible STEM OPT Employer is required to apply for the STEM OPT Extension. Students may choose to apply for the STEM OPT Extension with an employer offering a start date in the future (after the STEM OPT Extension start date).

For these cases, ISSS must take the following steps to the student's record:

1. Make sure the end date of the Post-Completion OPT employment is reflected correctly in SEVIS
2. Recommend the student for the STEM OPT Extension with the future employment start date as it auto populates
3. Adjust the STEM OPT Employment Start Date with the future employer to reflect the information on the Form I-983. NOTE: This is not the start date of the STEM OPT Authorization, just the employment start date.

4. Print the STEM OPT-recommended I-20 with the different STEM OPT Extension and Employment start dates.

It is important to note that the gap in time from the end of the OPT employment to the start of the STEM OPT employment will count as accrued unemployment. Students should have the appropriate number of unemployment days available to cover the gap.

Changing Address after Submitting STEM OPT Application

ISSS practice is to recommend students not change their address after filing their STEM OPT.

USPS will not forward government mail. If a student changes their address while a STEM OPT application is pending, they can try the following:

- A. Follow [USCIS's instructions](#) to change their address as soon as possible.
- B. File a service request to request re-delivery if the card was not delivered.
- C. Ultimately, they may need to file a new I-765 and pay a new fee.

U.S. Address Reported in my USCIS Account

The U.S. address students enter when creating their myUSCIS account is the address USCIS will use to mail their receipt notice, approval notice, and EAD card.

Students must ensure this information is updated and accurate before filing their online application. This may be a problem since all students applying will have a previous Post-completion OPT application.

The field reports that the MyUSCIS account will not automatically update based on the U.S. address students enter on Form I-765 according to information received from previous students.

Lost or Stolen EAD Card

If a student reports the EAD card has been lost or stolen, ISSS advises the student to file a police report immediately. The student must reapply online for a replacement card and will need to submit the following documents:

- New passport photo
- New application fee , correct amount found on [USCIS website](#)
- New I-765 online with "Replacement (of lost employment authorization document)" box checked
- Copy of lost EAD card, if available
- Copy of valid passport
- Copy of most recent F-1 visa
- Copy of previously authorized CPT or OPT I-20s
- Copy of most recent I-94
- Copy of STEM diploma

- Copy of STEM transcript
- Memo about why the replacement card is needed
- New I-20 to show OPT has been approved

If the student applied for STEM OPT based on a prior STEM degree, they should make sure to include evidence of the previous degree and that the U.S. educational institution is SEVP-certified and accredited by the U.S. Department of Education

Failure to Complete Academic Program

Doctoral students who have not completed their degree are not eligible to apply for the STEM OPT Extension. Students are required to provide proof of degree completion with their STEM OPT application.

All other students should have completed their degree to apply for Post-Completion OPT.

Changing Mind and Cancelling OPT

STEM OPT Application not submitted

Students can request ISSS to cancel their STEM OPT in SEVIS. After receiving confirmation in writing from them of their intention, ISSS cancels the STEM OPT in SEVIS and issues an updated I-20 to show that STEM OPT is no longer recommended.

STEM OPT Application submitted to USCIS

Once a student has submitted their STEM OPT Extension application to USCIS, ISSS cannot cancel the recommendation in SEVIS. ISSS should instruct the student to contact USCIS directly by phone to cancel or withdraw their STEM OPT application. USCIS usually requests a formal letter signed by the student be sent to the service center that has their case. The DSO should make a note in the student's file that the student has contacted USCIS to cancel or withdraw their STEM OPT application. Students cannot get the application fee back.

They may or may not lose their STEM OPT time. Once STEM OPT has been approved, it is extremely rare that USCIS would cancel the STEM OPT and give the time back to the student. Once STEM OPT time is granted, it is hard to prove that the time was never used. Even though the STEM OPT may appear as "CANCELLED" in SEVIS, it may still impact a student's future STEM eligibility.

Request for Further Evidence (RFE)

ISSS advises students to contact our office if they receive an RFE. ISSS will guide them on how to respond to USCIS.

RFEs can now be responded to through the student's online USCIS account. Possible scenarios for RFE include:

1. Submitting previously used passport photos
2. Missing the copy of the I-20 that recommends STEM OPT

3. Incorrect or missing information on the I-765
4. Evidence that degree is STEM eligible (**Example: AU ID 5163445**)

Change of Employer while STEM OPT Application is Pending

ISSS Practice is to advise students against changing employers while their STEM OPT application is pending as this could cause a delay or even a denial in their STEM OPT application adjudication.

If a student does change employers while their STEM OPT application is pending, the next steps are determined by the timeline in which the student will change employers:

Change of Employment PRIOR to the End of Post-Completion OPT

STEM OPT applicants who change their employer while their STEM OPT Extension application is pending, but before the end of their Post-Completion OPT must take the following steps:

1. Student reports an update to their Post-Completion OPT in iEagle
2. Student reports an update to their STEM OPT Employment, including obtaining a new Form I-983
3. ISSS will process an OPT Employment update with the end of employment
4. ISSS will update the STEM OPT employment information, deleting the previous employer and adding a new STEM OPT employer. ISSS DOES NOT cancel the STEM OPT recommendation
5. ISSS will issue an updated I-20 with STEM OPT recommendation and updated employment information
6. Student will write a cover letter/memo explaining the change in employment with the new employer's e-Verify number
7. Student will upload the cover letter/memo and updated I-20 to their MyUSCIS account STEM OPT Extension application under Unsolicited Evidence

Example: AU ID 5167246

Change of Employment AFTER the End of Post-Completion OPT

STEM OPT applicants who change their employer while their STEM OPT Extension application is pending and after the end of their Post-Completion OPT must take the following steps:

1. Student reports the end of a STEM OPT position, including obtaining a Final Evaluation of Student Progress on Form I-983
2. Student reports the start of a STEM OPT position, including obtaining a new Form I-983
3. ISSS will update the STEM OPT employment information to end the employment with the previous employer and add the new employer. ISSS DOES NOT cancel the STEM OPT recommendation
4. ISSS will issue an updated I-20 with STEM OPT recommendation and updated employment information
5. Student will write a cover letter/memo explaining the change in employment with the

new employer's e-Verify number

6. Student will upload the cover letter/memo and updated I-20 to their MyUSCIS account
STEM OPT Extension application under Unsolicited Evidence

Change of STEM OPT Employer After STEM OPT Approved but Prior to Start Date

1. STEM OPT applicants who change their employer after their STEM OPT Extension is approved, but before the end of their Post-Completion OPT must take the following steps:
2. Student reports an update to their Post-Completion OPT in iEagle
3. Student reports an update to their STEM OPT Employment, including obtaining a new Form I-983
4. ISSS will process an OPT Employment update with the end of employment
5. ISSS will update the STEM OPT employment information, deleting the previous employer and adding a new STEM OPT employer. ISSS DOES NOT cancel the STEM OPT recommendation
6. ISSS will issue an updated I-20 with STEM OPT recommendation and updated employment information
7. Student will write a cover letter/memo explaining the change in employment with the new employer's e-Verify number
8. Student will upload the cover letter/memo and updated I-20 to their MyUSCIS account
STEM OPT Extension application under Unsolicited Evidence

Issues while on approved STEM OPT Extension

Course Enrollment While on STEM OPT

Recreational and avocational classes are permissible. AU alumni may enroll as non-degree students in AU courses.

Traveling while on STEM OPT

Traveling before receiving the STEM OPT Extension approval and EAD card is conserved risk and should be avoided if possible.

Students are permitted to travel and re-enter the U.S. while on approved STEM OPT Extension and will require the following:

1. STEM OPT I-20 signed for travel within the last 6 months
2. **Valid, unexpired passport** (valid for at least 6 months into the future at the point of travel)
3. Valid, unexpired F-1 visa
4. Valid STEM OPT EAD
5. (recommended) Proof of employment

Trying to re-enter the U.S. without all these documents results in a greater risk of being denied entry.

ISSS practice is to advise students on STEM OPT do not remain outside the U.S. for more than a few weeks during their STEM OPT period.

Students who have a Change of Status application pending should consult their immigration attorney about the risks of traveling during this period.

DHS Site Visits

DHS may, at its discretion, conduct a site visit of the employer to ensure that program requirements are being met, including that the employer possesses and maintains the ability and resources to provide structured and guided work-based learning experiences consistent with the Form I-983 Training Plan.

Students should make sure their employer information and home addresses are up to date by reviewing their information via the SEVP portal and by reporting to ISSS if there are changes.

F.5 CAP GAP EXTENSION

F.5.1 CAP GAP - DEFINITION

8 CFR 214.2(f)(5)(vi)

“The duration of status, and any employment authorization granted under 8 CFR 274a.12(c)(3)(i)(B) or (C), of an F-1 student who is the beneficiary of an H-1B petition subject to section 214(g)(1)(A) of the Act (8 U.S.C. 1184(g)(1)(A)) and request for change of status shall be automatically extended until October 1 of the fiscal year for which such H-1B status is being requested where such petition:

- 1. Has been timely filed; and*
- 2. Requests an H-1B employment start date of October 1 of the following fiscal year.”*

F.5.2 CAP GAP - HIGHLIGHTS

Student Eligibility:

- Must be in active F-1 status
- Must be on approved Post Completion OPT or STEM OPT Extension.
- Employer must file an H-1B petition with USCIS to change the student’s status to H-1B
- H-1B petition must request an October 1 start date of the following government fiscal year

Hours Per Week for OPT Cap Gap Authorization:

- Full-time (more than 20 hours a week)

Location:

- Anywhere in the US

Position for OPT Cap Gap Authorization:

- With the employer sponsoring the approved H1B petition

Length (Start and End Dates):

- OPT Cap Gap Authorization ends on September 30 of the calendar year in which H-1B has been approved

F.5.3 CAP GAP - PURPOSE

Cap gap I-20s are provided to bridge the anticipated “gap” between a student’s change of status to H-1B and when the student’s F-1 status and OPT/STEM OPT authorization period expire. Cap gap I-20s are only available to those students on Post-completion OPT or STEM OPT

extension who appropriately file a H-1B application and have that H-1B application chosen for processing by USCIS prior to their SEVIS record completing.

If a student meets the above requirements, their F-1 immigration status and OPT authorization will automatically extend to September 30. Cap-subject H-1B applications that are approved will have a change of status start date of October 1.

While on Cap Gap authorization, students should continue to maintain their F-1 status by following the regulations for their appropriate OPT or STEM OPT authorization.

Cap-exempt H-1B applications can have a change of status start date at any point in the year and do not qualify for the Cap Gap Extension.

F.5.4 CAP GAP - TWO TYPES OF BENEFITS

Students may be eligible for one of two types of Cap Gap benefits, depending on the end of their employment authorization when USCIS receives their H-1B petition:

F-1 Status and OPT Extension

If the employer files the H-1B (with Change of Status) petition and it is received by the post-completion OPT/STEM OPT expiration date, the student qualifies for an extension of their F-1 Status and OPT/STEM OPT employment authorization through September 30.

F-1 Status ONLY Extension

If the employer files the H-1B (with Change of Status) petition and it is received by USCIS after the post-completion OPT/STEM OPT expires but during the 60-day grace period following OPT/STEM OPT, the student qualifies for an extension of their F-1 status only and permission to remain in the US is extended through September 30. Students are not eligible to work during this extended period.

F.5.5 CAP GAP - SEVIS RECORD

Automatically Added in SEVIS

A Cap-gap notation on a student's immigration record will become automatically available in the SEVIS immigration system once their H-1B application is pending with USCIS.

Students may request an I-20 reprint reflecting the Cap Gap period through iEagle. Once the request is received, ISSS should reprint the student's I-20 with a reason of "Updated" and add remarks to say "Reprinted to show cap-gap extension."

ISSS procedure is to request proof that an employer has filed an H-1B petition for the student, such as a Form I-797 receipt or approval notice before issuing the Cap Gap I-20.

Cap Gap Notion Not Appearing in SEVIS

If the cap-gap notation is not showing on a student's immigration record in the SEVIS immigration system but the student has provided evidence of appropriately filing and

processing, ISSS may submit a data fix ticket to the SEVP Response Center (SRC) to update the record and provide the student a reprint of their I-20.

F.5.6 CAP GAP - OTHER CAP GAP ISSUES

Cap Gap vs STEM OPT Application

Some students who are on Post-Completion OPT and qualify for STEM OPT may become eligible for Cap Gap Extension and reach out to ISSS to ask if they should still apply for the STEM OPT Extension if they have received the Cap Gap Extension.

ISSS practice is to advise students that the decision is ultimately their own, but they may want to consider applying for the STEM OPT Extension in case their H-1B is denied or Change of Status is delayed.

CAP GAP Travel

Students may travel abroad and seek readmission into the United States if they are an F-1 student on the cap gap extension and meet the following criteria:

- The H-1B petition and request for change of status has been approved by USCIS.
- They seek readmission before their H-1B employment begins (normally such employment begins at the start of the fiscal year, i.e., Oct. 1).
- They are otherwise admissible (e.g., have all proper documentation including a valid, signed Form I-20 and an F-1 visa).

They will not need to provide an Employment Authorization Document (EAD). This requirement does not apply because during the cap gap period the EAD card will have already expired, and USCIS will not renew the EAD card during the interim period.

Students with a pending H-1B Change of Status application should not travel until after the Change of Status is approved with the October 1 start date. Travel before Change of Status approval is seen as an abandonment of application and will mean the student must remain outside of the US until the H-1B petition is approved and will need to obtain the H-1B visa through consular processing. Students may speak to their immigration lawyer about travel in this circumstance.

Updating I-9 for Cap Gap Extension

ISSS practice for students who reach out with questions from their employer regarding updating their I-9 while on approved Cap Gap Extension is to advise that the employer can visit the [USCIS Form M-274 Handbook for Employers](#) or [USCIS I-9 Q&A](#) for more information.

H-1B Denials

When a student on Cap Gap Extension receives a denial, revocation, or withdrawal of the H-1B petition, any automatic extension of the F-1 Status and OPT authorization automatically ends. The date of denial/revocation/withdrawal of the H-1B petition is considered the end date of the student's Cap Gap status. From this date, students enter a 60-day grace period.

H-1B Petitions Not Approved by October 1

If a student's H-1B Petition and Change of status is not approved by October 1, the extension of status and employment authorization end on September 30. The student may remain in the US based on the pending change of status application, however the student must stop working. Students should consult their immigration attorney immediately if their H-1B Petition is not approved by October 1.

F.6 INTERNATIONAL ORGANIZATION (IO)

F.6.1 IO - DEFINITION

[8 CFR 214.2\(f\)\(9\)\(iii\)](#)

“Internship with an international organization. A bona fide F-1 student who has been offered employment by a recognized international organization within the meaning of the International Organization Immunities Act (59 Stat. 669) must apply for employment authorization to the service center having jurisdiction over his or her place of residence. A student seeking employment authorization under this provision is required to present a written certification from the international organization that the proposed employment is within the scope of the organization's sponsorship, Form I-20 ID or SEVIS Form I-20 with employment page completed by DSO certifying eligibility for employment, and a completed Form I-765, with required fee as contained in §103.7(b)(1) of this chapter.”

F.6.2 IO - HIGHLIGHTS

Student Eligibility:

- Must be in active F-1 status.
- Must be maintaining good immigration and academic status.
- No waiting period.
- No course enrollment required
- Internship/job offer from a recognized international organization is required to apply.
- Available before completion of academic program only.

Hours Per Week:

- Students are not limited in the hours/week they work under IO authorization.

Location:

- Anywhere in the US.

Position:

- Paid or unpaid work in a qualified international organization.
- Work does not need to be related to a student's major field of study.

Length (Start and End Dates):

- Students may request authorization for up to one (1) year at a time.
- Students may start any time during their academic program.
- Authorization cannot be requested beyond the expected program completion date.

F.6.3 IO - STUDENT ELIGIBILITY

F-1 students who are maintaining good immigration and academic status become eligible for IO as soon as they are active in SEVIS.

Students must have a written employment offer by a recognized international organization within the meaning of the 59 Stat. 669, International Organization Immunities Act, (see [22 USC 288](#)). A list of these international organizations are available in [8 CFR 316.20\(c\)](#).

Probation, Missing Grades, Incomplete/In-Progress Grades, Credit Overload

IO applications from students on probation, with pending or incomplete/in-progress grades, or enrolled in overloaded credits are reviewed carefully, case by case, and must be discussed with the PDSO.

Probation

ISSS practice is to contact academic advisors to understand if IO can be recommended in these cases. If IO can be recommended, ISSS will not deny the IO application.

Missing grades, incomplete/in-progress grades from previous semesters

Grades for completed coursework must be posted on the transcript before ISSS can recommend for IO.

Incomplete/in-progress grades at the current term

ISSS practice is to confirm with academic advisors that there is a plan in place for the student to finish the class by the end of the current term and graduate on time if IO is being requested at the student's final term.

Credit overload

ISSS carefully reviews the student's overall academic progress and discusses with the student their individual plans and circumstances for applying for employment on top of their full academic schedule.

F.6.4 IO - HOURS PER WEEK

Students with an approved IO EAD card are not limited in the number of hours per week they can work. ISSS practice is to advise students that their primary purpose in the U.S. is to be a student and that they should not jeopardize their courses by working too many hours.

Combining IO with Other Employment

The combination of IO with other employment authorizations is rare and cases are reviewed carefully to ensure students will continue normal academic progress and can be recommended. PDSO approval required.

Students authorized to work on-campus can request IO.

CPT is granted to fulfil academic requirement. Therefore, CPT authorization does not affect IO authorization. Part-time or full-time CPT and IO authorizations can be held at the same time.

Students may have IO authorization at the same time as pre-completion OPT authorization, but the total number of hours may not exceed 20 hours/week while school is in session (fall and spring semesters).

F.6.5 IO - LOCATION

Anywhere in the US. Remote work performed in U.S. soil is possible.

F.6.6 IO - POSITION

A paid or unpaid internship/job offer from a recognized international organization is required to apply. The work does not need to be related to the student's major field of study.

[A complete list of recognized International Organizations can be found at 8 CFR 316.20\(c\).](#)

F.6.7 IO - LENGTH (START AND END DATES)

Students may request to start employment at any time during their academic program. Authorization may be requested at increments of no more than one year at a time. Students may request to renew authorization multiple times during their academic program. ISSS practice is to confirm with academic units the students' expected program completion date to ensure authorization request will not go beyond program completion (commencement).

Start Date

Many IO applications are based on short-term consultancies. These contracts usually allow for flexibility to when the work can be concluded. For example, the start and end dates of the contract are 03/01 – 06/01, and a total number of work hours are required to be done within this given period. In this scenario, the student could request an IO start date on 03/01 or after.

A contract with a past start date can be accepted as long as:

- a. The start date is recent (not too old)
- b. The student confirms that has not and will not start employment until after receiving the EAD
- c. The recommended IO start date in SEVIS is entered for a future start date, selected by the student.

End Date

A written offer of employment is required as part of the application.

For short-term positions, students may request authorization until the end of employment as stated in their offer letter or for a longer period not to exceed 12 months at a time or not to exceed their program completion date. In this scenario, students are advised to include a brief memo with their application explaining the reason for requesting authorization for a longer period. For example, the likelihood of their contract being extended. It is at the discretion of USCIS to have their request granted.

For long-term positions, IO can only be recommended in one-year increments. Students may

need to apply for IO authorization again, 90 days before the end of their current IO authorization period.

F.6.8 IO - APPLICATION PROCESS

ISSS recommends students to apply soon after receiving their job offer to account for the USCIS's processing time.

IO requests are reviewed and processed within 2 weeks of ISSS receiving all required documents.

Example: AU ID 5386841

All the steps to apply for IO are described in ISSS's webpage:

<https://www.american.edu/ocl/iss/international-organization-employment.cfm>

1. Student Applicant Requests Off Campus Employment for IO I-20

Currently, students submit their request for IO by email. Students submit the following documents and information to ISSS:

- Employment offer letter from the approved international organization on the organization's letter head that includes the position responsibilities and start and end dates
- Completed [Form I-765](#) applying for (c)(3)(iii)
- Passport valid at least 6 months into the future
- I-94
- Copies of current and all previous I-20's
- Copies of previous EAD cards (if applicable)

Students will also need to prepare, but not provide to ISSS, the following:

- 2 passport style photographs
- Appropriate filing fee, more information for the paper filing can be found at <https://www.uscis.gov/i-765>
- (If applicable) a memo explaining start and/or end dates

IO Start Date

ISSS advises students a final decision on their IO start date must be made before they submit their IO application to ISSS. ISSS recommends students to consider their job/internship start date and the time USCIS will need for processing their request when selecting their IO start date.

2. ISSS Reviews IO I-20 Request and Issues Off Campus Employment for IO-Recommended I-20

1. Verify that the student is eligible for IO and is in active F-1 status by checking the

- student's Sunapsis record and notes.
2. Review the documents the student submitted.
 3. Save the student's submitted files and upload to the student's Document Management > AU - Employment > Government Applications > International Organization > IO Application Package.
 4. Add the Off Campus Employment recommendation to the student's Sunapsis profile:
 - a. Expand Record Management > I-20 Detail Information > Off-Campus Employment
 - b. Click the green plus button to add a new record
 - c. In Type, select International Organization
 - d. Input the appropriate Start and End Dates
 - e. In Recommendation, enter: Student will participate in an internship with a recognized International Organization for dates recommended XX/XX/XXXX – XX/XX/XXXX.
 - f. Check the Recommend Employment box
 - g. Click the Save Button
 5. Add the Off Campus Employment recommendation in SEVIS:
 - a. Navigate to the student's SEVIS record by clicking the Go to SEVIS RTI button
 - b. Click the Off-Campus Employment link under Employment/Training on the left menu
 - c. Click the New Off-Campus Employment link
 - d. Click the Populate Fields button in the bottom left of the Sunapsis window
 - i. You may need to select the appropriate record in the pop up window
 - ii. You may need to update information that populates.
 - e. Click Add Employment
 - f. Click Print I-20
 6. Sign IO I-20 including travel signature and check for dependent I-20's.
 - a. In Document Management, expand AU – SEVIS Documents and open the SEVIS RTI or BATCH pdf by double clicking
 - b. After signing the PDF, click save (without updating the document name)
 - c. This should update the document directly in Sunapsis. (NOTE: this will not change the date shown in the document name in Sunapsis.)
 7. Reindex IO I-20 and add Meta Data
 - a. Click once on the document to highlight the document.
 - b. Click the paper with pencil icon to add Meta Data
 - c. In the pop up window, add Meta Data: [IO]
 - d. Click OK
 - e. While the document is still highlighted, click the blank text box icon
 - f. In the pop up box, click AU – SEVIS Documents > Updated I-20
 8. Click Save
 9. Email student their IO-recommended I-20 is ready and can be retrieved from iEagle.
 10. Add notes to the student's record.

3. Student Applicant Submits IO Application to USCIS

ISSS practice is to remind students that USCIS must receive their application within 30 days of the IO I-20 issue date; otherwise, their application will be denied.

At this time, applications for Off Campus Employment authorizations to USCIS cannot be submitted online and a paper application must be mailed. Students should mail their completed I-765 for Off Campus Employment with their supporting documents to USCIS using the address published on the [USCIS website](#).

F.6.9 IO - OTHER IO ISSUES

Changing Mind and Cancelling IO

IO Application not submitted

Students can request ISSS to cancel their IO in SEVIS, after receiving confirmation in writing from them of their intention. ISSS cancels the IO in SEVIS and issues an updated I-20 to show that IO is no longer recommended.

IO Application submitted

Once a student has submitted their Off Campus Employment for IO to USCIS, ISSS cannot cancel the recommendation in SEVIS. ISSS should instruct the student to contact USCIS directly by phone to cancel or withdraw their IO application. USCIS usually requests a formal letter signed by the student be sent to the service center that has their case. The DSO should make a note in the student's file that the student has contacted USCIS to cancel or withdraw their IO application. Students cannot get the application fee back.

Example: AU ID 4158818

F.7 SEVERE ECONOMIC HARDSHIP (EH)

ISSS practice is not to include Economic Hardship (EH) and Special Student Relief (SSR) as part of general employment sessions. Individual requests are carefully reviewed and discussed with students after other employment options are explored.

F.7.1 EH - DEFINITION

[8 CFR 214.2\(f\)\(9\)\(ii\)\(C\)](#)

"If other employment opportunities are not available or are otherwise insufficient, an eligible F- 1 student may request off-campus employment work authorization based upon severe economic hardship caused by unforeseen circumstances beyond the student's control. These circumstances may include loss of financial aid or on-campus employment without fault on the part of the student, substantial fluctuations in the value of currency or exchange rate, inordinate increases in tuition and/or living costs, unexpected changes in the financial condition of the student's source of support, medical bills, or other substantial and unexpected expenses."

F.7.2 EH - STUDENT ELIGIBILITY

- Must have been in F-1 status for at least one (1) full academic year (Fall and Spring)
- Must be maintaining good immigration and academic status.
- Job offer not required to apply
- Available before completion of academic program only.
- Must prove to USCIS that employment is necessary due to unexpected severe economic hardship caused by circumstances beyond the student's control
- Must have explored all other options of employment and they are unavailable or otherwise insufficient to meet the needs that have arisen
- Must demonstrate that employment will not interfere with the academic studies

F.7.3 EH - HOURS PER WEEK

Students may work up to 20 hours a week while school is in session (fall and spring) and full-time during school breaks and annual vacation (summer and winter).

Unlike CPT and OPT, the SEVIS system does not require the DSO to enter full or part time when recommending a student for Off Campus Employment authorization. ISSS practice is to advise the student that they must follow the hours per week rules, or risk termination for unauthorized employment.

F.7.4 EH - LOCATION

Anywhere in the US.

F.7.5 EH - POSITION

Students can work in any job. The position does not have to be related to course of study.

F.7.6 EH - LENGTH (START AND END DATES)

Eligible students may request to start employment at any time during their academic program. Authorization may be requested at increments of no more than one year at a time. Students may request to renew authorization multiple times during their academic program.

ISSS practice is to confirm with academic units the students' expected program completion date to ensure authorization request will not go beyond program completion (commencement).

F.7.7 EH - APPLICATION PROCESS

1. ISSS Advises Student on Economic Hardship

When students come to ISSS to express their interest in applying for Off Campus Employment authorization for Economic Hardship, ISSS carefully reviews the student's situation. USCIS makes case-by-case decisions for EH and authorization is not guaranteed. Students are required to demonstrate financial ability when they request the I-20, so the burden of proof falls heavily on the student to prove unexpected circumstances beyond their control have created severe economic hardship.

These may include the following:

- Loss of financial aid or on-campus employment (if the student is not at fault)
- Large increases in tuition or living costs
- Substantial decrease in the relative value of currency the student depends upon to pay expenses
- Unexpected changes in the financial conditions for a student's sources of financial support
- Unexpectedly large medical bills not covered by insurance
- Other substantial, unexpected expenses

2. Student Applicant Prepares the Required Documentation

Students must provide a personal statement explaining their situation and including:

- The unforeseen hardship situation
- An explanation why other employment options are unavailable or insufficient
- Any steps taken to reduce costs. For example, they sold their car, they moved out to a friend's house, etc.

Students must provide a financial worksheet including:

- Income
- Expenditures
- Estimated financial amount that will be needed to cover their tuition and living expenses until graduation.

Students must attach as much supporting documentation as possible. Some examples: articles

from the media as proof of currency devaluation in the student's country, proof of scholarship or loan applications not being approved, proof that current on-campus employment is insufficient or no longer available.

Students must prepare the USCIS paper application and supporting documents:

- 2 passport-style photos
- Application fee (amount subject to change) or the fee waiver application (Form I-912)
- Form G-1145 (Optional)
- Form I-765
- Copy of passport
- Copy of F-1 visa
- Most current I-94
- Copies of all previous I-20's
- Copies of previous EAD's if applicable

3. ISSS Reviews EH I-20 Request and Issues Off-Campus Employment for EH Recommended I-20

ISSS practice is to review the entire application with students before issuing the I-20 and before the student mails their application packet to USCIS. It is also ISSS practice to recommend students to save a copy of their entire application for their records.

Upon review and approval of student's eligibility, ISSS will issue a recommendation letter to the student to include in the application to USCIS, recommend the student for off-campus employment in SEVIS and issue a new I-20 with Off-Campus Employment authorization recommendation.

To authorize Off-Campus Employment for Severe Economic Hardship:

1. Verify that the student is eligible for EH and is in active F-1 status by checking the student's Sunapsis record and notes.
2. Save the student's submitted files and upload to the student's Document Management > AU - Employment > Government Applications > Economic Hardship > EH Application Package.
3. Add the Off Campus Employment recommendation to the student's Sunapsis profile:
 - a. Expand Record Management > I-20 Detail Information > Off-Campus Employment
 - b. Click the green plus button to add a new record
 - c. In Type, select Economic Hardship
 - d. Input the appropriate Start and End Dates
 - e. In Recommendation, enter: Student will participate in off campus employment due to severe economic hardship brought on by unexpected circumstances beyond their control for dates recommended XX/XX/XXXX – XX/XX/XXXX.
 - f. Check the Recommend Employment box

- g. Click the Save Button
4. Add the Off Campus Employment recommendation in SEVIS:
 - a. Navigate to the student's SEVIS record by clicking the Go to SEVIS RTI button
 - b. Click the Off-Campus Employment link under Employment/Training on the left menu
 - c. Click the New Off-Campus Employment link
 - d. Click the Populate Fields button in the bottom left of the Sunapsis window
 - i. You may need to select the appropriate record in the pop up window
 - ii. You may need to update information that populates.
 - e. Click Add Employment
 - f. Click Print I-20
5. Sign EH I-20 including travel signature and check for dependent I-20's.
 - a. In Document Management, expand AU – SEVIS Documents and open the SEVIS RTI or BATCH pdf by double clicking
 - b. After signing the PDF, click save (without updating the document name)
 - c. This should update the document directly in Sunapsis. (NOTE: this will not change the date shown in the document name in Sunapsis.)
6. Reindex EH I-20 and add Meta Data
 - a. Click once on the document to highlight the document.
 - b. Click the paper with pencil icon to add Meta Data
 - c. In the pop up window, add Meta Data: [EH]
 - d. Click OK
 - e. While the document is still highlighted, click the blank text box icon
 - f. In the pop up box, click AU – SEVIS Documents > Updated I-20
7. Click Save
8. Email student their EH-recommended I-20 is ready and can be retrieved from iEagle.
9. Add notes to the student's record.

4. Student Applicant Submits EH Application to USCIS

ISSS will advise the student to submit the EH application to USCIS, to include the following documents:

- 2 passport-style photos
- Application fee (amount subject to change) or the fee waiver application (Form I-912)
- Form G-1145 (Optional)
- Form I-765
- Copy of passport
- Copy of F-1 visa
- Most current I-94
- Form I-20 with the appropriate DSO recommendation
- Copies of all previous I-20's
- Copies of previous EAD's if applicable

- A copy of their personal statement letter signed by hand
 - A copy of their income and expenses worksheet
 - Copies of supporting documentation
 - ISSS recommendation letter
 - Any other recommendation letters they may have from the academic department
-
- ISSS practice is to remind students that USCIS must receive their application within 30 days of the IO I-20 issue date; otherwise, their application will be denied.
-
- At this time, applications for Off Campus Employment authorizations to USCIS cannot be submitted online and a paper application must be mailed. Students should mail their completed I-765 for Off Campus Employment with their supporting documents to USCIS using the address published on the [USCIS website](#).

F.8 SPECIAL STUDENT RELIEF (SSR)

ISSS practice is not to include Economic Hardship (EH) and Special Student Relief (SSR) as part of general employment sessions. Individual requests are carefully reviewed and discussed with students after other employment options are explored.

F.8.1 SSR - DEFINITION

Special Student Relief (SSR) is the suspension of certain regulatory requirements by the Department of Homeland Security (DHS) for F1 students from parts of the world that are experiencing emergent circumstances that create significant financial hardship, such as but not limited to:

- Natural disasters.
- Wars and military conflicts.
- National or international financial crises.

DHS issues a Federal Register (FR) notice. F-1 students may be eligible for SSR if they meet the criteria specified in the FR notice that generally includes:

- Are citizens of a country specified in an FR notice.
- Have lawfully resided in the United States for the dates indicated in the FR notice.
- Have reported on time to your designated school official (DSO) and been enrolled in an SEVP-certified school since the event.
- Are currently maintaining F-1 status.
- Are experiencing severe economic hardship.

Temporary Protected Status (TPS) and SSR can be applied at the same time.

While ISSS advisors cannot provide advice on TPS, we can inform students that the use of a work permit under TPS may create unintended negative consequences for F-1 students, if they intend to continue F-1 status at the end of the TPS. Instead, we encourage students to consider other employment authorization options available to F-1 students and to seek legal counsel on maintaining both TPS and F-1 status.

Suspended Regulatory Requirements

Under the current SSR, the following regulatory requirements are suspended:

On-Campus Employment:

The requirement that limits on-campus employment authorization to no more than 20 hours per week while school is in session.

Off-Campus Employment:

The requirement that a student must have been in F-1 status for one full academic year to be eligible for off-campus employment.

The requirement that an F–1 student must demonstrate that acceptance of employment will not interfere with the student’s carrying a full course of study.

The requirement that limits employment authorization to no more than 20 hours per week of off-campus employment while school is in session.

The requirement that the student demonstrate that employment under 8 CFR 214.2(f)(9)(i) is unavailable or otherwise insufficient to meet the needs that have arisen.

F.8.2 SSR - STUDENT ELIGIBILITY

DHS is constantly updating the effective dates for the SSR. Please check for the must-up-to-date information in the NAFSA Manual or the [NAFSA Special Student Relief for F-1 Students: Essential Concepts webpage](#).

Afghanistan

Effective May 20, 2022, through November 20, 2023. Federal Register notice at [87 FR 30971 \(May 20, 2022\)](#). Extended through May 20, 2025 under Federal Register notice at 88 FR 65721 (September 25, 2023). To be eligible, an F-1 student must:

- Be a citizen of Afghanistan, regardless of country of birth (or be an individual having no nationality who last habitually resided in Afghanistan);
- Have been lawfully present in the United States in F-1 nonimmigrant status on May 20, 2022 or September 25, 2023 under the September 25, 2023 notice;
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the current armed conflict and humanitarian crisis in Afghanistan"

Burma/Myanmar

Effective May 25, 2021 until November 25, 2022, under Federal Register notice at [86 FR 28128 \(May 25, 2021\)](#). Extended from November 26, 2022 until May 25, 2024, under Federal Register notice at [87 FR 58509 \(September 27, 2022\)](#). Extended from May 26, 2024 through November 25, 2025, under Federal Register notice at [89 FR 20675 \(March 25, 2024\)](#). To be eligible, an F-1 student must:

- Be a citizen of Burma/Myanmar (or, under the extension notices, a citizen of Burma/Myanma or an individual having no nationality who last habitually resided in Burma/Myanmar), regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on May 25, 2021, or on September 27, 2022 under the September 27, 2022 notice, or on March 25, 2024 under the March 25, 2024 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and

- Be experiencing severe economic hardship "as a direct result of the current crisis in Burma" (or, under the March 25, 2024 notice, "as a direct result of current armed conflict and the current humanitarian crisis in Burma.")

Cameroon

Effective June 7, 2022, until December 7, 2023. Federal Register notice at [87 FR 34701 \(June 7, 2022\)](#). Extended to June 7, 2025 under Federal Register notice at [88 FR 69939 \(October 10, 2023\)](#). To be eligible, an F-1 student must:

- Be a citizen of Cameroon, regardless of country of birth (or be an individual having no nationality who last habitually resided in Cameroon)
- Have been lawfully present in the United States in F-1 nonimmigrant status on June 7, 2022 (or on October 10, 2023 under the [October 10, 2023 notice](#));
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the crises in Cameroon

Ethiopia

Effective from December 12, 2022, through June 12, 2024. Federal Register notice at [87 FR 76068 \(December 12, 2022\)](#). Extended to December 12, 2025 under Federal Register notice published at [89 FR 26172 \(April 15, 2024\)](#). To be eligible, an F-1 student must:

- Be a citizen of Ethiopia, regardless of country of birth (or be an individual having no nationality who last habitually resided in Ethiopia)
- Have been lawfully present in the United States in F-1 nonimmigrant status on December 12, 2022 (under the 2022 notice) or on April 15, 2024 (under the 2024 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the crisis in Ethiopia" (under the 2022 notice), "as a direct result of the current armed conflict and the current humanitarian crisis in Ethiopia" (under the 2024 notice)

Note: SEVP published a correction in the Federal Register at 88 FR 6769 (February 1, 2023), to supply the date "June 12" that was missing in several places in the original notice.

Haiti

Effective August 3, 2021 through February 3, 2023, under Federal Register notice at [86 FR 41857 \(August 3, 2021\)](#). Effective February 4, 2023, through August 3, 2024, under Federal Register notice at [88 FR 5016 \(January 26, 2023\)](#). See an [August 8, 2023 correction notice](#) that ICE published to correct some typographical errors in their January 26, 2023 notice. Effective August 4, 2024 through February 3, 2026 under Federal Register notice at [89 FR 54477 \(July 1, 2024\)](#). To be eligible under the notice, an F-1 student must:

- Be a citizen of Haiti (or, under the January 26, 2023 and July 1, 2024 notices, a citizen of Haiti or an individual having no nationality who last habitually resided in Haiti), regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on August 3, 2021 (or January 26, 2023 under the January 26, 2023 notice, or July 1, 2024 under the July 1, 2024 notice)
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the current crisis in Haiti"

Hong Kong

Effective November 26, 2021 through February 5, 2023 under Federal Register notice published at [86 FR 67485 \(November 26, 2021\)](#). Effective January 26, 2023 through February 5, 2025 under Federal Register notice published at [88 FR 28584 \(May 4, 2023\)](#). To be eligible under the notice, an F-1 student must:

- Be a resident of Hong Kong, regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on November 26, 2021, or as of January 26, 2023 under the May 4, 2023 notice;
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the emergent circumstances in Hong Kong"

Lebanon

Effective July 26, 2024 through January 25, 2026 under Federal Register notice published at [89 FR 83897 \(October 18, 2024\)](#). To be eligible under the notice, an F-1 student must:

- Be a citizen of Lebanon regardless of country of birth (or an individual having no nationality who last habitually resided in Lebanon);
- Have been lawfully present in the United States in F-1 nonimmigrant status on July 26, 2024;
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the current humanitarian crisis in Lebanon"

Palestinian Territories

DHS published a Special Student Relief notice at [89 FR 26156 \(April 15, 2024\)](#). Benefits under the SSR notice will be available through August 13, 2025. To be eligible for SSR benefits under the notice an F-1 student must:

- Be Palestinian

- "For the purposes of this Notice, ICE intends to cover non-U.S. citizens of any nationality, or without nationality, who are Palestinian." The Notice describes the types of documents that could be acceptable to establish this.
- Have been lawfully present in the United States in F-1 nonimmigrant status on February 14, 2024;
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be "experiencing severe economic hardship as a direct result of the current humanitarian crisis in the Palestinian Territories"

Somalia

Effective September 18, 2021 through March 17, 2023. Federal Register notice published at [86 FR 38739 \(July 22, 2021\)](#). Redesignated and extended to September 17, 2024 by Federal Register notice published at [88 FR 15427 \(March 13, 2023\)](#). Redesignated and extended from September 18, 2024 to March 17, 2026 by Federal Register notice published at [89 FR 59129 \(July 22, 2024\)](#). To be eligible, an F-1 student must:

- Be a citizen of Somalia (or, under the March 13, 2023 and July 22, 2024 notices, an individual having no nationality who last habitually resided in Somalia), regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on the date of publication of the relevant Federal Register notice (September 18, 2021 under the September 18, 2021 notice, March 13, 2023 under the March 13, 2023 notice, or July 22, 2024 under the July 22, 2024 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the current crisis in Somalia"

Sudan

Effective April 19, 2022, through October 19, 2023 under Federal Register published at [87 FR 23195 \(April 19, 2022\)](#). Effective through April 19, 2025 under Federal Register notice published at 88 FR 56857 (August 21, 2023). To be eligible, an F-1 student must:

- Be a citizen of the Republic of Sudan, regardless of country of birth (or be an individual having no nationality who last habitually resided in Sudan);
- Have been lawfully present in the United States in F-1 nonimmigrant status on April 19, 2022 (or on August 21, 2023 under the August 21, 2023 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the current crisis in Sudan"

South Sudan

Effective March 3, 2022, through November 3, 2023 under Federal Register published at [87 FR 12182 \(March 3, 2022\)](#). Extended through May 3, 2025 under Federal Register notice published at [88 FR 60965 \(September 6, 2023\)](#). To be eligible, an F-1 student must:

- Be a citizen of South Sudan, regardless of country of birth (or be an individual having no nationality who last habitually resided in South Sudan);
- Have been lawfully present in the United States in F-1 nonimmigrant status on March 3, 2022, or on September 6, 2023 under the [September 6, 2023 notice](#);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the humanitarian crisis in South Sudan"

Syria

Effective April 22, 2021 until September 30, 2022. Federal Register notice at [86 FR 21333 \(April 22, 2021\)](#), for Syrian F-1 students who were in the United States as of April 22, 2021. Effective October 1, 2022, extended from October 1, 2022 until April 1, 2024 by a Federal Register notice [87 FR 46975 \(August 1, 2022\)](#), for Syrian F-1 students who were in the United States as of August 1, 2022. Extended from April 1, 2024 to September 30, 2025 by a Federal Register notice at [89 FR 5557 \(January 29, 2024\)](#). To be eligible under the current notice, an F-1 student must:

- Be a citizen of Syria, regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on August 1, 2022 (or on January 29, 2024 under the notice published on January 29, 2024);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the civil war in Syria" (2022 notice) or "as a direct result of the current armed conflict and current humanitarian crisis in Syria" (2024 notice)

Ukraine

Effective April 19, 2022, through October 19, 2023. Federal Register published at [87 FR 23189 \(April 19, 2022\)](#). Federal Register notice at [88 FR 56851 \(August 21, 2023\)](#) extended eligibility until April 19, 2025. To be eligible, an F-1 student must:

- Be a citizen of Ukraine, regardless of country of birth (or be an individual having no nationality who last habitually resided in Ukraine);
- Have been lawfully present in the United States in F-1 nonimmigrant status on April 19, 2022 (or on August 21, 2023 under the August 21, 2023 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and

- Be experiencing severe economic hardship "as a direct result of the ongoing armed conflict in Ukraine"

Venezuela

Effective April 22, 2021, until March 10, 2024. Federal Register notice at [86 FR 21328 \(April 22, 2021\)](#) established SSR benefits for eligible students until September 9, 2022. Federal Register notice at [87 FR 55017 \(September 8, 2022\)](#) extended eligibility until March 10, 2024. Federal Register notice published at [89 FR 17500 \(March 11, 2024\)](#) extends eligibility for SSR benefits until September 10, 2025. To be eligible, an F-1 student must:

- Be a citizen of Venezuela, regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on April 22, 2021 (or on March 11, 2024 under the March 11, 2024 notice);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship as a direct result of the current humanitarian crisis in Venezuela

Yemen

Effective September 4, 2021 until March 3, 2023, under Federal Register notice at [86 FR 36288 \(July 9, 2021\)](#). Extended and redesignated effective March 4, 2023 until September 3, 2024, under Federal Register notice at [88 FR 88 \(January 3, 2023\)](#). Extended and redesignated with effective dates September 4, 2024 until March 3, 2026, under Federal Register notice at [89 FR 56759 \(July 10, 2024\)](#). To be eligible under the current notice, an F-1 student must:

- Be a citizen of Yemen (or, under the January 3, 2023 and July 10, 2024 extension notices, a citizen of Yemen or an individual having no nationality who last habitually resided in Yemen), regardless of country of birth;
- Have been lawfully present in the United States in F-1 nonimmigrant status on September 4, 2021 (or under the January 3, 2023 notice effective March 4, 2023, on January 3, 2023, or under the July 10, 2024 notice, on July 10, 2024);
- Be currently maintaining F-1 nonimmigrant status;
- Be enrolled in an SEVP-certified academic institution; and
- Be experiencing severe economic hardship "as a direct result of the crisis in Yemen"

F.8.3 SSR - APPLICATION PROCESS

DSO's must certify that a student requesting SSR meet all the eligibility requirements below:

- Are citizens of a country specified in an FR notice.
- Have lawfully resided in the United States for the dates indicated in the FR notice.
- Have reported on time to your designated school official (DSO) and been enrolled in an SEVP-certified school since the event.
- Are currently maintaining F-1 status.

- Are experiencing severe economic hardship as a direct result of the current crisis.

Eligible students may apply to work on-campus or off-campus full-time while school is in session or during breaks.

Students may also request reduced course load (RCL) after receiving employment authorization. The minimum enrollment requirement is 6 credits for undergraduates and 3 credits for graduate students. *One class can be online under the minimum requirement.*

RCL is optional and student can maintain under-enrollment for the duration of their on-campus or off-campus employment.

Full-time On-Campus Employment Authorization

- A full-time job offer on-campus is required to apply (multiple positions are accepted)
- Students in initial status can apply after they have enrolled full-time, submitted the immigration registration, and have been registered in SEVIS.
- Students must provide a letter to ISSS containing:
- A personal statement explaining that full-time on-campus employment is necessary to avoid severe economic hardship that is directly resulting from the current crisis in their country.
- An income and expenses worksheet indicating the estimated financial amount that will be needed to cover for their tuition and living expenses until graduation.

Upon review and approval of student's eligibility, ISSS will advise the student to request on-campus employment in iEagle and enter the following remarks in SEVIS "Approved for more than 20 hours per week of on-campus employment and reduced course load under the Special Student Relief authorization from [DSO must insert the beginning date of the SSR notice or the beginning date of the student's employment, whichever date is later] until [DSO must insert the student's program end date or the end date of this notice, whichever date comes first]."

Students must notify ISSS if they plan to be on reduced course load so ISSS can enter notes in Sunapsis. RCL does not need to be processed in SEVIS as it is already included in the SSR remarks.

NAFSA language indicates the SSR is approved as a "package" in which RCL is already included. Students may or may not select to enroll in reduced course load for the duration of their SSR employment authorization. They are authorized to drop as soon as their SSR employment authorization is approved. There is no need for additional annotation in SEVIS regarding RCL other than the annotation that was initially entered when recommended for off-campus employment *"Recommended for off-campus employment authorization in excess of 20 hours per week and reduced course load under the Special Student Relief authorization from the date of the USCIS authorization noted on Form I-766 until November 20, 2023."*

Full-time Off-Campus Employment Authorization

- A full-time job offer is not required to apply. Students may engage in any type of employment off-campus.
- Students in initial status can apply after they have enrolled full-time, submitted the immigration registration, and have been registered in SEVIS.
- Students must provide a letter to ISSS containing:
 - A personal statement explaining that full-time on-campus employment is necessary to avoid severe economic hardship that is directly resulting from the current crisis in their country.
 - An income and expenses worksheet indicating the estimated financial amount that will be needed to cover for their tuition and living expenses until graduation.

Upon review and approval of student's eligibility, ISSS will recommend the student for off-campus employment/SSR in SEVIS and issue a new I-20. The following remarks will be entered in SEVIS "Recommended for off-campus employment authorization in excess of 20 hours per week and reduced course load under the Special Student Relief authorization from the date of the USCIS authorization noted on Form I-766 until [DSO must insert the program end date or the end date of this notice, whichever date comes first]."

ISSS will advise the student to submit the SSR application to USCIS, to include:

- a. Form I-765;
- b. Copy of passport, F-1 visa.
- c. Passport photos.
- d. \$410 application fee or the fee waiver application (Form I-912); subject to change
- e. A signed and dated copy of the student's Form I-20 with the appropriate DSO recommendation;
- f. Send the application in an envelope that is clearly marked on the front of the envelope, bottom right-hand side, with the phrase "SPECIAL STUDENT RELIEF." Failure to include this notation may result in significant processing delays.

If approved by USCIS, the EAD will contain an expiration date that does not exceed the end of the granted temporary relief.

Students must report their EAD card to ISSS as soon as they have it and notify ISSS if they plan to be on reduced course load (RCL) so ISSS can enter notes in Sunapsis. RCL does not need to be processed in SEVIS as it is already included in the SSR remarks.

NAFSA language indicates the SSR is approved as a "package" in which RCL is already included. Students may or may not select to enroll in reduced course load for the duration of their SSR employment authorization. They are authorized to drop as soon as their SSR employment

authorization is approved. There is no need for additional annotation in SEVIS regarding RCL other than the annotation that was initially entered when recommended for off-campus employment *"Recommended for off-campus employment authorization in excess of 20 hours per week and reduced course load under the Special Student Relief authorization from the date of the USCIS authorization noted on Form I-766 until November 20, 2023."*

Example: AU ID 5418074

J-1 STUDENT EMPLOYMENT

J.1 ON-CAMPUS EMPLOYMENT

J.1.1 ON-CAMPUS EMPLOYMENT - DEFINITION

Students are allowed to work on campus part-time while school is in session and full-time during breaks. Part-time is defined as no more than 20 hours per week.

22 CFR 62.23(g)

(g) Student employment. A student, other than a student intern described in paragraph

(i) of this section, may engage in part-time employment when the following criteria and conditions are satisfied.

(1)The student employment:

(i) Is pursuant to the terms of a scholarship, fellowship, or assistantship;

(ii)Occurs on the premises of the post-secondary accredited academic institution the visitor is authorized to attend; or

(iii)Occurs off-campus when necessary, because of serious, urgent, and unforeseen economic circumstances which have arisen since acquiring exchange visitor status.

(2)A student may engage in employment as provided in paragraph (g)(1) of this section if the:

(i) Student is in good academic standing at the post-secondary accredited academic institution;

(ii)Student continues to engage in a full course of study, except for official school breaks and the student's annual vacation;

- Employment totals no more than 20 hours per week, except during official school breaks and the student's annual vacation; and
- The responsible officer has approved the specific employment in advance and in writing. Such approval may be valid up to 12 months but is automatically withdrawn if the student's program is transferred or terminated."

On-campus work may generally be divided into three types:

1. Work on the school premises
 - a. Employed by the DS-2019 issuing institution, including work that is part of a scholarship, fellowship, or assistantship
 - b. Example: ISSS student staff, teaching or research assistants, library)
2. Work on the school premises
 - a. Employed by on-campus commercial firms
 - b. Example: eFollet
3. Work done at off-campus locations, but treated as on-campus

J.1.2 ON-CAMPUS EMPLOYMENT - ELIGIBILITY

Students are eligible immediately upon obtaining J-1 status; there is no waiting period. Students

must be maintaining their J-1 status and be in good academic standing.

GPA must be 2.0 or above for undergraduate/JD/LLM students; 3.0 or above for graduate/SJD students.

Initial Students

ISSS practice is to not process on-campus employment authorization until the student has completed immigration registration and the student is in SEVIS Active status. Upon initial entry to begin a new course of study, a J-1 student may not begin on-campus employment more than 30 days prior to the actual start of classes.

Special Groups

1. J-1 Abroad at AU – students may work on campus
2. J-1 Washington Semester – students may work on campus

Transfer Students

The J-1 regulations do not specifically address the issuing of on-campus employment

authorization to J-1 students who have transferred. ISSS policy is to wait to authorize until the student is in active J-1 status.

Academic Training and On-Campus Employment Combination

Academic training and on-campus employment can be authorized at the same time. See section 3.2 of this policy guide for the definition of part-time vs. full-time employment for academic training.

From the NAFSA Manual 4.H.5.2:



Practice Note

Academic training and student employment. Employment done under the academic training provisions is not counted in the cumulative 20-hour per week limit for J student employment, and J student employment does not impact the amount of academic training time available. However, RO/AROs should consider the impact that all employment might have on a student's studies, and any institutional restrictions on hours per week that students can work.

Eligible On-Campus Jobs

[22 CFR 62.23\(g\)](#)

(1) The student employment:

- (i) Is pursuant to the terms of a scholarship, fellowship, or assistantship;*
- (ii) Occurs on the premises of the post-secondary accredited academic institution the visitor is authorized to attend; or*
- Occurs off-campus, when necessary, because of serious, urgent, and unforeseen economic circumstances which have arisen since acquiring exchange visitor status.”

Ineligible On-Campus Jobs

J-1 students are not eligible for Federal Work Study on-campus jobs.

UPS, Starbucks, and Subway require that their employees be able to work at other store locations. For this reason, J-1 students are not eligible for employment at these companies, even though they are on campus.

J.1.3 ON-CAMPUS EMPLOYMENT - APPROVAL PROCEDURE

1. Student Applicant submits request in iEagle

Student should request on-campus employment through iEagle under current students -> J-1 On-Campus Employment Request e-form

The e-form will be routed to the supervisor for the position, and once they review and complete their section, ISSS will be alerted through the alerts to review the request.

2. ISSS Reviews and Approves the On Campus Employment

Review the request to ensure compliance with listed regulations above.

Open the RTI browser and go to student record. Click “Add Student Employment” on the left.
Employer Name: American University

Employment Type: Assistantship (can be confirmed from e-form) or On-premises

Once the above is entered and submitted, you do not need to reprint the DS-2019, but you must create an employment authorization letter for the student with the following information:

Under 22 CFR 62.23(g)(2), a student may engage in on-campus employment if the:

Student is in good academic standing at the post-secondary accredited academic institution;

Student continues to engage in a full course of study, except for official school breaks and the student's annual vacation;

Employment totals no more than 20 hours per week, except during official school breaks and the student's annual vacation; and

The responsible officer has approved the specific employment in advance and in writing.

You are under the sponsorship of American University's Exchange Visitor Program Number, P-1-00835. I authorize you for on-campus employment from [start date], to [end date], at American University for [number of hours] hours per week.

Please contact this office if further information is needed.

Sample letters can be found in the J-1 Employment folder.

Each ISSS team member who authorizes J-1 employment should save a copy with their signature information. Once the ISSS advisor has updated the letter with the information specific to the student's employment, they will print the letter on ISSS letterhead and sign it in blue ink. The on-campus employment e- form can then be approved and the template email advising the student to come to ISSS to pick up their written authorization will be sent.

J.2 ACADEMIC TRAINING (AT)

J.2.1 AT - DEFINITION

22 CFR 62.23(f)

- (1) Purpose. The primary purpose of academic training is to permit a student, other than a student intern described in paragraph (i) of this section, to participate in an academic training program during his or her studies, without wages or remuneration, with the approval of the academic dean or advisor and the responsible officer.
- (2) Conditions. A student, other than a student intern described in paragraph (i) of this section, may be authorized to participate in an academic training program for wages or other remuneration:
 - (i) During his or her studies; or
 - (ii) Commencing not later than 30 days after completion of his or her studies, if the criteria, time limitations, procedures, and evaluations listed below in paragraphs (f)(3) to (6) are satisfied:
- (3) Criteria.
 - (i) The student is primarily in the United States to study rather than engage in academic training;
 - (ii) The student is participating in academic training that is directly related to his or her major field of study at the post-secondary accredited academic institution listed on his or her Form DS-2019;
 - (iii) The student is in good academic standing with the post-secondary accredited academic institution; and
 - (iv) The student receives written approval in advance from the responsible officer for the duration and type of academic training.
- (4) Time limitations. The student is authorized to participate in academic training for the length of time necessary to complete the goals and objectives of the training, provided that the amount of time for academic training:
 - (i) Is approved by the academic dean or advisor and approved by the responsible officer;
 - (ii) For undergraduate and pre-doctoral training, does not exceed 18 months, inclusive of any prior academic training in the United States, or the period of full course of study in the United States, whichever is less; except that additional time for academic training is allowed to the extent necessary for the exchange visitor to satisfy the mandatory requirements of his or her degree program in the United States;
 - For post-doctoral training, does not exceed a total of 36 months, inclusive of any prior academic training in the United States as an exchange visitor, or the period of the full course of study in the United States, whichever is less.

J.2.2 AT - ELIGIBILITY

Authorizing AT at Home-Country Embassy or Media Companies (TV, Radio, etc.) in the U.S.

Washington Semester students sometimes wish to do academic training at their own embassy, or a company based in their home country with a U.S. branch (i.e., German news outlet).

Students may be authorized for academic training at such sites, but they must show that the experience meets the spirit of the Exchange Visitor program (mutually beneficial cultural exchange). Before approving academic training at these sites, ISSS must clearly understand the goals and objectives of the training, how it is integral to the student's academic program, and how it is related to the student's field of study. Students may not be authorized for a position where translation is one of the main duties.

- Example: German students at both German TV stations (ARD & ZDF). ISSS can authorize academic training at these two sites, but we will need additional reasons. It is not enough to say, "this experience will be cross-cultural." When WashSem requests the academic training authorization from ISSS, they must explain how the experience will be cross-cultural. For example, the student will be interviewing Americans daily, writing in English, working with American co-workers, etc.

J.2.3 AT - PRE-COMPLETION ACADEMIC TRAINING ***WASHINGTON, SEMESTER STUDENTS***

Washington Semester requires that students participate in an off-campus experience.

Therefore, there is no waiting period. ISSS authorizes academic training as soon as the student's record is active in SEVIS, and we have received the official AT request from Washington Semester.

Approval Procedure

Below are the steps for the AT Approval for Washington Semester students:

1. At the beginning of each semester, WSP sends a master list of students who will be applying for Academic Training to the J-1 advisor in ISSS. The list is a SharePoint excel spreadsheet and is updated daily by the WSP team and reviewed daily by the ISSS team. Old lists are saved in the K drive (K:\ISSS\EMPLOYMENT\Academic Training\WSP AT Approvals).
 2. WSP works with student to submit ELF (experiential learning form) that is a detailed description of the position/how it relates to field of study. ELF is approved by employer, faculty member for practicum course, WSP, and ISSS. ISSS is the last approver for the ELF forms.
 3. Automatic emails are sent to J1EV@american.edu when an ELF is ready for ISSS approval. Sometimes emails are not sent/are missed, so it is better to login to the [ELF site](#) periodically with the following login info: username: j1ev@american.edu, password: 2021ATWSP.
- After ELF approval, WSP submits AT Request e-form to ISSS with the following information (based on ELF):
 - a. Name of Supervisor
 - b. Site of Academic Training (company name) and Address
 - c. Number of Hours Per Week (cannot be more than 20)

- d. Begin Date and End Date
- e. Course number associated with the internship
- f. Detailed description of work/how it relates to field of study

WSP retains the supporting proof (i.e., job offer letter) of student's internship

- 4. ISSS will issue the new DS-2019 with academic training authorization within 3-5 business days of receiving the request
 - a. ISSS will also issue a written approval letter signed by ARO
- 5. ISSS will notify student via email (and copy WSP) when their new DS-2019 is ready for pick-up at ISSS by approving the AT e-form
- 6. Student picks up DS-2019 and reports for internship
 - a. Student should show the DS-2019 to their employer
- 7. Student stops working when the authorization period ends

Switching AT Sites

- 1. If the student does not report to the first internship, ISSS would cancel the first academic training and then issue a new DS-2019 with the new academic training site and start/end dates.
- 2. If the student did work at the first site, ISSS needs to know the last day they worked there in order to shorten their first academic training. We would then issue a new DS-2019 with the new academic training site and new start/end dates.

WSP submit a new e-form request for the new academic training

Before Beginning AT

- After receiving verification in writing from the department (i.e., email from Camilla Alway or Amy Morrill) stating that the student will be switching their academic training site before beginning the academic training, ISSS will need to verify the new placement site again by reviewing the new ELF. After reviewing the ELF and verifying the new site, ISSS should instruct the department to submit a new e-form for the new academic *training*.
- Once the ARO is ready to issue the DS-2019, the current AT record in SEVIS should be updated, not deleted. The AT site of activity (primary site of activity remains AU) and student academic training listed under "Student Academic Training History" should be edited to reflect the new site information.

After issuing the DS-2019, the ARO notifies the student that a new DS-2019 and ARO approval letter has been issued.

See the Sunapsis User Guide for complete instructions on how to make the changes in SEVIS.

After Beginning AT

After receiving verification in writing from the department (i.e., email from Camilla Alway or Amy Morrill) stating that the student will be switching their AT site after beginning their current

academic training, ISSS will need to verify the new placement site again by reviewing the new ELF. The department also needs to inform ISSS the date the student last reported for work at the current academic training site.

After reviewing the ELF and verifying the new site, ISSS should instruct the department to submit a new e-form for the new academic training.

Once the ARO is ready to issue a new DS-2019 for the second academic training authorization, the first academic training information must be shortened. Since the student reported for work, the first academic training information must be edited to reflect the new end date (student's last day of work). Do not delete the site of activity for this academic training authorization.

After the first academic training authorization has been shortened, the ARO should add a new site of activity for the second academic training then proceed to enter the new academic training information in SEVIS.

1. After issuing the DS-2019, the ARO notifies the student that a new DS-2019 and ARO approval letter has been issued.

See the Sunapsis User Guide for complete instructions on how to make the changes in SEVIS.

ABROAD AT AU

Abroad at AU students fall into three categories: 1) One-semester students; 2) Two-semester students (fall and spring); and 3) Two-semester students (spring and fall). Their eligibility for academic training is:

1. One-semester students
 - a. Must wait 30 days from the semester begin date to start academic training
 - b. Eligible for a total of 4 months of academic training; can do during or after program ends
2. Two-semester students (fall and spring)
 - a. ISSS can only authorize one semester at a time
- If student wants to do academic training in their second semester (spring), they can begin the academic training right away. There is no need to wait 30 days.
 - b. Eligible for a total of 8 months of academic training; can do during or after program ends
3. Two-semester students (spring and fall)
 - a. ISSS can only authorize one semester at a time
 - b. ISSS can authorize academic training during the summer between their enrolled semesters if the student successfully completed the spring semester and they have not used academic training time during that spring semester
- Eligible for a total of 8 months of academic training time even though their DS-2019 is valid for almost one year; can do during or after program ends

Special case: (AU ID 4702655): The student was in Abroad at AU in Fall 2017, then switched to Washington Semester in Spring 2018. The student did academic training during Spring 2018 for the Washington Semester program requirement. The student asked about post-completion AT eligibility for after Spring 2018. ISSS determined that the student cannot use the time spent in the Abroad at AU program towards academic training eligibility post-completion of the Washington Semester program because these are two separate academic programs. If the student wanted to use the time earned during the Abroad at AU program, the student would have needed to do so while in the Abroad at AU program or immediately after completing that program.

Approval Procedure

Before the student can submit a request for academic training to ISSS, the student must meet with their advisor in Abroad at AU. If the advisor (Alison Nagy) agrees to support the student in seeking academic training approval, the student submits the Request for Academic Training e-form on iEagle.

The student's request will be routed to the student's advisor for approval. The ARO will see the request as a J-1 student alert once the advisor approves the e-form. The ARO needs to do the following:

1. Review the e-form and attached job offer letter to determine if the experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the e-form is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - After issuing the DS-2019, the ARO approves the e-form, which notifies the student and Abroad at AU that the academic training has been approved and a new DS-2019 and approval letter have been issued and are ready for pickup

DEGREE-SEEKING STUDENTS (BA, MA, PHD) AND SIS EXCHANGE STUDENTS

Degree-seeking and SIS Exchange students may apply for academic training if they wish to do an internship for academic credit (x91 course) or as a pure employment opportunity in their field of study. Must wait 30 days from the program begin date to start academic training. They must wait 30 days even if they are doing an internship for academic credit.

Internship for Academic Credit

Although rare, students in J-1 status may choose to use their academic training time to fulfill a degree program requirement to do an internship for academic credit. The student should speak with their academic department about their academic eligibility to enroll in an internship

course.

Approval Procedure

After the student has registered for the internship course, the student should contact ISSS at j1ev@american.edu to begin the process of receiving a new DS-2019.

The ARO should instruct the student to submit a copy of the paperwork used to register for the internship ([Internship Registration Form](#)). The ARO then does the following:

1. Review the Internship Registration Form and determine if this experience can be authorized as academic training. The ARO may sign the Internship Registration Form for eligibility if applicable.
2. Ask student to submit the Academic Training request e-form in iEagle
3. Issue written approval letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
4. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - b. After issuing the DS-2019, the ARO approves the AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued and are ready for pickup in ISSS

Pure Employment

A J-1 student may wish to engage in academic training in their field of study as pure employment – meaning that the student is not doing the experience for academic credit. Must wait 30 days from the program begin date to start academic training.

Approval Procedure

When students inquire about pure employment academic training, ISSS should instruct the student to submit the Academic Training request e-form in iEagle. The form will ask the student to upload an employment letter and will then be routed to the academic advisor for approval.

Once the AT request e-form is received, the ARO then does the following:

1. Review the employment letter and academic advisor portion of the e-form and determine if this experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval

3. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
- After issuing the DS-2019, the ARO approves the AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued and are ready for pickup in ISSS

JD/SJD STUDENTS

JD and SJD students may apply for academic training if they wish to do an externship or independent study for academic credit or as a pure employment opportunity in their field of study.

Externship for Academic Credit

Although rare, students in J-1 status may choose to use their academic training time to fulfill a degree program requirement to do an externship for academic credit. The student should speak with the WCL externship office about their academic eligibility to enroll in an externship course. WCL students may also have the option of doing an independent study and receiving academic training authorization, but they must consult with WCL first regarding the need for a work component as part of an independent study project.

Approval Procedure

After the student has registered for the externship course, the student should contact ISSS at j1ev@american.edu to begin the process of receiving a new DS-2019.

The ARO should instruct the student to submit a copy of the paperwork used to register for the externship (a contract or agreement with the WCL externship office) and submit the Academic Training request e-form in iEagle. The ARO then does the following:

1. Reviews the externship documentation and AT e-form and determines if this experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - b. After issuing the DS-2019, the ARO approves the AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued.

Pure Employment

A JD or SJD student may wish to engage in academic training in their field of study as pure

employment – meaning that the student is not doing the experience for academic credit. Must wait 30 days from the program begin date to start academic training.

Approval Procedure

When students inquire about pure employment academic training, ISSS should instruct the student to submit the AT request e-form in iEagle. The form will ask the student to upload a letter from the employer and then will be routed to the academic advisor for their approval as well.

Once the e-form is completed, the ARO does the following:

1. Review the employment letter and academic advisor portion of the e-form and determine if this experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - a. After issuing the DS-2019, the ARO approves the AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued.

LLM STUDENTS

LLM students enrolled in the “practical track” are required to complete an externship to earn their degree. Other LLM students not in the “practical track” may choose to enroll in an externship course and/or pursue academic training as pure employment.

Externship for Academic Credit

Students who wish to do an externship for academic credit must complete the WCL externship contract with their externship advisor. ISSS will automatically be notified via isssemployment@american.edu that an externship contract is ready for processing. Most LLM students are F-1 students, but on occasion a J-1 student will need academic training authorization to do an externship for academic credit.

Approval Procedure

After the student has completed the WCL externship contract, the contract is routed to ISSS to isssemployment@american.edu.

The ARO then does the following:

1. Reviews the externship contract and determines if this experience can be authorized as academic training

2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - b. After issuing the DS-2019, the ARO approves the AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued.
- Sign the WCL externship contract by using the link in the email sent to isssemployment@american.edu.

Pure Employment

An LLM student may wish to engage in academic training in their field of study as pure employment – meaning that the student is not doing the experience for academic credit. Must wait 30 days from the program begin date to start academic training.

Approval Procedure

Before the student can submit a request for academic training to ISSS, the student must meet with their LLM advisor in WCL. If the advisor (Melanija Radnovic or Fernanda Ellenberg) agrees to support the student in seeking academic training approval, the student submits the Request for Academic Training e-form on iEagle.

The student's request will be routed to the student's advisor for approval. The ARO will see the request as an alert once the advisor approves the e-form. The ARO needs to do the following:

1. Review the e-form and attached job offer letter to determine if this experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
- After issuing the DS-2019, the ARO approves AT e-form and notifies the student that the academic training has been approved and a new DS-2019 and approval letter have been issued.

J.2.4 AT - POST-COMPLETION ACADEMIC TRAINING

Students must apply for post-completion academic training before the end date of their current DS-2019. ISSS practice is to advise students to submit the request for post-completion academic training at least two weeks before their program completion date. The start date of the post-completion academic training must be within 30 days of the student's program end date.

Students must show funding for the entire period of post-completion academic training. ISSS has determined that \$1,600/month is sufficient funding. This can be shown in three ways:

1. Salary from the job they will hold while on academic training
2. Combination of salary and personal funds (at least half - \$800 – must come from salary)
3. Funding from a 3rd party (i.e., Open Society Foundation) that is specifically for engaging in the academic training experience

Ineligible for Post-completion AT

Washington Semester

Students in this program are required to do an off-campus practicum experience as part of the program requirements. They are not eligible for post-completion AT because they use all their AT eligibility during their program.

Used all AT time allowed

Students who have used all their eligible AT time are generally not eligible for additional AT authorization. There is one exception: *“additional time for academic training is allowed to the extent necessary for the exchange visitor to satisfy the mandatory requirements of his or her degree program in the United States.”* - [22 CFR 62.23\(f\)\(4\)](#)

Approval Procedure

When students inquire about post-completion academic training, ISSS should instruct the student to submit the AT Request e-form in iEagle.

The ARO then does the following:

1. Review the e-form and attached job offer letter to determine if this experience can be authorized as academic training
2. Issue ARO letter
 - a. Once the information is reviewed and the ARO is ready to issue the DS-2019 approving the student for academic training, the ARO prints and signs a letter recommending the student for academic training. Letter template located here: K:\ISSS\EMPLOYMENT\Academic Training\Written Approval
3. Issue DS-2019
 - a. Once the ARO letter is signed, the ARO can issue a new DS-2019 for academic training
 - b. After issuing the DS-2019, the ARO approves AT e-form and notifies the student that the academic training has been approved and a new DS-2019

and approval letter have been issued.

- Set reminder on personal calendar for switching the primary site of activity in the student's SEVIS record to the academic training site. The site of activity should remain American University until the start date of the student's post-completion academic training.

See the Sunapsis User Guide for detailed information on issuing post-completion academic training in SEVIS.

Ending AT Early

With departmental approval, students may end AT earlier than previously expected. If the request to end AT early comes from the student, ISSS should contact the academic advisor and verify that the student has met the requirements for the academic training and/or internship course. Evaluation should still be submitted.

Simultaneous AT Sites

NAFSA Manual 4.H.7.5.2 states: "Academic training may involve sequential or simultaneous activities, either paid or unpaid, with several employers, U.S. or foreign, provided the application and approval procedures are followed for each employer and activity, and the time limits are not exceeded."

Extending AT

AT cannot be extended beyond program end date for short term programs for any reason.

There is no 'post-completion' option with 'for-credit' Academic Training.

Post-completion AT can be extended if the student has time remaining of AT eligibility and submits all required documentation (new AT request e-form) before their DS-2019 program end date.

Evaluation

[22 CFR 62.23\(f\)\(6\)](#)

"Evaluation requirements. The sponsor must evaluate the effectiveness and appropriateness of the academic training in achieving the stated goals and objectives in order to ensure the quality of the academic training program."

Process for obtaining evaluation

Washington Semester Students

ISSS does not collect evaluations for students enrolled in the Washington Semester Program. This is because all students are required to enroll in coursework for the off-campus experience and receive a grade. If necessary, we can obtain the grades from the department to show that the academic training was evaluated.

Students Enrolled in Course Credit (i.e., Internship Class)

ISSS does not collect evaluations for students enrolled in an internship for academic credit for which academic training is authorized. This is because the student receives a grade for the experience. If necessary, we can obtain the grades from the department to show that the academic training was evaluated.

All Other Students on Academic Training

The ARO responsible for employment should run the report in Sunapsis each semester to get list of students currently on Academic Training. The ARO may also set up calendar reminders for collecting evaluations as they approve AT's.

Two weeks before the student's academic training is scheduled to end, the ARO should send an email with the instructions to complete the AT evaluation e-form. The email text can be found here: K:\ISSS\0- Templates\1- Email Templates\Employment. The ARO should send reminder emails for several weeks to students who have not submitted their evaluation. It's best for the ARO to put these reminders on their calendar so they do not forget. The AT evaluation form can be completed by the student in iEagle under the "current students" menu.

APPENDIX I: UPDATING THIS DOCUMENT FOR 508 COMPLIANCE

- Text and Pictures are separated in tables
- Use table of contents and update table when information has been updated in the document.
- Styles:
 - Body: Calibri, 12, Spacing after 12 pt
 - Heading 1: Cambria, 16, Bold, RGB(224, 38, 60), Bottom Border, Spacing before 12 pt
 - Heading 2: Cambria, 14, Bold, RGB(0, 79, 162), Spacing before 2 pt
 - Heading 3: Cambria, 12, Bold, RGB(150, 30, 40), Spacing before 2 pt
 - Heading 4: Cambria, 12, Bold, Italic, RGB(24, 36, 73), Spacing before 2 pt
 - Heading 5: Cambria, 12, RGB(28, 127, 102), Spacing before 2 pt
 - Heading 6: Cambria, 12, RGB(105, 149, 221), Spacing before 2 pt
 - Heading 7: Cambria, Italic, 12, RGB(0, 163, 141), Spacing before 2 pt
 - Heading 8: Cambria, Italic, 12, RGB(65, 69, 71), Spacing before 2 pt
- Spacing:
- Use page and section breaks to move text to next page instead of “enter” or “tab”.
- DO NOT use a multiple “Enter” keystrokes or “Tab” for spacing between paragraphs.
- Pictures are formatted with the **Wrap Text** as “Top and Bottom” or “Tight”; positioning is set to center; and there is a .75 black border.

APPENDIX II: EMAIL COMMUNICATIONS FROM PARTNERS

On Campus Employment: Old Employment Verification Letter

Simona Assenova

Mon 3/28/2022 12:38 PM

To:Juliana Fernandes

Cc:Tarek Mahfouz

Hi Juliana,

The Employment Verification Letter is to show a proof that this employee is receiving a taxable income and that is why eligible to apply for a social security number.

The start date is the date the employment with AU started and will not have an expiration date or will change.

The date on the letter is when the employee requested this letter. I do not know if there is an expiration date on this request.

I am not informed of any denials from the Social Security Administration office due to old letter.

My recommendation will be if the student requested and was approved for on-campus employment in the past semester to accept and sign the letter.

I will let you know if I find a case of rejection due to old date on the verification request.

I am copying Tarek in case he knows of any rejection due to old date on the Employment Verification Letter.

Best regards,

Remote Work on Practical Training

From: Jones, John M <John.M.Jones@ice.dhs.gov>

Sent: Monday, May 13, 2024 9:48 AM

To: Ashley Bus Morgan <abmorgan@american.edu>

Subject: RE: FRU External Webinar Follow Up Question

External Email: Use caution with links and attachments.

Hello,

I reviewed our guidance and Policy advise on this a few years ago that the DSO would input the student's remote location (assumption is their home address). In the remarks I would recommend including the employer information in the remarks.

Sincerely,

JOHN MARK JONES

Field Representative, Territory #44 – Arlington, VA

Field Representative Unit (FRU)

Student and Exchange Visitor Program (SEVP)

NS/HSI/ICE/DHS

Phone: (571) 867-8389

Email John.M.Jones@ice.dhs.gov

Helpful Resources:

Bookmarks: <https://studyinthestates.dhs.gov> & www.ice.gov/sevp

Social Media: [Facebook](#) + [Twitter](#) (@StudyinStates) + [LinkedIn](#)

Add: Our [Study in the States widget](#) to your webpage today!

CPT for Clinics

From: Lucy Newton <lnewton@wcl.american.edu>

Sent: Thursday, December 21, 2023 2:44 PM

To: Ashley Bus Morgan <abmorgan@american.edu>

Subject: RE: CPT for Clinics

Here you go. Thank you for your patience! I hope you have a restful break and a great holiday season.

AUWCL Clinics

The in-house clinics offer AUWCL JD students an opportunity to work on real cases for real clients under supervision from AUWCL faculty. There are two different categories of students who may work at the AU WCL Clinic:

- Clinic students are enrolled in 1- or 2-semester-long clinic courses over the fall or spring semesters and do not receive payment. The courses, open to 2L and 3L students, range in credit from 4-7 hours. Student work hours vary. Clinic courses are coded as experiential and count toward the experiential credits required for graduation and are not considered “out of classroom” credits. Student attorneys represent low-income and under-represented clients and are responsible for the representation of those clients under the supervision of members of the faculty. Work takes place primarily on campus on the 2nd floor of the Yuma building, but occasionally students go to court or on client visits.
- Fellows are hired and paid by AUWCL to work at the Clinic. These students help with research, translation, and other work of the clinic. Unlike the clinic students, they do not represent clients, and are not enrolled in a course or receiving course credit for their work. They fall under student employment and are paid by AUWCL. These student positions are very different from the student attorneys who are enrolled in clinic courses. They do not handle their own cases or represent clients.

The prosecution clinic is different from the other clinics: Students in the Criminal Justice Clinic-Prosecution section take the accompanying seminar at WCL, but they perform their field work at Maryland State's Attorney's Offices in Montgomery, Prince George's, and Anne Arundel Counties.

Lucy Newton (she/her)
Associate Director, Clinical Program
American University Washington College of Law
4300 Nebraska Avenue NW, Suite 265G
Washington, DC 20016
Direct: 202-274-4143
www.wcl.american.edu/clinical